

Rules of Procedure and Conduct of Business in Lok Sabha

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Rules of Procedure and Conduct of Business in Lok Sabha

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Rules of Procedure and Conduct of Business in Lok Sabha

Rule RULES-OF-PROCEDURE-AND-CONDUCT-OF-BUSINESS-IN-LOK-SABHA of 1952

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Rules of Procedure and Conduct of Business in Lok Sabha

Preface

The Constituent Assembly (Legislative) Rules of Procedure and Conduct of Business in force immediately before the commencement of the Constitution of India were modified and adopted by the Speaker of Lok Sabha in exercise of the powers conferred on the Speaker by article 118(2) of the Constitution and published under the title "Rules of Procedure and Conduct of Business in the House of the People" in the Gazette of India Extraordinary dated the 17th April, 1952.

Those Rules were amended by the Speaker from time to time on the recommendations of the Rules Committee of the House until September, 1954.

In September, 1954, Rules Committee decided that their recommendations should be approved by the House before amendments were given effect to. Consequently, the procedure for amendment of the rules as given in rule 306 of the Fourth Edition (rule 331 of the Present edition) came into force with effect from the 15th October, 1954.

In December, 1956, Rules Committee recommended that the rules contained in the Fourth Edition of the Rules as amended from time to time might be approved by the House under article 118(1) of the Constitution. The House agreed. Accordingly, the Fifth Edition of the Rules incorporating the amendments made till 28th March, 1957, was laid on the Table of Lok Sabha on that day.

During the Third Lok Sabha, the amendments recommended by the Rules Committee and agreed to by the House were incorporated in the 'March, 1967 Reprint' of the Fifth Edition.

During the Fourth Lok Sabha, the amendments recommended by the Rules Committee and agreed to by the House were incorporated in the 'March, 1971 Reprint' of the Fifth Edition.

During the Fifth Lok Sabha, certain amendments were recommended by the Rules Committee and agreed to by the House. Those amendments were incorporated in the Sixth Edition which was brought up-to-date.

During the Sixth and Seventh Lok Sabha, no amendments were made to the Rules of Procedure and Conduct of Business in Lok Sabha.

During the Eighth Lok Sabha, all the Rules of Procedure and Conduct of Business in Lok Sabha were reviewed in depth. These Rules, which were first adopted in 1952, were never subjected to a systematic review in a comprehensive manner thereafter. As a result in many matters the actual practice as it had developed over the years was found to be at variance with the relevant rules as they stood in the Rule Book. In several other cases, matters were being governed merely by precedents and practices. A comprehensive review of the Rules was, therefore, undertaken with the approval of the Rules Committee with a view to incorporating therein the procedural changes that had come about. As a consequence of the review, a large number of amendments/ modifications were necessitated in the rules. These amendments were considered by the Rules Committee and their second, third and fourth Reports (1989) containing their recommendations in this regard were laid on the Table of the House on 2 and 3 May, 1989 and 25 July, 1989 respectively. They were later on agreed to by the House. The amendments so made came into force with effect from 9 May and 1 August, 1989 and were incorporated in the Seventh Edition of the Rules brought out in December, 1989.

During the Ninth Lok Sabha, no amendments were made in the Rules of Procedure and Conduct of Business in Lok Sabha.

During the Tenth Lok Sabha, a full-fledged system of Departmentally Related Standing Committees of Parliament was created by setting up 17 Standing Committees covering under their jurisdiction all the Ministries/Departments of the Union Government replacing the existing three Subject Committees. The rules relating to these Committees and other amendments, as recommended by the Rules Committee and agreed to by the House, were incorporated in the Eighth Edition of the Rules.

During the Eleventh Lok Sabha, a new Committee on the Empowerment of Women was created. The rules relating to this Committee and other amendments as recommended by the Rules Committee and agreed to by the House, were incorporated in the Ninth Edition of the Rules.

During the Twelfth Lok Sabha, no amendments were made in the Rules of Procedure and Conduct of Business in Lok Sabha.

During the Thirteenth Lok Sabha, a new rule 374A, which was recommended by the Rules Committee and agreed to by the House was incorporated in the Tenth Edition of the Rules.

A few changes made in the Fifth Schedule to the Rules during the years 2002 and 2004 were incorporated in the March, 2004 Eleventh Edition of the Rules.

During the Fourteenth Lok Sabha, amendments to Rule 72 (2) and 331(D) (1) and also the changes made in the Fifth Schedule to the Rules as recommended by the Rules Committee and agreed to by the House were incorporated in the July, 2007, Twelfth Edition of the Rules. The subsequent amendments made in the Fifth Schedule had been incorporated in the 13th Edition of the Rules.

During the Fifteenth Lok Sabha, amendments to Rules 33, 39, 46, 48, 49, 331A and 349 as recommended by the Rules Committee in their First Report and agreed to by the House along with changes made in the Fifth Schedule to the Rules were incorporated in the July, 2010 Fourteenth Edition of the Rules. Thereafter, a reprint of the Fourteenth Edition was brought out in October, 2013 wherein further amendments to the Fifth Schedule were incorporated.

Subsequently, gender neutral Rules as recommended by the Rules Committee in their Second Report and agreed to by the House came into force with effect from 13 February, 2014. This Fifteenth Edition of the Rules incorporating the gender neutral rules is accordingly being brought out.

Certain amendments to rules 160, 164(1), 167 and 169 relating to Petitions, as recommended by the Rules Committee

in their Second Report and agreed to by the House in February, 2014 have also been incorporated in this Edition of the Rules.

The Members of Lok Sabha (Disqualification on Ground of Defection) Rules, 1985, made by the Speaker, Lok Sabha, in terms of paragraph 8 of the Tenth Schedule to the Constitution which came into force with effect from 18th March, 1986, have been incorporated as Appendix IV.

Chapter I

Short Title and Definitions

1.

Short Title.

- These rules may be called "the Rules of Procedure and Conduct of Business in Lok Sabha".

2.

Definitions.

(1)

In these rules, unless the context otherwise requires, -

(a)

"Bulletin" means the Bulletin of the House containing (a) a brief record of the proceedings of the House at each of its sittings; (b) information on any matter relating to or connected with the business of the House or other matter which in the opinion of the Speaker may be included therein; and (c) information regarding Parliamentary Committees;

(b)

"Constitution" means the Constitution of India;

(c)

"Council" means the Council of States (Rajya Sabha);

(d)

"Finance Minister" includes any Minister;

(e)

"Gazette" means the Gazette of India;

(f)

"House" means the House of the People (Lok Sabha);

(g)

"Houses" means the Council of States (Rajya Sabha) and the House of the People (Lok Sabha);

(h)

"Leader of the House" means the Prime Minister, if Prime Minister is a member of the House, or a Minister who is a member of the House and is nominated by the Prime Minister to function as the Leader of the House;

(i)

"Lobby" means the covered corridor immediately adjoining the Chamber and coterminous with it;

(j)

"Lok Sabha Secretariat/Seretariat" means and includes the Lok Sabha Secretariat at Delhi and any Camp Office set up outside Delhi for the time being for, or under the authority of, the Speaker;

(k)

"member" means a member of the House of the People (Lok Sabha);

(l)

"member in charge of the Bill" means the member who has introduced the Bill and any Minister in the case of a Government Bill;

(m)

"Minister" means a member of the Council of Ministers [and includes a member of the Cabinet]

[Inserted by L.S. Bn. (II) 9.5.1989, para 2930.]

, a Minister of State, a Deputy Minister or a Parliamentary Secretary;

[Explanation.:

[Added by L.S. Bn. (II) 9.5.1989, para 2930.]

- A Parliamentary Secretary who is not a member of the House, is not entitled to attend its sitting.]

(n)

"Parliamentary Committee" means a Committee which is appointed or elected by the House or nominated by the Speaker and which works under the direction of the Speaker and presents its report to the House or to the Speaker and the Secretariat for which is provided by the Lok Sabha Secretariat;

(o)

"precincts of the House" means and includes the Chamber, the Lobbies, the Galleries and such other places as the Speaker may from time to time specify;

(p)

"private member" means a member other than a Minister;

(q)

"Secretary-General" means the Secretary-General to the House of the People (Lok Sabha) and includes any person for the time being performing the duties of the Secretary-General; and

(r)

"Table" means the Table of the House.

(2)

Words and expressions used in the Constitution and also in these rules shall, unless the context otherwise requires, have the meanings assigned to them in the Constitution.

Chapter II

Summons to Members, Seating, Oath or Affirmation and Roll of Members

3.

Summons.

- The Secretary-General shall issue a summons to each member specifying the date and place for a session of the House:

Provided that when a session is called at short notice or emergently, summons may not be issued to each member separately but an announcement of the date and place of the session shall be published in the Gazette and made in the press, and members may be informed by telegram.

4.

Seating.

- The members shall sit in such order as the Speaker may determine.

5.

Oath or affirmation.

- A member who has not already made and subscribed an oath or affirmation, in pursuance of article 99 of the Constitution, may do so at the commencement of a sitting of the House, or at any other time of the sitting of the House, as the Speaker may direct, on any day after giving previous notice in writing to the Secretary-General.

6.

Roll of Members.

- There shall be a Roll of Members of the House which shall be signed in the presence of the Secretary-General by every member, before taking one's own seat.

Chapter III

Election of Speaker and Deputy Speaker and Nomination of Panel of Chairpersons

7.

Election of Speaker.

(1)

The election of a Speaker shall be held on such date as the President may fix, and the Secretary-General shall send to every member notice of this date.

(2)

At any time before noon on the day preceding the date so fixed, any member may give notice in writing, addressed to the Secretary-General, of a motion that another member be chosen as the Speaker of the House, and the notice shall be seconded by a third member and shall be accompanied by a statement by the member whose name is proposed in the notice that the member proposed is willing to serve as Speaker, if elected:

Provided that a member shall not propose one's own name, or second a motion proposing the member's own name, or propose or second more than one motion.

(3)

[A member in whose name a motion stands on the list of business shall, unless makes a statement conveying unwillingness to move the motion, move the motion when called upon to do so.]

[Substituted by L.S. Bn. (II) 9-5-1989, para 2930.]

Provided that such statement shall be confined to, conveying the unwillingness, or moving the motion for decision of the House under sub-rule (4).

(4)

The motions which have been moved and duly seconded shall be put one by one in the order in which they have been moved, and decided, if necessary, by division. If any motion is carried, the person presiding shall, without putting later motions, declare that the member proposed in the motion which has been carried, has been chosen as the Speaker of the House.

8.

Election of Deputy Speaker.

(1)

The election of a Deputy Speaker shall be held on such date as the Speaker may fix, and the Secretary-General shall send to every member notice of this date.

(2)

At any time before noon on the day preceding the date so fixed, any member may give notice in writing, addressed to the Secretary-General, of a motion that another member be chosen as the Deputy Speaker of the House and the notice shall be seconded by a third member and shall be accompanied by a statement by the member whose name is proposed in the notice that the member proposed is willing to serve as Deputy Speaker, if elected:

Provided that a member shall not propose one's own name, or second a motion proposing the member's own name, or propose or second more than one motion.

(3)

[A member in whose name a motion stands on the list of business shall, unless makes a statement conveying unwillingness to move the motion, move the motion when called upon to do so. In either case the member shall confine to making of a statement conveying the intention to move or not to move the motion.]

[Substituted by L.S. Bn. (II) dated 9.5.1989, para 2930.]

(4)

The motions which have been moved and duly seconded shall be put one by one in the order in which they have been moved, and decided, if necessary, by division. If any motion is carried, the person presiding shall, without putting later motions, declare that the member proposed in the motion which has been carried, has been chosen as the Deputy Speaker of the House.

9.

Nomination of Panel of Chairpersons.

(1)

At the commencement of the House or from time to time, as the case may be, the Speaker shall nominate from amongst the members a panel of not more than [ten]

[Substituted by L.S. Bn. (II) dated 4.8.1993, para 2298.]

Chairpersons, anyone of whom may preside over the House in the absence of the Speaker and the Deputy Speaker when so requested by the Speaker or, in the absence of the Speaker, by the Deputy Speaker.

(2)

A Chairperson nominated under sub-rule (1) shall hold office until a new panel of Chairpersons is nominated.

10.

Powers of Deputy Speaker or other member presiding.

- The Deputy Speaker or any other member competent to preside over a sitting of the House under the Constitution or these rules shall, when so presiding, have the same powers as the Speaker when so presiding and all references to the Speaker in these rules shall in these circumstances be deemed to be references to any such person so presiding.

Powers of Deputy Speaker or other member presiding.

Chapter IV

Sittings of the House

11.

Duly constituted sitting.

- A sitting of the House is duly constituted when it is presided over by the Speaker or any other member competent to preside over a sitting of the House under the Constitution or these rules.

12.

[Commencement and conclusion of sitting.

[Substituted by L.S. Bn. (II) dated 9.5.1989, para 2930.]

- Unless the Speaker otherwise directs, sitting of the House on any day shall ordinarily commence at 11.00 hours and conclude at 18.00 hours with a lunch break for one hour which may ordinarily be from 13.00 hours to 14.00 hours.]

13.

Days of sittings.

- The House shall sit on such days as the Speaker, having regard to the state of business of the House, may from time to time direct.

14.

[

*

* ***.]

[Omitted by L.S. Bn. (II) dated 9.5.1989, para 2930.]

15.

Adjournment of House [and procedure for reconvening.]

[Added by L.S. Bn. (II) dated 9.5.1989, para 2930.]

(1)

The Speaker shall determine the time when a sitting of the House shall be adjourned sine die or to a particular day, or to an hour or part of the same day:

Provided that the Speaker, if thinks fit, may call a sitting of the House before the date or time to which it has been adjourned or at any time after the House has been adjourned sine die.

(2)

[In case the House, after being adjourned is reconvened under proviso to sub-rule (1), the Secretary- General shall communicate to each member the date, time, place and duration of the next part of the session.]

[Added by L.S. Bn. (II) dated 9.5.1989, para 2930.]

Chapter V

President's Address and Messages to The House

16.

Allotment of time for discussion of the Address.

- The Speaker shall, in consultation with the Leader of the House, allot time for the discussion of the matters referred to in the President's Address to the Houses under article 87(1) of the Constitution.

17.

Scope of discussion.

- On such day or days or part of any day, the House shall be at liberty to discuss the matters referred to in such Address on a Motion of Thanks moved by a member and seconded by another member.

18.

Amendments.

- Amendments may be moved to such Motion of Thanks in such form as may be considered appropriate by the Speaker.

19.

Other business that may be taken up.

(1)

Notwithstanding that a day has been allotted for discussion on the President's Address, -

(a)

a motion or motions for leave to introduce a Bill or Bills may be made and a Bill or Bills may be introduced on such day; and

(b)

other business of a formal character may be transacted on such day before the House commences or continues the discussion on the Address.

(2)

The discussion on the Address may be postponed in favour of a Government Bill or other Government business on a motion being made that the discussion on the Address be adjourned to a subsequent day to be appointed by the Speaker. The Speaker shall forthwith put the question, no amendment or debate being allowed.

(3)

The discussion on the Address shall be interrupted in the course of a sitting by an adjournment motion under rule 61.20.

[Right of reply.]

[Substituted By L.S. Bn. (II), Dated 9.5.1989, Para 2930.]

(1)

The Prime Minister or any other Minister shall, whether previously taken part in the discussion or not, have on behalf of the Government a general right of explaining the position of the Government at the end of the discussion and the Speaker may enquire how much time will be required for the speech so that the Speaker may fix the hour by which the discussion shall conclude.

(2)

[The mover or the seconder shall not have any right of reply after the Prime Minister or any other Minister has explained the position of the Government at the end of the discussion.]

[Added By L.S. Bn. (II), Dated 9.5.1989, Para 2930.]

21.

Time limit for speeches.

- The Speaker, if thinks fit, may prescribe a time limit for speeches after taking the sense of the House.

22.

President's Address under art. 86(1).

- The Speaker may allot time for the discussion of the matters referred to in the President's Address under article 86(1) of the Constitution.

23.

Messages from President.

- The Speaker shall, on receiving a message from the President for the House under clause (2) of article 86 of the Constitution, read such message to the House and give necessary directions in regard to the procedure that shall be followed for the consideration of matters referred to in the message. In giving these directions, the Speaker shall be empowered to suspend or vary the rules to such extent as may be necessary.

24.

President's Address on prorogation.

- The President, on proroguing the House or Houses, may address the House or Houses, as the case may be.

Chapter VI

Arrangement of Business and List of Business

25.

Arrangement of Government business.

- On days allotted for the transaction of Government business, such business shall have precedence and the Secretary-General, shall arrange that business in such order as the Speaker may, after consultation with the Leader of the House, determine:

Provided that such order of business shall not be varied on the day that business is set down for disposal unless the Speaker is satisfied that there is sufficient ground for such variation.

26.

Allotment of time for private members' business.

- The last two and a half hours of a sitting on Friday shall be allotted for the transaction of private members' business:

Provided that the Speaker may allot different Fridays for the disposal of different classes of such business and on Fridays so allotted for any particular class of business, business of that class shall have precedence:

Provided further that the Speaker may, in consultation with the Leader of the House, allot any day other than a Friday for

the transaction of private members' business:

Provided further that if there is no sitting of the House on a Friday, the Speaker may direct that two and a half hours on any other day in the week may be allotted for private members' business.

27.

Precedence of private members' Bills.

(1)

On a day allotted for the disposal of private members' Bills, such Bills shall have relative precedence in the following order, namely: -

(a)

Bills in respect of which the motion is that leave be granted to introduce the Bill;

(b)

Bills returned by the President with a message under article 111 of the Constitution;

(c)

Bills which have been passed by the House and returned by the Council with amendments;

(d)

Bills which have been passed by the Council and transmitted to the House;

(e)

Bills in respect of which a motion has been carried that the Bill be taken into consideration;

(f)

Bills in respect of which the report of a Joint or Select Committee has been presented;

(g)

Bills which have been circulated for the purpose of eliciting opinion thereon;

(h)

Bills introduced and in respect of which no further motion has been made or carried; and

(i)

other Bills.

(2)

The relative precedence of Bills falling under the same clause of sub-rule (1) shall be determined by ballot to be held in accordance with the orders made by the Speaker and on such day and in such manner as the Speaker may direct:

Provided that the motion in respect of Bills falling under clause (a) of sub-rule (1) shall be entered in the list of business in the order in which notices of such motions have been received in point of time:

Provided further that Bills falling under clause (h) of sub-rule (1) which are classified by the Committee on Private Members' Bills and Resolutions as category A shall have precedence over Bills classified as category B, and that the relative precedence of Bills falling under each of these categories shall be determined by ballot separately:

[Provided further that where the Committee on Private Members' Bills and Resolutions has classified the Bills falling under clause (h) of sub-rule (1) as category A and number thereof is twenty or more, ballot of category B Bills may not be held]

[Substituted by L.S. Bn. (II), dated 9.5.1989, para 2930.]

:

Provided further that where the Committee has not classified the Bills falling under clause (h) of sub-rule (1) as category A and category B, the order in which such Bills shall be put down in the list of business shall be determined by ballot in accordance with such directions as the Speaker may give.

(3)

The Speaker may, by special order to be announced in the House, make such variations in the relative precedences of Bills set out in sub-rule (1) as the Speaker may consider necessary or convenient.

28.

Precedence of private members' resolutions.

- [A ballot of names of members desiring to move a resolution shall be held in accordance with orders made by the Speaker, on such day as the Speaker may direct.]

[Substituted by L.S. Bn. (II), dated 9.5.1989, para 2930.]

29.

Private members' business outstanding at end of day.

- Private members' business set down for the day allotted for that class of business and not disposed of on that day shall not be set down for any subsequent day, unless it has gained priority at the ballot held with reference to that day:

Provided that notwithstanding anything contained in rules 27 and 28 any such business which is under discussion at the end of that day shall be set down for the next day allotted to business of that class, and shall have precedence over all other business set down for that day.

30.

Resumption of adjourned debate on private members' Bill or resolution.

(1)

When on a motion being carried the debate on a private member's Bill or resolution is adjourned to the next day allotted for private members' business in the same or next session, it shall not be set down for further discussion unless it has gained priority at the ballot.

(2)

When the debate on a private member's Bill or resolution is adjourned sine die and if the member in charge of the Bill or as the case may be the mover of the resolution, wishes to proceed with such Bill or resolution on a subsequent day allotted for private members' business, may give notice for resumption of the adjourned debate and on receipt of such notice the relative precedence of such Bill or resolution shall be determined by ballot.

31.

List of business.

(1)

A list of business for the day shall be prepared by the Secretary-General, and a copy thereof shall be made available for the use of every member.

(2)

Save as otherwise provided in these rules, no business not included in the list of business for the day shall be transacted at any sitting without the permission of the Speaker.

(3)

Save as otherwise provided in these rules, no business requiring notice shall be set down for a day earlier than the day after that on which the period of the notice necessary for that class of business expires.

(4)

Unless the Speaker otherwise directs, not more than three resolutions (in addition to any resolution which is outstanding under the proviso to rule 29) shall be set down in the list of business for any day allotted for the disposal of private members' resolutions.

Chapter VII

Questions

32.

Question hour.

- Unless the Speaker otherwise directs, the first hour of every sitting shall be available for the asking and answering of questions.

33.

Period of notice.

- Unless the Speaker otherwise directs, [not less than fifteen clear days]

[Substituted by L.S. Bn. (II), dated 19.3.2010, para 1265.]

notice of a question shall be given.

34.

Form of notice.

(1)

Notice of a question shall be given in writing to the Secretary-General and shall specify -

(a)

[the text of the question;]

[Inserted by L.S. Bn. (II), dated 9.5.1989, para 2930.]

(b)

[the official designation of the Minister to whom the question is addressed;

[Clauses (a) and (b) relettered as (b) and (c) and clause (c) so relettered Substituted by L.S. Bn. (II), dated 9.5.1989, para 2930.]

(c)

the date on which answer to the question is desired; and]

(d)

[the order of preference, if any, for its being placed on the list of questions, where a member tables more than one notice of questions for the same day.]

[Added by L.S. Bn. (ii) dated 9.5.1989, para 2930.]

(2)

Where a notice is signed by more than one member, it shall be deemed to have been given by the first signatory only.

35.

Notice of admitted questions to Ministers.

- Unless the Speaker otherwise directs, no question shall be placed on the list of questions for answer until five days have expired from the day when notice of such question was given by the Secretary- General to the Minister to whom it was addressed.

36.

Starred questions.

- A member who desires an oral answer to one's question shall distinguish it by an asterisk. If the member does not distinguish it by an asterisk, the question shall be placed on the list of questions for written answer.

37.

Limit of number of Starred questions.

(1)

Not more than one question distinguished by [an]

[Inserted by L.S. Bn. (II), dated 9.5.1989, para 2930.]

asterisk by the same member and not more than twenty questions in all shall be placed on the list of questions for oral answer on any one day:

Provided that when a question is postponed or transferred from one list of questions for oral answer to another, more than one question may stand in the name of one member and the total number of questions may exceed by such postponed or transferred question.

(2)

[Unless the Speaker otherwise directs, where a member has given more than one notice of questions distinguished by an asterisk for same day, the member's question for the list of questions for oral answer shall be selected in the order indicated by the member and if no such order is indicated, any of these questions shall be placed on the list of questions for oral answer in the order in which notices are received in point of time.]

[Substituted by L.S. Bn. (II), dated 9.5.1989, para 2930.]

38.

Rotational allotment of days for questions.

- The time available for answering questions shall be allotted on different days in rotation for the answering of questions relating to such Ministry or Ministries as the Speaker may, from time to time, provide, and on each such day, unless the Speaker with the consent of the Minister concerned otherwise directs, only questions relating to the Ministry or Ministries for which time has been allotted on that day shall be placed on the list of questions for oral answer.

39.

Unstarred questions.

(1)

If a question is not distinguished by an asterisk or if a question placed on the list of questions for oral answer on any day is not called for answer within the time available for answering questions on that day, [* * *]

[Omitted by L.S. Bn. (II), dated 19.3.2010, para 1265.]

a written answer to such question shall be deemed to have been laid on the Table at the end of the Question Hour or as soon as the questions for oral answer have been disposed of, as the case may be, by the Minister to whom the question is addressed.

[* * *]

[Omitted by L.S. Bn. (II), dated 19.3.2010, para 1265.]

(2)

[If there is no Question Hour owing to the cancellation of a sitting or its adjournment without transacting any business, the answers to questions included in the lists of questions for oral as well as written answer shall be deemed to have been laid on the Table by the Ministers to whom such questions are addressed at the next sitting of the House after the Question Hour and form part of the proceedings of that day.]

[Substituted by L.S. Bn. (II), dated 9.5.1989, para 2930.]

(3)

If the Question Hour on any day is dispensed with [* * *]

[Omitted by L.S. Bn. (II), dated 19.3.2010, para 1265.]

for any [* * *]

[Omitted by L.S. Bn. (II), dated 19.3.2010, para 1265.]

reason, the answers to questions included in the lists of questions for oral as well as written answers for that day shall be deemed to have been laid on the Table by the Ministers to whom such questions are addressed and shall form part of the proceedings of the day:

Provided that if the House does not continue with its sitting after dispensing with [* * *]

[Omitted by L.S. Bn. (II), dated 19.3.2010, para 1265.]

the Question Hour, the answers to questions included in the lists of questions for oral as well as written answer for that day shall be deemed to have been laid on the Table after the Question Hour at the next sitting of the House and shall form part of the proceedings of that day:

Provided further that if the Question Hour is interrupted after having taken up the list of questions for oral answer and the list is partly disposed of and the sitting continues, answers to remaining questions in the list of questions for oral answer and answers to questions in the list of questions for written answer shall be deemed to have been laid on the Table after 12 O'clock and form part of the proceedings of the day.

(4)

[If the last sitting of a session is cancelled, the questions in the lists of questions for oral as well as written answer for that day shall lapse.]

[Added by L.S. Bn. (II), dated 9.5.1989, para 2930.]

40.

Questions to private members.

- A question may be addressed to a private member provided the subject matter of the question relates to some Bill, resolution or other matter connected with the business of the House for which that member is responsible; and the procedure in regard to such questions shall, as far as may be, be the same as that followed in the case of questions addressed to a Minister with such variations as the Speaker may consider necessary or convenient.

41.

Admissibility of questions.

(1)

Subject to the provisions of sub-rule (2), a question may be asked for the purpose of obtaining information on a matter of public importance within the special cognizance of the Minister to whom it is addressed.

(2)

The right to ask a question is governed by the following conditions, namely: -

(i)

[it shall be clearly and precisely expressed and shall not be too general incapable of any specific answer or in the nature of a leading question;]

[Inserted by L.S. Bn. (II), dated 9.5.1989, para 2930.]

(ii)

[it shall not bring in any name or statement not strictly necessary to make the question intelligible;

[Renumbered by L.S. Bn. (II), dated 9.5.1989, para 2930.]

(iii)

if it contains a statement the member shall make oneself responsible for the accuracy of the statement;

(iv)

it shall not contain arguments, inferences, ironical expressions, imputations, epithets or defamatory statements;

(v)

it shall not ask for an expression of opinion or the solution of an abstract legal question or of a hypothetical proposition;

(vi)

it shall not ask as to the character or conduct of any person except in that person's official or public capacity;

(vii)

it shall not ordinarily exceed 150 words;

(viii)

it shall not relate to a matter which is not primarily the concern of the Government of India;

(ix)

it shall not ask about proceedings in the Committee which have not been placed before the House by a report from the Committee.

(x)

it shall not reflect on the character or conduct of any person whose conduct can only be challenged on a substantive motion;

(xi)

it shall not make or imply a charge of a personal character;

(xii)

it shall not raise questions of policy too large to be dealt with within the limits of an answer to a question;

(xiii)

it shall not repeat in substance questions already answered or to which an answer has been refused;

(xiv)

it shall not ask for information on trivial matters;

(xv)

it shall not ordinarily ask for information on matters of past history;

(xvi)

it shall not ask for information set forth in accessible documents or in ordinary works of reference;

(xvii)

it shall not raise matters under the control of bodies or persons not primarily responsible to the Government of India;

(xviii)

it shall not ask for information on matter which is under adjudication by a court of law having jurisdiction in any part of India;

(xix)

it shall not relate to a matter with which a Minister is not officially [concerned];

(xx)

it shall not refer discourteously to a friendly foreign country;

(xxi)

[it shall not seek information about matters which are in their nature secret, such as composition of Cabinet Committees, Cabinet discussions, or advice given to the President in relation to any matter in respect of which there is a constitutional, statutory or conventional obligation not to disclose information;]

[Substituted by L.S. Bn. (II), dated 9.5.1989, para 2930.]

(xxii)

it shall not ordinarily ask for information on matters which are under consideration of a Parliamentary Committee; and

(xxiii)

it shall not ordinarily ask about matters pending before any statutory tribunal or statutory authority performing any judicial or quasi-judicial functions or any commission or court of enquiry appointed to enquire into, or investigate, any matter but may refer to matters concerned with procedure or subject or stage of enquiry, if it is not likely to prejudice the consideration of the matter by the tribunal or commission or court of enquiry.]

42.

Questions on matters of correspondence between Government of India and State Governments.

- In matters which are or have been the subject of correspondence between the Government of India and the Government of a State, no question shall be asked except as to matters of fact, and the answer shall be confined to a statement of fact.

43.

Speaker to decide admissibility.

(1)

The Speaker shall decide whether a question, or a part thereof, is or is not admissible under these rules and may disallow any question, or a part thereof, when in the opinion of the Speaker, it is an abuse of the right of questioning or is calculated to obstruct or prejudicially affect the procedure of the House or is in contravention of these rules.

(2)

Subject to the provisions of rule 38, the Speaker may direct that a question be placed on the list of questions for answer on a date later than that specified by a member in the notice if the Speaker is of the opinion that a longer period is necessary to decide whether the question is or is not admissible.

44.

Speaker to decide if a question is to be treated as starred or unstarred.

- If in the opinion of the Speaker any question put down for oral answer is of such a nature that a written reply would be more appropriate, the Speaker may direct that such question be placed on the list of questions for written answer:

Provided that the Speaker, if thinks fit, may call upon the member who has given notice of a question for oral answer to state in brief the reasons for desiring an oral answer and, after considering the same, may direct that the question be included in the list of questions for written answer.

45.

[Limit of number of unstarred questions.

[Substituted by L.S. Bn. (II), dated 9.5.1989, para 2930.]

(1)

Questions which have been admitted and not included in the list of questions for oral answer shall be included in the list of questions for written answer, in accordance with the orders of the Speaker.

(2)

In the list of questions for written answer on any one day, not more than four questions by the same member if she or he has one question in the list of questions for oral answer, and not more than five questions if that member has none in the list of questions for oral answer, and not more than 230 questions in all, shall be included:

Provided that these limits may be exceeded by the number of questions transferred or postponed from one list of questions for written answer to another:

Provided further that the overall limit of 230 questions in the list of questions for written answer on any one day may exceed by the number of questions pertaining to a State or States under President's Rule subject to the maximum limit of 25.]

46.

Order in which starred questions to be called.

- Questions for oral answers shall be called [* * *]

[Omitted by L.S. Bn. (II), dated 19.3.2010, para 1265.]

in the order in which they stand on the list [* * *]

[Omitted by L.S. Bn. (II), dated 19.3.2010, para 1265.]

:

Provided that a question not reached for oral answer may be answered after the end of the Question Hour with the permission of the Speaker if the Minister represents to the Speaker that the question is one of special public interest to which the Minister desired to give a reply.

47.

Withdrawal or postponement of questions.

- A member may, by notice given at any time before the sitting for which such member's question has been placed on the list, withdraw the question, or postpone it to a later day to be specified in the notice and on such later day the question shall, subject to the provisions of rule 38, be placed on the list after all questions which have not been so postponed:

Provided that a postponed question shall not be placed on the list until two clear days have expired from the day when the notice of postponement has been received by the Secretary-General.

48.

Mode of asking questions.

(1)

When the time for asking questions arrives, the Speaker shall call successively each member in whose name a question appears on the list of questions.

(2)

The member so called shall rise in one's own place and, unless the member expresses unwillingness to ask the question standing in the name of such member, ask the question by reference to its number on the list of questions.

(3)

If on a question being called it is not asked [or]

[Substituted by L.S. Bn. (II), dated 19.3.2010, para 1265.]

the member in whose name it stands is absent, the Speaker may [* * *]

[Omitted by L.S. Bn. (II), dated 19.3.2010, para 1265.]

direct that the answer to it be given.

49.

[* * *]

[Omitted by L.S. Bn. (II), dated 19.3.2010, para 1265.]

50.

Supplementary questions.

- [(1) The member in whose name a question is listed for oral answer or any other member, when called by the Speaker, may ask a supplementary question for the purpose of further elucidating any matter of fact regarding which an answer has been given.

(2)

A supplementary question, shall be held out of order by the Speaker if, in the opinion of the Speaker: -

(i)

it does not arise from the main question or its answer;

(ii)

instead of seeking information, it gives information;

(iii)

it involves more than one separate issues;

(iv)

it seeks confirmation or denial of an opinion; and

(v)

it infringes any of the rules regarding questions.

(3)

No discussion shall be permitted during the time for questions under rule 32 in respect of any question or of any answer given to a question]

[Substituted by L.S. Bn. (II), dated 9.5.1989, para 2930.]

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51.

Answers not to refer to proceedings in Council.

- An answer to question in the House shall not refer to the answer to a question or proceedings in the Council during a current session.

52.

Lapse of pending questions referred to members.

- Where a reference is made to a member in connection with the notice of a question and no reply is received or a reply received from such member is too late for the consideration of the Speaker and the placing of the question, if admitted, on the list of questions for an appropriate date, such notice shall be deemed to have lapsed.

53.

Prohibition of advance publicity of answers.

- Answers to questions which Ministers propose to give in the House shall not be released for publication until the answers have actually been given on the floor of the House or laid on the Table.

54.

Short notice questions.

(1)

A question relating to a matter of public importance may be asked with notice shorter than ten clear days and the Speaker, if, is of the opinion that the question is of an urgent character, may direct that an enquiry may be made from the Minister concerned if such Minister is in a position to reply and, if so, on what date.

(2)

If the Minister concerned agrees to reply, such question shall be answered on a day to be indicated by the Minister and shall be called immediately after the questions which have appeared on the list of questions for oral answer have been disposed of.

(3)

If the Minister is unable to answer the question at short notice and the Speaker is of the opinion that the question is of sufficient public importance to be orally answered in the House, the Speaker may direct that the question be placed as the first question on the list of questions for the day on which it would be due for answer under rule 33:

Provided that not more than one such question shall be accorded first priority on the list of questions for any one day.

(3A)

Where a notice of a short notice question is signed by more than one member, it shall be deemed to have been given by the first signatory only.

(4)

Where two or more members give short notice questions on the same subject and one of the questions is accepted for answer at short notice, names of not more than four members, other than the one whose notice has been admitted, as determined by ballot, shall be shown against the admitted question:

Provided that the Speaker may direct that all the notices be consolidated into a single notice, if in the opinion of the Speaker, it is desirable to have a single self-contained question covering all the important points raised by members, and the Minister shall then give reply to the consolidated question:

Provided further that in the case of consolidated question, names of not more than four members, other than the one whose notice has been admitted, as determined by ballot, shall be shown against the question.

(5)

Where a member desires an oral answer to a question at a shorter notice, such Member shall briefly state the reasons for asking the question with short notice. Where no reasons have been assigned in the notice of the question, the question shall be returned to the member.

(6)

The member who has given notice of the question shall be in one's own seat to ask the question by reference to its number on the list of questions when called by the Speaker and the Minister concerned shall give a reply immediately:

Provided that when a question is shown in the names of more than one member the Speaker shall call the name of the first member or, in the absence of that member, any other name.

(7)

In other respects, the procedure for short notice questions shall be the same as for ordinary questions for oral answer with such modifications as the Speaker may consider necessary or convenient.

Chapter VIII

Half-an-Hour Discussions

55.

Discussion on matter arising out of answer to question.

(1)

The Speaker may allot half an hour on three sittings in a week, for raising discussion on a matter of sufficient public importance which has been the subject of a recent question, oral or written, and the answer to which needs elucidation on a matter of fact.

(2)

A member wishing to raise a matter shall give notice in writing to the Secretary-General three days in advance of the day on which the matter is desired to be raised, and shall shortly specify the point or points such member wishes to raise:

Provided that the notice shall be accompanied by an explanatory note stating the reasons for raising discussion on the matter in question:

Provided further that if a notice is signed by more than one member it shall be deemed to have been given by the first signatory only:

Provided further that the Speaker may with the consent of the Minister concerned waive the requirement concerning the period of notice.

(3)

The Speaker shall decide whether the matter is of sufficient public importance to be put down for discussion, and may not admit a notice which, in the opinion of the Speaker seeks to revise the policy of Government.

(4)

If more than two notices have been received and admitted by the Speaker, the Secretary-General shall hold a ballot with a view to draw two notices and the notices shall be put down in the order in which they were received in point of time:

Provided that if any matter put down for discussion on a particular day is not disposed of on that day it shall not be set down for any other day, unless the member so desires, in which case it shall be included in the ballot for the next available day. Discussion on matter arising out of answer to question.

(5)

There shall be no formal motion before the House nor voting. The member who has given notice may make a short statement and the [members who have previously intimated to the Speaker may ask a question for the purpose of further elucidating any matter of fact. Thereafter, the Minister shall reply shortly]

[Substituted by L.S. Bn. (II), dated 9.5.1989, para 2930.]

:

Provided that not more than four members who have previously intimated to the Secretary-General may be permitted to ask a question each for the purpose of further elucidating any matter of fact.

Explanation. - A member wishing to ask a question shall make such request in writing before the commencement of the sitting at which the discussion is to take place. If such requests are received from more than four members, a ballot shall be held to determine the names of first four members who may be permitted to ask a question each.

Chapter IX

Adjournment Motions

56.

Speaker's consent.

- Subject to the provisions of these rules, a motion for an adjournment of the business of the House for the purpose of discussing a definite matter of urgent public importance may be made with the consent of the Speaker.

57.

Notice.

- [Notice of an adjournment motion shall be given by 10.00 hours on the day on which the motion is proposed to be made to the Secretary-General and copies thereof shall be endorsed to: -

(i)

the Speaker;

(ii)

the Minister concerned;

(iii)

the Minister of Parliamentary Affairs:

Provided that notices, received after 10.00 hours shall be deemed to have been received at 10.00 hours on the next day on which the House sits:

Provided further that no member shall give more than one such notice for any one sitting.

Explanation. - (i) Where a notice is signed by more than one member, it shall be deemed to have been given by the first signatory only.

(ii)

A ballot shall be held to determine the relative priority of all notices on the same subject for the sitting for which they are valid.]

58.

Restrictions on right to move motion.

- The right to move the adjournment of the House for the purpose of discussing a definite matter of urgent public importance shall be subject to the following restrictions, namely: -

(i)

not more than one such motion shall be made at the same sitting;

(ii)

not more than one matter shall be discussed on the same motion;

(iii)

the motion shall be restricted to a specific matter of recent occurrence [involving responsibility of the Government of India]

[Added by L.S. Bn. (II) dated 9.5.1989, para 2930.]

;

(iv)

the motion shall not raise a question of privilege;

(v)

the motion shall not revive discussion on a matter which has been discussed in the same session;

(vi)

the motion shall not anticipate a matter, which has been previously appointed for consideration. In determining whether a discussion is out of order on the ground of anticipation, regard shall be had by the Speaker to the probability of the matter anticipated being brought before the House within a reasonable time;

(vii)

the motion shall not deal with any matter which is under adjudication by a court of law having jurisdiction in any part of India; and

(viii)

the motion shall not raise any question which under the Constitution or these rules can only be raised on a distinct motion by a notice given in writing to the Secretary-General.

59.

Matters before tribunals, commissions, etc.

- No motion which seeks to raise discussion on a matter pending before any statutory tribunal or statutory authority performing any judicial or quasi judicial functions or any commission or court of enquiry appointed to enquire into, or investigate, any matter shall ordinarily be permitted to be moved:

Provided that the Speaker may while exercising discretion allow such matter being raised in the House as is concerned with the procedure or subject or stage of enquiry if the Speaker is satisfied that it is not likely to prejudice the consideration of such matter by the statutory tribunal, statutory authority, commission or court of enquiry.

60.

Leave to move adjournment motion.

(1)

The Speaker, if gives consent under rule 56 and holds that the matter proposed to be discussed is in order, shall call the member concerned who shall rise in one's own place and ask for leave to move the adjournment of the House:

Provided that where the Speaker has refused consent under rule 56 or is of opinion that the matter proposed to be discussed is not in order, the Speaker may, if thinks it necessary, read the notice of motion and state the reasons for refusing consent or holding the motion as being not in order:

Provided further that where the Speaker is not in possession of full facts about the matter mentioned therein, the Speaker may before giving or refusing consent read the notice of the motion and hear from the Minister, or members concerned, a brief statement on facts and then give decision on the admissibility of the motion.

(2)

If objection to leave being granted is taken, the Speaker shall request those members who are in favour of leave being granted to rise in their places, and if not less than fifty members rise accordingly, the Speaker shall intimate that leave is

granted. If less than fifty members rise, the Speaker shall inform that the member has not the leave of the House.

61.

Time for taking up motion.

- The motion 'that the House do now adjourn' shall be taken up at 16.00 hours or at an earlier hour if the Speaker, after considering the state of business in the House, so directs.

62.

Closure of debate.

- The Speaker may, on being satisfied that there has been adequate debate, put the question at 18.30 hours or at such other hour not being less than two hours and thirty minutes from the time of commencement of the debate.

63.

Time limit for speeches.

- The Speaker shall prescribe a time limit for speeches.

Chapter X

Legislation

I. Bills originating in the House

Introduction and Publication of Bills

64.

Publication of Bill in Gazette before introduction.

- The Speaker, on request being made, may order the publication of any Bill (together with the Statement of Objects and Reasons, the memorandum regarding delegation of legislative power and the financial memorandum accompanying it) in the Gazette, although no motion has been made for leave to introduce the Bill. In that case, it shall not be necessary to move for leave to introduce the Bill, and, if the Bill is afterwards introduced, it shall not be necessary to publish it again.

65.

Notice for leave to introduce private members' Bills.

(1)

Any member, other than a Minister, desiring to move for leave to introduce a Bill, shall give notice of one's intention, and shall, together with the notice, submit a copy of the Bill and an explanatory Statement of Objects and Reasons which shall not contain arguments:

Provided that the Speaker, if thinks fit, may revise the Statement of Objects and Reasons.

(2)

If the Bill is a Bill which under the Constitution cannot be introduced without the previous sanction or recommendation of the President, the member shall annex to the notice such sanction or recommendation conveyed through a Minister, and the notice shall not be valid until this requirement is complied with.

(3)

The period of notice of a motion for leave to introduce a Bill under this rule shall be one month unless the Speaker allows the motion to be made at shorter notice.

(4)

The Speaker may disallow a notice of a Bill in case the Bill does not comply with the requirement of sub-rule (2) of this rule, or rule 69 or 70.

66.

Bill dependent on another pending Bill.

- A Bill, which is dependent wholly or partly upon another Bill pending before the House, may be introduced in the House in anticipation of the passing of the Bill on which it is dependent:

Provided that the second Bill shall be taken up for consideration and passing in the House only after the first Bill has been passed by the Houses and assented to by the President.

67.

Identical Bills.

- When a Bill is pending before the House, notice of an identical Bill, whether received before or after the introduction of the pending Bill, shall be removed from, or not entered in, the list of pending notices, as the case may be, unless the Speaker otherwise directs.

68.

Communication of President's recommendation regarding Bill.

- The order of the President granting or withholding the sanction or recommendation to the introduction or consideration of a Bill shall be communicated to the Secretary-General by the Minister concerned in writing.

69.

Financial memorandum and clauses involving expenditure.

(1)

A Bill involving expenditure shall be accompanied by a financial memorandum which shall invite particular attention to the clauses involving expenditure and shall also give an estimate of the recurring and non-recurring expenditure involved in case the Bill is passed into law.

(2)

Clauses or provisions in Bills involving expenditure from the Consolidated Fund of India shall be printed in thick type or in italics:

[Provided that where a clause in a Bill involving expenditure is inadvertently not printed in thick type or in italics, the member in charge of the Bill shall, with the permission of the Speaker, bring such clauses to the notice of the House.]

[Substituted by L.S. Bn. (II) dated 9.5.1989, para 2930.]

70.

Memorandum regarding delegated legislation.

- A Bill involving proposals for the delegation of legislative power shall further be accompanied by a memorandum explaining such proposals and drawing attention to their scope and stating also whether they are of normal or exceptional character.

71.

Statement regarding Ordinances.

(1)

Whenever a Bill seeking to replace an Ordinance with or without modification is introduced in the House, shall be placed before the House along with the Bill a statement explaining the circumstances which had necessitated immediate legislation by Ordinance.

(2)

Whenever an Ordinance, which embodies wholly or partly or with modification the provisions of a Bill pending before the House is promulgated a statement explaining the circumstances which had necessitated immediate legislation by Ordinance shall be laid on the Table at the commencement of the session following the promulgation of the Ordinance.

72.

Procedure when introduction of Bill opposed.

(1)

If a motion for leave to introduce a Bill is opposed, the Speaker, if thinks fit, after permitting, brief statements from the member who opposes the motion and the member who moved the motion, may, without further debate, put the question:

Provided that where a motion is opposed on the ground that the Bill initiates legislation outside the legislative competence of the House, the Speaker may permit a full discussion thereon:

Provided further that the Speaker shall forthwith put to vote the motion for leave to introduce a Finance Bill or an Appropriation Bill.

(2)

[Notice to oppose introduction of a Bill shall be addressed to the Secretary-General [specifying clearly and precisely the objections to be raised]

[Added by L.S. Bn. (II) dated 9.5.1989, para 2930.]

and given by 10.00 hours on the day on which the motion for leave to introduce the Bill is included in the list of business.]

[Substituted by L.S. Bn. (II) dated 9.5.1989, para 2930.]

73.

Publication of Bill in Gazette after introduction.

- As soon as may be after a Bill has been introduced, the Bill, unless it has already been published, shall be published in

the Gazette.

Motions After Introduction of Bills and Scope of Debate

74.

Motions after introduction of Bills.

- When a Bill is introduced or on some subsequent occasion, the member in charge may make one of the following motions in regard to one's own Bill, namely: -

(i)

that it be taken into consideration; or

(ii)

that it be referred to a Select Committee of the House; or

(iii)

that it be referred to a Joint Committee of the Houses with the concurrence of the Council; or

(iv)

that it be circulated for the purpose of eliciting opinion thereon:

Provided that no such motion as is referred to in clause (iii) shall be made with reference to a Bill [if it contains only provisions dealing with all or any of the matters specified in sub-clauses (a) to (g) of clause (1) of article 110 of the Constitution]

[Substituted by L.S. Bn. (II) dated 9.5.1989, para 2930.]

:

Provided further that no such motion shall be made until after copies of the Bill have been made available for the use of members, and that any member may object to any such motion being made unless copies of the Bill have been so made available for two days before the day on which the motion is made and such objection shall prevail, unless the Speaker allows the motion to be made.

75.

Discussion of principle of Bill.

(1)

On a motion referred to in rule 74 being made, the principle of the Bill and its provisions may be discussed generally, but the details of the Bill shall not be discussed further than is necessary to explain its principles.

(2)

At this stage no amendments to the Bill may be moved, but -

(a)

if the member in charge moves that the Bill be taken into consideration any member may move as an amendment that the Bill be referred to a Select Committee of the House, or a Joint Committee of the Houses with the concurrence of the Council, or be circulated for the purpose of eliciting opinion thereon by a date to be specified in the motion;

(b)

if the member in charge moves that the Bill be referred to a Select Committee of the House, or a Joint Committee of the Houses with the concurrence of the Council, any member may move as an amendment that the Bill be referred to a Joint Committee of the Houses with the concurrence of the Council or a Select Committee, as the case may be, or that the Bill be circulated for the purpose of eliciting opinion thereon by a date to be specified in the motion.

(3)

Where a motion that a Bill be circulated for the purpose of eliciting opinion thereon is carried, and the Bill is circulated in accordance with that direction and opinions are received thereon, the member in charge, if so wishes to proceed with the Bill thereafter, shall move that the Bill be referred to a Select Committee of the House or a Joint Committee of the Houses with the concurrence of the Council, unless the Speaker allows a motion to be made that the Bill be taken into consideration:

Provided that if an amendment or a motion for appointment of a Select Committee or a Joint Committee has been moved under this Rule, any member may move that the House give instructions to the Select Committee or to the Joint Committee to which the Bill is proposed to be referred to make some particular or additional provision in the Bill and if necessary or convenient to consider and report on amendments which may be proposed to the original Act which the Bill seeks to amend:

Provided further that no amendment or a motion for appointment of a Joint Committee under this rule shall be moved

with reference to a Bill [if it contains only provisions dealing with all or any of the matters specified in sub-clauses (a) to (g) of clause (1) of article 110 of the Constitution.]

[Added by L.S. Bn. (II) dated 9.5.1989, para 2930.]

76.

Members entitled to move motions in respect of Bills.

- No motion that a Bill be taken into consideration or be passed shall be made by any member other than the member in charge of the Bill and no motion that a Bill be referred to a Select Committee of the House, or a Joint Committee of the Houses with the concurrence of the Council, or be circulated for the purpose of eliciting opinion thereon shall be made by any member other than the member in charge except by way of amendment to a motion made by the member in charge:

Provided that if the member in charge of a Bill is unable, for reasons which the Speaker considers adequate, to move the next motion in regard to that Bill at any subsequent stage after introduction, the member may authorise another member to move that particular motion with the approval of the Speaker.

Explanation. - Notwithstanding the provisions contained in the proviso the member who introduced the Bill shall continue to be the member in charge.

Motions After Presentation of Select/Joint Committee Reports and Scope of Debate

77.

Motions after presentation of Select/Joint Committee reports.

(1)

After the presentation of the final report of a Select Committee of the House or a Joint Committee of the Houses, as the case may be, on a Bill, the member in charge may move -

(a)

that the Bill as reported by the Select Committee of the House or the Joint Committee of the Houses, as the case may be, be taken into consideration; or

(b)

that the Bill as reported by the Select Committee of the House or the Joint Committee of the Houses, as the case may be, be re-committed to the same Select Committee or to a new Select Committee, or to the same Joint Committee or to a new Joint Committee with the concurrence of the Council, either -

(i)

without limitation, or

(ii)

with respect to particular clauses or amendments only, or

(iii)

with instructions to the Committee to make some particular or additional provision in the Bill, or

(c)

that the Bill as reported by the Select Committee of the House or the Joint Committee of the Houses, be circulated or recirculated, as the case may be, for the purpose of eliciting opinion or further opinion thereon:

Provided that any member may object to any such motion being made if a copy of the report has not been made available for the use of members for two days before the day on which the motion is made and such objection shall prevail, unless the Speaker allows the motion to be made.

(2)

If the member in charge moves that the Bill as reported by the Select Committee of the House or the Joint Committee of the Houses, as the case may be, be taken into consideration, any member may move as an amendment that the Bill be re-committed or be circulated or recirculated for the purpose of eliciting opinion or further opinion thereon.

78.

Scope of debate on Select/ Joint Committee reports.

- The debate on a motion that the Bill as reported by the Select Committee of the House or the Joint Committee of the Houses, as the case may be, be taken into consideration shall be confined to consideration of the report of the Committee and the matters referred to in that report or any alternative suggestions consistent with the principle of the Bill.

Amendments to Clauses etc. and Clause by Clause Consideration of Bills

79.

Notice of amendments to clauses or schedules.

(1)

If notice of an amendment to a clause or schedule of the Bill has not been given one day before that day on which the Bill is to be considered any member may object to the moving of the amendment, and such objection shall prevail, unless the Speaker allows the amendment to be moved:

Provided that, in the case of a Government Bill, an amendment, of which notice has been received from the member in charge, shall not lapse by reason of the fact that the member in charge has ceased to be a Minister or a member and such amendment shall be printed in the name of the new member in charge of the Bill.

(2)

The Secretary-General shall, if time permits, make available to the members from time to time lists of amendments of which notices have been received.

80.

Admissibility of amendments.

- The following conditions shall govern the admissibility of amendments to clauses or schedules of a Bill: -

(i)

An amendment shall be within the scope of the Bill and relevant to the subject-matter of the clause to which it relates.

(ii)

An amendment shall not be inconsistent with any previous decision of the House on the same question.

(iii)

An amendment shall not be such as to make the clause which it proposes to amend unintelligible or ungrammatical.

(iv)

If an amendment refers to, or is not intelligible without a subsequent amendment or schedule, notice of the subsequent amendment or schedule shall be given before the first amendment is moved, so as to make the series of amendments intelligible as a whole.

(v)

The Speaker shall determine the place at which an amendment shall be moved.

(vi)

The Speaker may refuse to propose an amendment which is, in the opinion of the Speaker, frivolous or meaningless.

(vii)

An amendment may be moved to an amendment which has already been proposed by the Speaker.

81.

President's recommendation regarding amendments.

- If any member desires to move an amendment which under the Constitution cannot be moved without the previous sanction or recommendation of the President, that member shall annex to the notice required by these rules such sanction or recommendation conveyed through a Minister and the notice shall not be valid until this requirement is complied with:

Provided that no previous sanction or recommendation of the President shall be required, if an amendment seeks to -

(a)

abolish or reduce the limits of the tax proposed in the Bill or amendment, or

(b)

increase such tax upto the limits of an existing tax.

82.

Communication of President's recommendation.

- The order of the President, granting or withholding the sanction or recommendation to an amendment to a Bill, shall be communicated to the Secretary-General by the Minister concerned in writing.

83.

Selection of new clauses or amendments.

- The Speaker shall have power to select the new clauses or amendments to be proposed, and, if thinks fit, may call upon any member who has given notice of an amendment to give such explanation of the object of the amendment as may enable the member to form a judgement upon it.

84.

Arrangement of amendments.

- Amendments of which notice has been given shall, as far as practicable, be arranged in the list of amendments, issued from time to time, in the order in which they may be called. In arranging amendments raising the same question at the same point of a clause, precedence may be given to an amendment [proposed]

[Substituted by L.S. Bn. (II) dated 9.5.1989, para 2930.]

by the member in charge of the Bill. Subject as aforesaid, amendments may be arranged in the order in which notices thereof are received.

85.

Order of amendments.

(1)

Amendments shall ordinarily be considered in the order of the clauses of the Bill to which they respectively relate; and in respect of any such clause a motion shall be deemed to have been made: "That this clause do stand part of the Bill."

(2)

The Speaker, if thinks fit, may put as one question similar amendments to a clause:

Provided that if a member requests that any amendment be put separately, the Speaker shall put that amendment separately.

86.

Moving of amendments.

- When a motion that a Bill be taken into consideration has been carried, any member may, when called upon by the Speaker, move an amendment to the Bill of which that Member has previously given notice:

Provided that in order to save time and repetition of arguments, a single discussion may be allowed to cover a series of inter-dependent amendments.

87.

Withdrawal of amendments.

- An amendment moved may, by leave of the House, but not otherwise be withdrawn on the request of the member moving it. If an amendment has been proposed to an amendment; the original amendment shall not be withdrawn until the amendment proposed to it has been disposed of.

88.

Submission of Bill clause by clause.

- Notwithstanding anything contained in these rules, the Speaker may, when a motion that a Bill be taken into consideration has been carried, submit the Bill, or any part of the Bill to the House clause by clause. The Speaker may call each clause separately, and, when the amendments relating to it have been dealt with, shall put the question: "That this clause (or, that this clause as amended, as the case may be) do stand part of the Bill".

89.

Postponement of clause.

- The Speaker, if thinks fit, may postpone the consideration of a clause.

90.

Consideration of schedules.

- The consideration of the schedule or schedules, if any, shall follow the consideration of clauses. Schedules shall be put from the Chair, and may be amended, in the same manner as clauses, and the consideration of new schedules shall follow the consideration of the original schedules. The question shall then be put: "That this schedule (or, that this schedule as amended, as the case may be) do stand part of the Bill":

Provided that the Speaker may allow the schedule or schedules, if any, being considered before the clauses are disposed of or along with a clause or otherwise as the Speaker may think fit.

91.

Voting on group of clauses and schedules.

- The Speaker, if thinks fit, may put as one question clauses and or schedules, or clauses and or schedules as amended, as the case may be, together to the vote of the House:

Provided that if a member requests that any clause or schedule, or any clause or schedule as amended, as the case may be, be put separately, the Speaker shall put that clause or schedule, or clause or schedule as amended, as the

case may be, separately.

92.

Clause one, Enacting Formula, Preamble and Title.

- Clause one, the Enacting Formula, the Preamble, if any, and the Title of a Bill shall stand postponed until the other clauses and schedules (including new clauses and new schedules) have been disposed of and the Speaker shall then put the question: "That clause one, or the Enacting Formula, or the Preamble or the Title (or, that clause one, Enacting Formula, Preamble or Title as amended, as the case may be) do stand part of the Bill".

Passing of Bills

93.

Motion for passing of Bill.

(1)

When a motion that a Bill be taken into consideration has been carried and no amendment of the Bill is made, the member in charge may at once move that the Bill be passed.

(2)

Where a Bill has undergone amendments the motion that the Bill as amended be passed shall not be moved on the same day on which the consideration of the Bill is concluded, unless the Speaker allows the motion to be made.

(3)

To such a motion no amendment may be moved which is not either formal, verbal or consequential upon an amendment made after the Bill was taken into consideration.

94.

Scope of debate on motion for passing of Bill.

- The discussion on a motion that the Bill or as the case may be, the Bill as amended, be passed shall be confined to the submission of arguments either in support of the Bill or for the rejection of the Bill. The member while making the speech shall not refer to the details of the Bill further than is necessary for the purpose of arguments which shall be of a general character.

95.

Correction of patent errors.

- Where a Bill is passed by the House, the Speaker shall have power to correct patent errors and make such other changes in the Bill as are consequential upon the amendments accepted by the House.

96.

Transmission of Bills to Council.

(1)

When a Bill is passed by the House, it shall be transmitted to the Council for concurrence with a message to that effect.

(2)

The Secretary-General shall certify, on top of the first page of the Bill so transmitted to the Council, in the following form:

-

'This Bill has been passed by the House of the People on the20

Dated on 20

Secretary-General:'

Provided that if it is a Money Bill within the meaning of article 110 of the Constitution the certificate by the Speaker shall be endorsed at the end of the Bill in the following form:

'I hereby certify that this Bill is a Money Bill within the meaning of article 110 of the Constitution of India.

Dated the 20

Speaker.'

97.

Council's message regarding Bills other than Money Bills.

- If a Bill other than a Money Bill passed by the House and transmitted to the Council is passed by the Council without amendment, the message received from the Council to that effect shall be reported by the Secretary-General to the House if in session or published in the Bulletin for the information of the members if the House is not in session.

Bills Other than Money Bills Returned by the Council

98.

Bill returned with amendments.

- If a Bill other than Money Bill passed by the House and transmitted to the Council is returned to the House with amendments, it shall on receipt be laid on the Table.

99.

Notice for consideration of amendments.

- After the amended Bill has been laid on the Table, any Minister in the case of a Government Bill, or in any other case any member may, after giving two days' notice, or with the consent of the Speaker without notice move that the amendments be taken into consideration.

100.

Consideration of amendments.

(1)

If a motion that the amendments be taken into consideration is carried, the Speaker shall put the amendments to the House in such manner as the Speaker thinks most convenient for their consideration.

(2)

An amendment relevant to the subject-matter of an amendment made by the Council may be moved, but no further amendment shall be moved to the Bill unless it is consequential upon, or an alternative to, an amendment made by the Council.

101.

Disposal of amendments made by Council.

- The House, if it agrees to the amendment made by the Council, shall send a message to the Council to that effect, but if it disagrees with that amendment or proposes further amendment or an alternative amendment, the House shall return the Bill or the Bill as further amended to the Council with a message to that effect.

102.

Disagreement between Houses as to amendments.

- If the Bill is returned to the House with a message that the Council insists on an amendment or amendments to which the House has disagreed, the Houses shall be deemed to have finally disagreed as to the amendment or amendments.

Money Bills Returned by the Council

103.

Money Bill returned without recommendation.

- If a Money Bill passed by the House and transmitted to the Council is returned to the House without recommendation, the message to that effect shall be reported by the Secretary-General to the House if in session or published in the Bulletin for the information of the members if the House is not in session. The Bill shall then be presented to the President for her/his assent.

104.

Money Bill returned with recommendation.

- If a Money Bill passed by the House and transmitted to the Council is returned to the House with amendments recommended by the Council, it shall on receipt be laid on the Table.

105.

Notice for consideration of amendments recommended by Council.

- After the Bill with amendments as recommended by the Council has been laid on the Table, any Minister in the case of a Government Bill, or in any other case any member may, after giving two days' notice, or with the consent of the Speaker without notice, move that the amendments recommended by the Council be taken into consideration.

106.

Consideration of amendments recommended by Council.

- If a motion that the amendments as recommended by the Council be taken into consideration is carried, the Speaker shall put the amendments as recommended by the Council to the House in such manner as the Speaker thinks most convenient for their consideration.

107.

Disposal of amendments recommended by Council.

- If the House accepts any amendment or amendments as recommended by the Council, the Bill shall be deemed to have been passed by both the Houses with the amendment or amendments recommended by the Council and accepted

by the House and a message to that effect shall be sent to the Council.

108.

Bill deemed passed on House not accepting Council's recommendations.

- If the House does not accept any of the recommendations of the Council, the Bill shall be deemed to have been passed by both the Houses in the form in which it was passed by the House without any of the amendments recommended by the Council and a message to that effect shall be sent to the Council.

Adjournment of Debate, Withdrawal and Removal of Bills

109.

Adjournment of debate on Bill.

- At any stage of a Bill which is under discussion in the House, a motion that the debate on the Bill be adjourned may be moved with the consent of the Speaker.

110.

Withdrawal of Bill.

- The member in charge of a Bill may at any stage of the Bill move for leave to withdraw the Bill on the ground that -

(a)

the legislative proposal contained in the Bill is to be dropped; or

(b)

the Bill is to be replaced subsequently by a new Bill which substantially alters the provisions contained therein; or

(c)

the Bill is to be replaced subsequently by another Bill which includes all or any of its provisions in addition to other provisions; and if such leave is granted no further motion shall be made with reference to the Bill:

Provided that where a Bill is under consideration by a Select Committee of the House or a Joint Committee of the Houses, as the case may be, notice of any motion for the withdrawal of the Bill shall automatically stand referred to the Committee and after the Committee has expressed its opinion in a report to the House, the motion shall be set down in the list of business:

Provided further that where a Bill has originated in the Council and is pending before the House, the member in charge shall move a motion in the House recommending to the Council that the Council do agree to leave being granted by the House to withdraw the Bill and after the motion is adopted by the House and concurred in by the Council, the member in charge shall move for leave to withdraw the Bill.

111.

Procedure when withdrawal of Bill opposed.

- If a motion for leave to withdraw a Bill is opposed, the Speaker, if thinks fit, may permit the member who [opposes the motion and the member who moved]

[Substituted by L.S. Bn. (II) dated 9.5.1989, para 2930.]

the motion to make brief explanatory statements and may thereafter, without further debate, put the question.

112.

Removal of Bill from Register of Bills.

(1)

Where any of the following motions made by the member in charge under these rules in regard to a Bill is rejected by the House, no further motion shall be made with reference to the Bill and such Bill shall be removed from the Register of Bills pending in the House: -

(i)

that leave be granted to introduce the Bill;

(ii)

that the Bill be referred to a Select Committee;

(iii)

that the Bill be referred to a Joint Committee of the Houses with the concurrence of the Council;

(iv)

that the Bill, be taken into consideration;

(v)

that the Bill as reported by Select Committee of the House or Joint Committee of the Houses, as the case may be, be

taken into consideration; and

(vi)

that the Bill (or, that the Bill as amended, as the case may be) be passed.

(2)

A Bill pending before the House shall also be removed from the Register of Bills pending in the House in case a Bill substantially identical is passed by the House or the Bill is withdrawn under rule 110.

Explanation. - A Bill pending before the House shall include -

(i)

a Bill introduced in the House which does not fall within the categories of Bills mentioned in this rule or rule 113;

(ii)

a Bill transmitted to the Council and returned by the Council with amendment, or recommendation, as the case may be, and laid on the Table under rule 98 or 104;

(iii)

a Bill originating in the Council and transmitted to the House and laid on the Table under rule 114 or 122; and

(iv)

a Bill returned by the President with a message under article 111 of the Constitution.

113.

Additional provision for removal of private member's Bill from Register of Bills.

- A private member's Bill pending before the House shall also be removed from the Register of Bills pending in the House in case -

(a)

the member in charge ceases to be a member of the House;

(b)

the member in charge is appointed a Minister.

II. Bills originating in the Council and transmitted to the House

114.

Laying of Bills on Table.

- When a Bill originating in the Council has been passed by the Council and is transmitted to the House the Bill shall, as soon as may be, be laid on the Table.

115.

Notice for consideration.

- At any time after the Bill has been so laid on the Table, any Minister in the case of a Government Bill, or, in any other case, any member may give notice of one's intention to move that the Bill be taken into consideration.

116.

Motion for consideration.

- On the day on which the motion for consideration is set down in the list of business which shall, unless the Speaker otherwise directs, be not less than two days from the receipt of the notice, the member giving notice may move that the Bill be taken into consideration.

117.

Discussion of principle of Bill.

- On the day on which such motion is made or on any subsequent day to which the discussion is postponed, the principle of the Bill and its general provisions may be discussed, but the details of the Bill shall not be discussed further than is necessary to explain its principle.

118.

Reference to Select Committee.

- Any member may, if the Bill has not already been referred to a Joint Committee of both the Houses, move as an amendment that the Bill be referred to a Select Committee and, if such motion is carried, the Bill shall be referred to a Select Committee, and the rules regarding Select Committees on Bills originating in the House shall then apply.

119.

Consideration and passing of Bills.

- If the motion that the Bill be taken into consideration is carried, the Bill shall be taken into consideration clause by

clause and the provisions of the rules of the House regarding consideration of amendments to Bills and the subsequent procedure in regard to the passing of Bills shall apply.

120.

Bill passed without amendment.

- If the Bill is passed without amendment, a message shall be sent to the Council intimating that the House has agreed to the Bill without any amendment.

121.

Bill passed with amendments.

(1)

If the Bill is passed with amendments, the Bill shall be returned with a message asking the concurrence of the Council in the amendments.

(2)

The Secretary-General shall certify, on top of the first page of the Bill so returned to the Council, in the following form: -

'This Bill has been passed as amended by the House of the People on the.....

Dated.....20

Secretary-General'.

122.

Procedure consequent on disposal of amendments by Council.

- If the Council disagrees with the amendments made by the House or any of them, or agrees to any of the amendments made by the House with further amendments, or proposes further amendments in place of amendments made by the House, the Bill as further amended shall on receipt by the House be laid on the Table.

123.

Consideration of amendments made by Council.

- After the amended Bill has been laid on the Table, any Minister in the case of a Government Bill, or in any other case, any member may, after giving two days' notice or with the consent of the Speaker without notice, move that the amendments be taken into consideration.

124.

Procedure on consideration of amendments.

(1)

If a motion that the amendments be taken into consideration is carried, the Speaker shall put the amendments to the House in such manner as the Speaker thinks most convenient for their consideration.

(2)

An amendment relevant to the subject-matter of an amendment made by the Council may be moved, but no further amendment shall be moved to the Bill, unless it is consequential upon, or an alternative to, an amendment made by the Council.

125.

Disposal of Bills and amendments.

- The House may either agree to the Bill as originally passed by the Council or as further amended by the Council, as the case may be, or may return the Bill with a message that it insists on an amendment or amendments to which the Council has disagreed.

126.

Disagreement between Houses as to amendments.

- If a Bill is returned with a message intimating that the House insists on amendments to which the Council is unable to agree, the Houses shall be deemed to have finally disagreed as to the amendments.

127.

Rejection of Bill.

- When any of the following motions moved in the House with reference to a Bill originating in the Council and transmitted to the House is negatived by the House, the Bill shall be deemed to have been rejected by the House:

(i)

that the Bill be taken into consideration;

(ii)

that the Bill be referred to a Select Committee;

(iii)

that the Bill as reported by Select Committee be taken into consideration; and

(iv)

that the Bill (or, that the Bill as amended, as the case may be) be passed.

III. Authentication and Assent of Bills passed

128.

Authentication and assent.

(1)

When a Bill is passed by the Houses and is in possession of the House, the Bill shall be signed in duplicate by the Speaker and presented to the President:

Provided that in the absence of the Speaker from New Delhi, the Secretary-General may, in case of urgency, authenticate the Bill on behalf of the Speaker.

(2)

One copy of the Bill so assented to by the President shall be preserved for verification and record and shall not be allowed to pass out of the custody of the House without the permission of the Speaker.

IV. Reconsideration of Bills returned by President

Bills Originating in the House

129.

Message of President.

(1)

When a Bill passed by the Houses is returned to the House by the President with a message requesting that the House should reconsider the Bill or any specified provisions thereof or any such amendments are recommended in the message, the Speaker shall read the message of the President in Rejection of Bill. the House if in session, or if the House is not in session, direct that it may be published in the Bulletin for the information of the members.

(2)

The Bill as passed by the Houses and returned by the President for reconsideration shall thereafter be laid on the Table.

130.

Notice for consideration of amendments.

- At any time after the Bill has been so laid on the Table, any Minister in the case of a Government Bill, or, in any other case, any member may give notice of one's intention to move that the amendments recommended by the President be taken into consideration.

131.

Motion for consideration.

- On the day on which the motion for consideration is set down in the list of business which shall, unless the Speaker otherwise directs, be not less than two days from the receipt of the notice, the member giving notice may move that the amendments be taken into consideration.

132.

Scope of debate.

- The debate on such a motion shall be confined to consideration of matters referred to in the message of the President or to any suggestion relevant to the subject-matter of the amendments recommended by the President.

133.

Procedure on motion for consideration of amendments being carried.

- If the motion that the amendments recommended by the President be taken into consideration is carried, the Speaker shall put the amendments to the House in such manner as the Speaker thinks most convenient for their consideration.

134.

Amendment to amendment.

- An amendment relevant to the subject-matter of an amendment recommended by the President may be moved, but no further amendment shall be moved to the Bill unless it is consequential upon, incidental or alternative to, an amendment recommended by the President.

135.

Passing again of Bill.

- When all the amendments have been disposed of, the member giving notice of the motion under rule 130 may move that the Bill as originally passed by the Houses be passed again, or passed again as amended, as the case may be.

136.

Procedure on motion for consideration of amendments not being carried.

- If the motion that the amendments recommended by the President be taken into consideration is not carried, the member giving notice of the motion under rule 130 may at once move that the Bill as originally passed by the Houses be passed again without amendment.

137.

Transmission to Council of Bill passed again.

(1)

When the Bill is passed again by the House with or without amendment, as the case may be, it shall be transmitted to the Council for concurrence with a message to that effect.

(2)

The Secretary-General shall certify, on the top of the first page of the Bill so transmitted to the Council, in the following form: -

'This Bill which was passed by the Houses of Parliament and returned by the President for reconsideration has been passed again with/ without amendment by the House of the People on, the ...20

Dated the ... 20

Secretary-General'.

138.

Message from Council regarding passing again of Bill.

- If the Bill passed again by the House and transmitted to the Council is passed again by the Council without amendment, the message received from the Council to that effect shall be reported by the Secretary-General to the House if in session or published in the Bulletin for the information of the members if the House is not in session.

139.

Bill returned by Council with amendments.

- If the Bill passed again by the House and transmitted to the Council is returned to the House with amendments it shall on receipt be laid on the Table.

140.

Consideration of amendments made by Council.

- After the amended Bill has been laid on the Table, any Minister in the case of a Government Bill, or, in any other case any member may, after giving two days' notice, or with the consent of the Speaker without notice, move that the amendments be taken into consideration.

141.

Procedure on consideration of amendments.

(1)

If a motion that the amendments be taken into consideration is carried, the Speaker shall put the amendments to the House in such manner as the Speaker thinks most convenient for their consideration.

(2)

An amendment relevant to the subject-matter of an amendment made by the Council may be moved, but no further amendment shall be moved to the Bill unless it is consequential upon, incidental or alternative to, an amendment made by the Council.

142.

Disposal of amendments made by Council.

- The House, if it agrees to the amendment made by the Council, shall send a message to the Council to that effect, but if it disagrees with that amendment or proposes further amendment or an alternative amendment, the House shall return the Bill or the Bills as further amended to the Council with a message to that effect.

143.

Disagreement between Houses.

- If the Bill is returned to the House with a message that the Council insists on an amendment or amendments to which

the House has disagreed, the Houses shall be deemed to have finally disagreed as to the amendment or amendments.
Bills Originating in the Council

144.

Laying of Bill on Table.

- When a Bill passed by the Houses which has been returned by the President to the Council for reconsideration, has been passed again with or without amendments by the Council and transmitted to the House, the Bill together with the President's message shall, as soon as may be, be laid on the Table.

145.

Motion for consideration.

- At any time after the Bill together with the President's message has been so laid on the Table, any Minister in the case of a Government Bill, or, in any other case, any member, may, after giving two days' notice, or with the consent of the Speaker without notice, move that the Bill as passed again by the Council be taken into consideration.

146.

Procedure on motion for consideration being carried.

(1)

If the motion that the Bill as passed again by the Council be taken into consideration is carried, the Speaker shall put to the House the amendments, if any, made to the Bill by the Council in such manner as the Speaker thinks most convenient for their consideration.

(2)

An amendment relevant to the subject-matter of an amendment made by the Council may be moved, but no further amendment shall be moved unless it is consequential upon, incidental or alternative to, an amendment made by the Council:

Provided that if the Council has not agreed to an amendment recommended by the President any member may move an amendment relevant to the subject-matter of the amendment recommended by the President.

147.

Bill passed again without amendment.

- If the Bill passed again by the Council is passed again by the House without amendment, a message shall be sent to the Council to that effect.

148.

Bill passed again with amendments.

- If the Bill is passed again by the House with amendments, the Bill shall be returned to the Council with a message asking the concurrence of the Council in such amendments.

149.

Procedure consequent on disposal of amendments by Council.

- If the Council disagrees with the amendments made by the House or any of them, or agrees to any of the amendments made by the House with further amendments, or proposes further amendments in place of amendments made by the House, the Bill as further amended shall on receipt by the House be laid on the Table.

150.

Consideration of amendments made by Council.

- After the amended Bill has been so laid on the Table, any Minister in the case of a Government Bill, or, in any other case, any member may, after giving Procedure on motion for consideration being carried. two days' notice, or with the consent of the Speaker without notice, move that the amendments be taken into consideration.

151.

Procedure on consideration of amendments.

(1)

If a motion that the amendments be taken into consideration is carried, the Speaker shall put the amendments to the House in such manner as the Speaker thinks most convenient for their consideration.

(2)

An amendment relevant to the subject-matter of the amendments made by the Council may be moved but no further amendment shall be moved to the Bill, unless it is consequential upon, incidental or alternative to, an amendment made by the Council.

152.

Disposal of Bill and amendments.

- The House may agree to the Bill as passed again by the Council or as further amended by the Council, as the case may be, or may return the Bill with a message that it insists on an amendment or amendments to which the Council has disagreed.

153.

Disagreement between Houses as to amendments.

- If the Bill is returned with a message that the House insists on an amendment or amendments to which the Council is unable to agree, the Houses shall be deemed to have finally disagreed as to the amendment or amendments.

Authentication of bills Passed again by the Houses

154.

Authentication.

- When a Bill is passed again by the Houses and is in possession of the House, the Bill shall be signed in duplicate by the Speaker and presented to the President in the following form:

'The above Bill has been passed again by the Houses of Parliament in pursuance of the proviso to article 111 of the Constitution.

Dated20

Speaker':

Provided that in the absence of the Speaker from New Delhi, the Secretary-General may, in case of urgency, authenticate the Bill on behalf of the Speaker. Procedure on consideration of amendments.

Chapter XI

Bills Seeking to Amend the Constitution

155.

Voting on clauses and schedules.

- Each clause or schedule or clause, or schedule as amended, as the case may be, of a Bill seeking to amend the Constitution shall be put to the vote of the House separately and shall form part of the Bill if it is passed by a majority of the total membership of the House and by a majority of not less than two thirds of the members present and voting:

Provided that the Speaker may, with concurrence of the House, put clauses and/or schedules, or clauses and/or schedules as amended, as the case may be, together to the vote of the House in which case the result of the voting shall be taken as applicable to each clause or schedule separately and so indicated in the proceedings:

Provided further that if a member requests that any clause or schedule, or any clause or schedule as amended, as the case may be, be put separately, the Speaker shall put that clause or schedule, or clause or schedule as amended, as the case may be, separately:

Provided further that the Short Title, the Enacting Formula and the Long Title may be adopted by a simple majority.

156.

Voting on amendments.

- Amendments to clauses or schedules shall be decided by a majority of members present and voting in the same manner as in the case of any other Bill.

157.

Voting on motions.

- If the motion in respect of such Bill is that:

(i)

the Bill be taken into consideration; or

(ii)

the Bill as reported by the Select Committee of the House or the Joint Committee of the Houses, as the case may be, be taken into consideration; or

(iii)

the Bill, or the Bill as amended, as the case may be, be passed; then the motion shall be deemed to have been carried if it is passed by a majority of the total membership of the House and by a majority of not less than two-thirds of the members present and voting.

158.

Voting by division.

(1)

Voting shall be by division whenever a motion has to be carried by a majority of the total membership of the House and by a majority of not less than two-thirds of the members present and voting.

(2)

If the result of the voting shows that the majority of the total membership of the House and the majority of not less than two-thirds of the members present and voting are in favour of the motion, the Speaker shall, while announcing the result, say that the motion is carried by a majority of the total membership of the House and by a majority of not less than two-thirds of the members present and voting.

159.

Residuary procedure.

- In all other respects, the procedure laid down in these rules with respect to other Bills shall apply.

Explanation. - The expression "total membership" referred to in these rules means the total number of members comprising the House irrespective of the fact whether there are vacancies or absentees on any account.

Chapter XII

Petitions

160.

Scope of petitions.

- [Petitions may be presented by a Member to the House with the consent of the Speaker on -]

[Substituted by L.S. Bn. (II) dated 17.2.2014, para 6174.]

(i)

a Bill which has been published under rule 64 or which has been introduced in the House;

(ii)

any matter connected with the business pending before the House; and

(iii)

any matter of general public interest provided that it is not one: -

(a)

which falls within the cognizance of a court of law having jurisdiction in any part of India or a court of enquiry or a statutory tribunal or authority or a quasi-judicial body, or a commission;

(b)

which should ordinarily be raised in a State Legislature;

(c)

which can be raised on a substantive motion or resolution; or

(d)

for which remedy is available under the law, including rules, regulations, bye-laws made by the Government of India or an authority to whom power to make such rules, regulations, etc. is delegated.

160A.

Petitions dealing with financial matters.

- A petition, dealing with any of the matters specified in sub-clauses (a) to (f) of clause (1) of article 110 or involving expenditure from the Consolidated Fund of India, shall not be presented to the House unless recommended by the President.

161.

General form of petition.

(1)

The general form of petition set out in the First Schedule, with such variations as the circumstances of each case require, may be used, and, if used, shall be sufficient.

(2)

Every petition shall be couched in respectful, decorous and temperate language.

(3)

Every petition shall be either in Hindi or in English. If any petition in any other Indian language is made, it shall be accompanied by a translation either in Hindi or in English, and signed by the petitioner.

162.

Authentication of petition.

(1)

The full name and address of every signatory to a petition shall be set out therein and shall be authenticated by the petitioner's signature, and if illiterate by the petitioner's thumb impression.

(2)

[Where there is more than one signatory to a petition, at least one person shall sign, or affix thumb impression if such person is illiterate, on the sheet on which the petition is inscribed. If signatures or thumb impressions are affixed to more than one sheet, the prayer of the petition shall be repeated at the head of each sheet. Where the petition is made online through Members' Portal, it may reflect the signature or thumb impression of the petitioner, as the case may be.]

[Substituted by Notification No. 12/1/CI/2017, dated 3.8.2017.]

163.

Documents not to be attached.

- Letters, affidavits or other documents shall not be attached to any petition.

164.

Countersignature.

- [(1) Every petition shall be countersigned by a member presenting it. If a petition is made in any Indian language other than Hindi or English, its translation in Hindi or English shall also be countersigned by the member presenting it.

Provided that the petition submitted online through Members' Portal shall be deemed to be countersigned by the member.

Provided further that the member may have the option to countersign the petition and upload a scanned copy thereof.]

[Substituted by Notification No. 12/1/CI/2017, dated 3.8.2017.]

(2)

A member shall not present one's own petition.

165.

Petition to be addressed to House.

- Every petition shall be addressed to the House and shall conclude with a prayer reciting the definite object of the petitioner in regard to the matter to which it relates.

166.

Notice of presentation.

- A member shall give advance intimation to the Secretary-General of one's intention to present a petition.

167.

Presentation of petition.

- [A petition may be presented by a member to the House. No debate shall be permitted on the presentation of a petition.]

[Substituted by L.S. Bn. (II) dated 17.2.2014, para 6174.]

168.

Form of presentation.

- A member presenting a petition shall confine to making of a statement in the following form: - Madam/Sir, I beg to present a petition signed by...petitioner(s) regarding... and no debate shall be permitted on this statement.

169.

Reference to Committee on Petitions.

- [Every petition shall, after presentation by a member stand referred to the Committee on Petitions.]

[Substituted by L.S. Bn. (II) dated 17.2.2014, para 6174.]

Chapter XIII

Resolutions

170.

Notice of resolution.

- A member other than a Minister who wishes to move a resolution on a day allotted for private members' resolutions, shall give a notice to that effect at least two days before the date of ballot. The names of all members from whom such notices are received shall be balloted and those members who secure the first three places in the ballot for the day

allotted for private members' resolutions shall be eligible to give notice of one resolution each within two days after the date of the ballot.

171.

Form of resolution.

- A resolution may be in the form of a declaration of opinion, or a recommendation; or may be in the form so as to record either approval or disapproval by the House of an act or policy of Government, or convey a message; or commend, urge or request an action; or call attention to a matter or situation for consideration by Government; or in such other form as the Speaker may consider appropriate.

172.

Subject-matter of resolution.

- Subject to the provisions of these rules, a member or a Minister may move a resolution relating to a matter of general public interest.

173.

Admissibility of resolution.

- In order that a resolution may be admissible, it shall satisfy the following conditions, namely: -

(i)

it shall be clearly and precisely expressed;

(ii)

it shall raise substantially one definite issue;

(iii)

it shall not contain arguments, inferences, ironical expressions, imputations or defamatory statements;

(iv)

it shall not refer to the conduct or character of persons except in their official or public capacity; and

(v)

it shall not relate to any matter which is under adjudication by a court of law having jurisdiction in any part of India.

174.

Speaker to decide admissibility.

- The Speaker shall decide whether resolution or a part thereof is or is not admissible under these rules and may disallow any resolution or a part thereof when the Speaker is of the opinion that it is an abuse of the right of moving a resolution or calculated to obstruct or pre judicially affect the procedure of the House or is in contravention of these rules.

175.

Matters before tribunals, commissions etc.

- No resolution which seeks to raise discussion on a matter pending before any statutory tribunal or statutory authority performing any judicial or quasi judicial functions or any commission or court of enquiry appointed to enquire into, or investigate any matter shall ordinarily be permitted to be moved:

Provided that the Speaker may, in own discretion, allow such matter being raised in the House as if concerned with the procedure or subject or stage of enquiry, if the Speaker is satisfied that it is not likely to prejudice the consideration of such matter by the statutory tribunal, statutory authority, commission or court of enquiry.

176.

Moving of resolution.

(1)

A member in whose name a resolution stands on the list of business shall, except when that member wishes to withdraw it, when called upon, move the resolution, and shall commence one's own speech by a formal motion in the terms appearing in the list of business.

(2)

A member may, with the permission of the Speaker, authorise any other member, in whose name the same resolution stands lower in the list of business, to move it on her or his behalf and the member so authorised may move it accordingly.

(3)

If a member other than a Minister when called on is absent, any other member authorised by that member in writing in

her or his behalf may, with the permission of the Speaker, move the resolution standing in the name of such member.
177.

Amendments.

(1)

After a resolution has been moved any member may, subject to the rules relating to resolutions, move an amendment to the resolution.

(2)

If notice of such amendment has not been given one day previous to the day on which the resolution is moved, any member may object to the moving of the amendment, and such objection shall prevail, unless the Speaker allows the amendment to be moved.

(3)

The Secretary-General shall, if time permits, make available to members from time to time lists of amendments of which notices have been received.

178.

Time limit for speeches.

- No speech on a resolution shall, except with the permission of the Speaker, exceed fifteen minutes in duration:

Provided that the mover of a resolution, when moving the same and the Minister concerned when speaking for the first time, may speak for thirty minutes or for such longer time as the Speaker may permit.

179.

Scope of discussion.

- The discussion on a resolution shall be strictly relevant to and within the scope of the resolution.

180.

Withdrawal of resolution and amendment.

(1)

A member in whose name a resolution stands on the list of business may, when called upon, withdraw the resolution, and shall confine to making of a mere statement to the effect.

(2)

A member who has moved a resolution or amendment to a resolution shall not withdraw the same except by leave of the House.

181.

Splitting of resolution.

- When any resolution involving several points has been discussed, the Speaker, may divide the resolution, and put each or any point separately to the vote, as the Speaker may think fit.

182.

Repetition of resolution.

- When a resolution has been moved no resolution or amendment raising substantially the same question shall be moved within one year from the date of the moving of the earlier resolution:

Provided that when a resolution has been withdrawn with the leave of the House, no resolution raising substantially the same question shall be moved during the same session.

183.

Resolution passed to be sent to Minister.

- A copy of every resolution which has been passed by the House shall be forwarded to the Minister concerned.

Chapter XIV

Motions

184.

Discussion on matter of public interest.

- Save in so far as is otherwise provided in the Constitution or in these rules, no discussion of a matter of general public interest shall take place except on a motion made with the consent of the Speaker.

185.

Notice of motion.

- Notice of a motion shall be given in writing addressed to the Secretary-General.

186.

Admissibility of motions.

- In order that a motion may be admissible it shall satisfy the following conditions, namely: -

(i)

it shall raise substantially one definite issue;

(ii)

it shall not contain arguments, inferences, ironical expressions, imputations or defamatory statements;

(iii)

it shall not refer to the conduct or character of persons except in their public capacity;

(iv)

it shall be restricted to a matter of recent occurrence;

(v)

it shall not raise a question of privilege;

(vi)

it shall not revive discussion of a matter which has been discussed in the same session;

(vii)

it shall not anticipate discussion of a matter which is likely to be discussed in the same session; [XXX]

[Omitted by L.S. Bn. (II) dated 9.5.1989, para 2930.]

(viii)

it shall not relate to any matter which is under adjudication by a court of law having jurisdiction in any part of India;

(ix)

[if it contains a statement the member shall take the responsibility for the accuracy of the statement;

[Added by L.S. Bn. (II), dated 9.5.1989, para 2930.]

(x)

it shall not seek discussion on a paper or document laid on the Table by a private member;

(xi)

it shall not ordinarily relate to matters which are under consideration of a Parliamentary Committee;

(xii)

it shall not ask for an expression of opinion or the solution of an abstract legal question or of a hypothetical proposition;

(xiii)

it shall not relate to a matter which is not primarily the concern of the Government of India;

(xiv)

it shall not raise matter under the control of bodies or persons not primarily responsible to the Government of India;

(xv)

it shall not relate to a matter with which a Minister is not officially concerned;

(xvi)

it shall not refer discourteously to a friendly foreign country;

(xvii)

it shall not refer to or seek disclosure of information about matters which are in their nature secret such as Cabinet discussions or advice given to the President in relation to any matter in respect of which there is a constitutional, statutory or conventional obligation not to disclose information; and

(xviii)

it shall not relate to a trivial matter.]

187.

Speaker to decide admissibility.

- The Speaker shall decide whether a motion or a part thereof is or is not admissible under these rules and disallow any motion or a part thereof when the Speaker is of the opinion that it is an abuse of the right of moving a motion or is calculated to obstruct or pre-judicially affects the procedure of the House or is in contravention of these rules.

188.

Matters before tribunals, commissions etc.

- No motion which seeks to raise discussion on a matter pending before any statutory tribunal or statutory authority

performing any judicial or quasi judicial functions or any commission or court of enquiry appointed to enquire into or investigate, any matter shall ordinarily be permitted to be moved:

Provided that the Speaker may, in own discretion, allow such matter being raised in the House as is concerned with the procedure or subject or stage of enquiry if the Speaker is satisfied that it is not likely to prejudice the consideration of such matter by the statutory tribunal, statutory authority, commission or court of enquiry.

189.

Publication of admitted motions.

- If the Speaker admits notice of a motion and no date is fixed for the discussion of such motion, it shall be [***]

[Omitted by L.S. Bn. (II), dated 9.5.1989, para 2930.]

notified in the Bulletin with the heading:

'No-Day-Yet-Named Motions'.

190.

Allotment of time for discussion.

- The Speaker may, after considering the state of business in the House and in consultation with the Leader of the House [or on the recommendation of the Business Advisory Committee]

[Added by L.S. Bn. (II), dated 9.5.1989, para 2930.]

allot a day or days or part of a day for the discussion of any such motion.

191.

Putting of question at appointed time.

- The Speaker shall, at the appointed hour on the allotted day or the last of the allotted days, as the case may be, forthwith put every question necessary to determine the decision of the House on the original question.

192.

Time limit for speeches.

- The Speaker, if thinks fit, may prescribe a time-limit for speeches.

Chapter XV

Short Duration Discussions

193.

Notice for raising discussion.

- Any member desirous of raising discussion on a matter of urgent public importance may give notice in writing to the Secretary-General specifying clearly and precisely the matter to be raised:

Provided that the notice shall be accompanied by an explanatory note stating reasons for raising discussion on the matter in question:

Provided further that the notice shall be supported by the signatures of at least two other members.

194.

Speaker to decide admissibility and allotment of time.

(1)

If the Speaker is satisfied, after calling for such information from the member who has given notice and from the Minister as the Speaker may consider necessary, that the matter is urgent and is of sufficient importance to be raised in the House at an early date, the Speaker may admit the notice:

Provided that if an early opportunity is otherwise available for the discussion of the matter the Speaker may refuse to admit the notice.

(2)

The Speaker may allot two sittings in a week on which such matters may be taken up for discussion and allow such time for discussion not exceeding [two]

[Substituted by L.S. Bn. (II), dated 30.4.1987, para 1639.]

hours at or before the end of the sitting, as the Speaker may consider appropriate in the circumstances.

195.

No formal motion.

- There shall be no formal motion before the House nor voting. The member who has given notice may make a short statement and the Minister shall reply shortly. Any member who has previously intimated to the Speaker may be permitted to take part in the discussion.

196.

Time limit for speeches.

- The Speaker, if thinks fit, may prescribe a time-limit for the speeches.

Chapter XVI

Calling Attention

197.

Procedure regarding Calling Attention.

(1)

A member may, with the previous permission of the Speaker, call the attention of a Minister to any matter of urgent public importance and the Minister may make a brief statement or ask for time to make a statement at a later hour or date:

Provided that no member shall give more than two such notices for any one sitting.

(2)

[There shall be no debate on such statement at the time it is made but each member in whose name the item stands in the list of business may, with the permission of the Speaker, ask a clarificatory question and the Minister shall reply at the end to all such questions:

Provided that names of not more than five members shall be shown in the list of business.]

[Substituted by L.S. Bn. (II), dated 30.4.1987, para 1639.]

Explanation. - (i) Where a notice is signed by more than one member, it shall be deemed to have been given by the first signatory only.

(ii)

Notices for a sitting received upto 10.00 hours shall be deemed to have been received at 10.00 hours on that day and a ballot shall be held to determine the relative priority of each such notice on the same subject. Notices received after 10.00 hours shall be deemed to have been given for the next sitting.

(iii)

[Notices received during a week commencing from its first sitting till 10.00 hours on the last day of the week on which the House sits, shall be valid for that week. Notices received after 10.00 hours on the last day of the week on which the House sits, shall be valid for the following week.

[Added by L.S. Bn. (II), dated 30.4.1987, para 1639.]

(iv)

In case the number of members giving notices on a subject that is admitted by the Speaker, is [five or less], their inter-se priority shall be determined with reference to the date and time of receipt of Notices.]

(3)

Not more than two such matters shall be raised at the same sitting:

Provided that the second matter shall not be raised by the same members who have raised the first matter and it shall be raised at [such time]

[Substituted by L.S. Bn. (II), dated 9.5.1989, para 2930.]

as the Speaker may fix.

(4)

In the event of more than one matter being presented for the same day, priority shall be given to the matter which is, in the opinion of the Speaker, more urgent and important.

(5)

[All the notices which have not been taken up during the week for which they have been given, shall lapse at the end of the week unless the Speaker has admitted any of them for a subsequent sitting:

Provided that a notice referred for facts to a Minister shall not lapse till it is finally disposed of by the Speaker.]

[Substituted by L.S. Bn. (II), dated 30.4.1987, para 1639.]

Chapter XVII

Motion of No-Confidence in Council of Ministers and statement by Minister who has Resigned

198.

Procedure regarding motion of n-confidence in Council of Ministers.

(1)

A motion expressing want of confidence in the Council of Ministers may be made subject to the following restrictions, namely: -

(a)

leave to make the motion shall be asked for by the member when called by the Speaker;

(b)

the member asking for leave shall, [by 10.00 hours on]

[Substituted by L.S. Bn. (II), dated 1.8.1989, para 3091.]

that day give to the Secretary - General a written notice of the motion which such member proposes to move.

[Provided that notices, received after 10.00 hours, shall be deemed to have been received at 10.00 hours on the next day on which the House sits.]

[Added by L.S. Bn. (II), dated 1.8.1989, para 3091.]

(2)

If the Speaker is of opinion that the motion is in order, the Speaker shall read the motion to the House and shall request those members who are in favour of leave being granted to rise in their places, and if not less than fifty members rise accordingly, the Speaker shall declare that leave is granted and that the motion will be taken up on such day, not being more than ten days from the date on which the leave is asked for as the Speaker may appoint. If less than fifty members rise, the Speaker shall inform that the member has not the leave of the House.

(3)

If leave is granted under sub-rule (2), the Speaker may, after considering the state of business in the House, allot a day or days or part of a day for the discussion of the motion.

(4)

The Speaker shall, at the appointed hour on the allotted day or the last of the allotted days, as the case may be, forthwith put every question necessary to determine the decision of the House on the motion.

(5)

The Speaker, if thinks fit, may prescribe a time limit for speeches.

199.

Statement by Minister who has resigned.

(1)

A member who has resigned the office of Minister may, with the consent of the Speaker, make a personal statement in explanation of her or his resignation [on any day during the session in which the resignation has been accepted by the President:

Provided that a member may make such a statement at the earliest opportunity on a day not being more than seven days from the date of commencement of the session if the resignation was accepted by the President when the House was not in session.]

[Added by L.S. Bn. (II), dated 9.5.1989, para 2930.]

(2)

A copy of the statement shall be forwarded to the Speaker and the Leader of the House [at least]

[Inserted by L.S. Bn. (II), dated 9.5.1989, para 2930.]

one day in advance of the day on which it is made.

[

*

* ***]

[Omitted by L.S. Bn. (II), dated 9.5.1989, para 2930.]

(3)

There shall be no debate on such statement, but after it has been made, a Minister may make a statement pertinent thereto.

Statement by Minister who has resigned.

Chapter XVIII

Resolution for Removal of Speaker or Deputy Speaker from Office

200.

Notice of resolution for removal of Speaker or Deputy Speaker.

(1)

A member wishing to give notice of a resolution, under clause (c) of article 94 of the Constitution, for the removal of the Speaker or the Deputy Speaker shall do so in writing to the Secretary - General [and shall furnish the full text of such resolution.]

[Added by L.S. Bn. (II), dated 1.8.1989, para 3091.]

(2)

On receipt of a notice under sub-rule (1) a motion for leave to move the resolution shall be entered in the list of business in the name of the member concerned, on a day fixed by the Speaker, provided that the day so fixed shall be any day after fourteen days from the date of the receipt of notice of the resolution.

200A.

[Admissibility of Resolution.

[Inserted by L.S. Bn. (II), dated 1.8.1989, para 3091.]

- In order that such a resolution may be admissible, it shall satisfy the following conditions, namely: -

(i)

it shall be specific with respect to charges;

(ii)

it shall be clearly and precisely expressed; and

(iii)

it shall not contain arguments, inferences, ironical expressions, imputations or defamatory statements.]

201.

Leave of House to move resolution.

(1)

Subject to the provisions of article 96 of the Constitution, the Speaker or the Deputy Speaker or such other person as is referred to in clause (2) of article 95 of the Constitution shall preside when a motion under sub-rule (2) of rule 200 is taken up for consideration.

(2)

The member in whose name the motion stands on the list of business shall, [unless makes a statement conveying unwillingness to move the motion, move the motion when called upon to do so, but in either case]

[Substituted by L.S. Bn. (II), dated 9.5.1989, para 2930.]

no speech shall be permitted at this stage.

(3)

The Speaker or the Deputy Speaker or the person presiding, as the case may be, shall thereupon place the motion before the House and shall request those members who are in favour of leave being granted to rise in their places. If not less than fifty members rise accordingly, the Speaker or the Deputy Speaker or the person presiding, as the case may be, shall declare that leave has been granted and that the resolution will be taken up on such day, not being more than ten days from the date on which leave is asked for, as the Speaker or the Deputy Speaker or the person presiding, as the case may be, may appoint. If less than fifty members rise, the Speaker or the Deputy Speaker or the person presiding, as the case may be, shall inform that the member has not the leave of the House.

202.

Inclusion of resolution in list of business.

- On the appointed day the resolution shall be included in the list of business.

202A.

[Scope of discussion.

[Inserted by L.S. Bn. (II), dated 1.8.1989, para 3091.]

- The discussion on the resolution shall be strictly confined to the charges preferred in the resolution.]

203.

Time limit for speeches.

- Except with the permission of the Speaker or the person presiding, a speech on the resolution shall not exceed fifteen minutes in duration:

Provided that the mover of the resolution when moving the same may speak for such longer time as the Speaker or the person presiding may permit.

Chapter XIX

Financial Business Budget

204.

Presentation of Budget.

(1)

The Annual Financial Statement or the Statement of the Estimated Receipts and Expenditure of the Government of India in respect of each financial year (hereinafter referred to as 'the Budget') shall be presented to the House on such day as the President may direct.

(2)

The Budget shall be presented to the House in such form as the Finance Minister may, after considering the suggestions, if any, of the Estimates Committee, settle.

205.

No discussion on day of presentation.

- There shall be no discussion of the Budget on the day on which it is presented to the House.

Demands for Grants

206.

Demands for grants.

(1)

A separate demand shall ordinarily be made in respect of the grant proposed for each Ministry, provided that the Finance Minister may include in one demand grants proposed for two or more Ministries or Departments or make a demand in respect of expenditure which cannot readily be classified under particular Ministries.

(2)

Each demand shall contain first statement of the total grant proposed and then a statement of the detailed estimate under each grant divided into items.

207.

General discussion on Budget.

(1)

On a day to be appointed by the Speaker subsequent to the day on which the Budget is presented and for such time as the Speaker may allot for this purpose, the House shall be at liberty to discuss the Budget as a whole or any question of principle involved therein, but no motion shall be moved nor shall the Budget be submitted to the vote of the House.

(2)

The Finance Minister shall have a general right of reply at the end of the discussion.

(3)

The Speaker, if thinks fit, may prescribe a time limit for speeches.

208.

Voting of demands for grants.

(1)

The Speaker shall, in consultation with the Leader of the House, allot so many days as may be compatible with the public interest for the discussion and voting of demands for grants.

(2)

On the last day of the allotted days at 17.00 hours or at such other hour as the Speaker may fix in advance, the Speaker shall forthwith put every question necessary to dispose of all the outstanding matters in connection with the demands for grants.

(3)

Motions may be moved to reduce any demand for grant.

(4)

No amendments to motions to reduce any demand for grant shall be permissible.

(5)

When several motions relating to the same demand for grant are offered, they shall be discussed in the order in which the heads to which they relate appear in the Budget.

209.

Cut motions.

- A motion may be moved to reduce the amount of a demand in any of the following ways: -

(a)

'that the amount of the demand be reduced to Re. 1/-' representing disapproval of the policy underlying the demand. Such a motion shall be known as 'Disapproval of Policy Cut'. A member giving notice of such a motion shall indicate in precise terms the particulars of the policy which the member proposes to discuss. The discussion shall be confined to the specific point or points mentioned in the notice and it shall be open to members to advocate an alternative policy;

(b)

'that the amount of the demand be reduced by a specified amount' representing the economy that can be effected. Such specified amount may be either a lump sum reduction in the demand or omission or reduction of an item in the demand. The motion shall be known as 'Economy Cut'. The notice shall indicate briefly and precisely the particular matter on which discussion is sought to be raised and speeches shall be confined to the discussion as to how economy can be effected;

(c)

'that the amount of the demand be reduced by Rs. 100/-' in order to ventilate a specific grievance which is within the sphere of the responsibility of the Government of India. Such a motion shall be known as 'Token Cut' and the discussion thereon shall be confined to the particular grievance specified in the motion.

210.

Admissibility of cut motions.

- In order that notice of motion for reduction of the amount of demand may be admissible, it shall satisfy the following conditions, namely: -

(i)

it shall relate to one demand only;

(ii)

it shall be clearly expressed and shall not contain arguments, inferences, ironical expressions, imputations, epithets or defamatory statements;

(iii)

it shall be confined to one specific matter which shall be stated in precise terms;

(iv)

it shall not reflect on the character or conduct of any person whose conduct can only be challenged on a substantive motion;

(v)

it shall not make suggestions for the amendment or repeal of existing laws;

(vi)

it shall not refer to a matter which is not primarily the concern of the Government of India;

(vii)

it shall not relate to expenditure charged on the Consolidated Fund of India;

(viii)

it shall not relate to a matter which is under adjudication by a court of law having jurisdiction in any part of India;

(ix)

it shall not raise a question of privilege;

(x)

it shall not revive discussion on a matter which has been discussed in the same session and on which a decision has been taken;

(xi)

it shall not anticipate a matter which has been previously appointed for consideration in the same session;

(xii)

it shall not ordinarily seek to raise a discussion on a matter pending before any statutory tribunal or statutory authority performing any judicial or quasi-judicial functions or any commission or court of enquiry appointed to enquire into, or investigate any matter:

Provided that the Speaker may in own discretion allow such matter being raised in the House as is concerned with the procedure or stage of enquiry, if the Speaker is satisfied that it is not likely to prejudice the consideration of such matter

by the statutory tribunal, statutory authority, commission or court of enquiry; and
(xiii)

it shall not relate to a trivial matter.

211.

Speaker to decide admissibility.

- The Speaker shall decide whether a cut motion is or is not admissible under these rules and may disallow any cut motion when the Speaker is of the opinion that it is an abuse of the right of moving cut motions or is calculated to obstruct or prejudicially affect the procedure of the House or is in contravention of these rules.

212.

Notice of cut motions.

- If notice of a motion to reduce any demand for grant has not been given one day previous to the day on which the demand is under consideration, any member may object to the moving of the motion, and such objection shall prevail, unless the Speaker allows the motion to be made.

213.

Presentation of Budget in parts.

- Nothing hereinbefore contained shall be deemed to prevent the presentation of the Budget to the House in two or more parts and when such presentation takes place, each part shall be dealt with in accordance with these rules as if it were the Budget.

214.

Vote on Account.

(1)

A motion for vote on account shall state the total sum required and the various amounts needed for each Ministry, Department or item of expenditure which compose that sum shall be stated in a schedule appended to the motion.

(2)

Amendments may be moved for the reduction of the whole grant or for the reduction or omission of the items whereof the grant is composed.

(3)

Discussion of a general character may be allowed on the motion or any amendments moved thereto, but the details of the grant shall not be discussed further than is necessary to develop the general points.

(4)

In other respects, a motion for vote on account shall be dealt with in the same way as if it were a demand for grant.

215.

Supplementary etc. grants and votes of credit.

- Supplementary, additional, excess and exceptional grants and votes of credit shall be regulated by the same procedure as is applicable in the case of demands for grants subject to such adaptations, whether by way of modification, addition or omission, as the Speaker may deem to be necessary or expedient.

216.

Scope of debate on supplementary grants.

- The debate on the supplementary grants shall be confined to the items constituting the same and no discussion may be raised on the original grants nor policy underlying them save in so far as it may be necessary to explain or illustrate the particular items under discussion.

217.

Token grants.

- When funds to meet proposed expenditure on a new service can be made available by reappropriation, a demand for the grant of a token sum may be submitted to the vote of the House and, if the House assents to the demand, funds may be so made available.

Appropriation Bill

218.

Procedure regarding Appropriation Bill.

(1)

Subject to the provision of the Constitution, the procedure in regard to an Appropriation Bill shall be the same as for Bills

generally with such modifications as the Speaker may consider necessary.

(2)

[

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* ***]

[Omitted by L.S. Bn. (II) dated 9.5.1989, para 2930.]

[The debate on an Appropriation Bill shall be restricted to matters of public importance or administrative policy implied in the grants covered by the Bill which have not already been raised while the relevant demands for grants were under consideration.

(3)

The Speaker may, in order to avoid repetition of debate, require members desiring to take part in discussion on an Appropriation Bill to give advance intimation of the specific points they intend to raise, and the Speaker may withhold permission for raising such of the points, as in the opinion of the Speaker appear to be repetitions of the matters discussed on a demand for grant or as may not be of sufficient public importance.

(4)

If an Appropriation Bill is in pursuance of a supplementary grant in respect of an existing service, the discussion shall be confined to the items constituting the same, and no discussion shall be raised on the original grant nor the policy underlying it save in so far as it may be necessary to explain or illustrate a particular item under discussion.]

[Renumbered by L.S. Bn. (II) dated 9.5.1989, para 2930.]

(5)

The Speaker, if thinks fit, may prescribe a time limit for speeches. [***]

[Omitted by L.S. Bn. (II) dated 9.5.1989, para 2930.]

Finance Bill

219.

Procedure regarding Finance Bill.

(1)

In this rule "Finance Bill" means the Bill ordinarily introduced in each year to give effect to the financial proposals of the Government of India for the next following financial year and includes a Bill to give effect to supplementary financial proposals for any period.

(2)

At any time after the introduction in the House of a Finance Bill, the Speaker may allot a day or days, jointly or severally, for the completion of all or any of the stages involved in the passage of the Bill by the House, and when such allotment has been made, the Speaker [may, at the specified hour]

[Substituted by L.S. Bn. (II) dated 9.5.1989, para 2930.]

on the allotted day or the last of the allotted days, as the case may be, forthwith put every question necessary to dispose of all the outstanding matters in connection with the stage or stages for which the day or days have been allotted: -

Provided that if a Minister has a right of reply to the debate on the motion which is under discussion 5[an hour before the specified hour] and has not commenced reply at that hour, the Speaker shall inquire how much time not exceeding one hour the Minister requires for the reply, and shall call upon any member for the time being addressing the House to resume seat at such time as will leave available before [the specified hour]

[Substituted by L.S. Bn. (II) dated 9.5.1989, para 2930.]

the amount of time which the Minister has stated to require for the reply.

(3)

Where the question or one of the questions required by sub-rule (2) to be put at [the specified hour]

[Substituted by L.S. Bn. (II) dated 9.5.1989, para 2930.]

on the allotted day or the last of the allotted days is that the Bill be passed, sub-rule (2) shall have effect notwithstanding that amendments to the Bill have been made.

(4)

Subject to the provision to sub-rule (2), the Speaker, if thinks fit, may prescribe a time-limit for speeches at all or any of the stages for which a day or days have been allotted under that sub-rule.

(5)

On a motion that the Finance Bill be taken into consideration, a member may discuss matters relating to general administration, local grievances within the sphere of the responsibility of Government of India or monetary or financial policy of Government.

(6)

In other respects the rules applicable to Bills in Chapter X of these rules shall apply.

General Provisions Regarding Financial Business

220.

Business that can be taken up on day allotted for financial business.

- Notwithstanding that a day has been allotted for financial business under rules 207, 208, 218 or 219, a motion or motions for leave to introduce a Bill or Bills may be made and a Bill or Bills may be introduced on such day before the House enters on the business for which the day has been allotted.

221.

Timely completion of financial business.

- In addition to the powers exercisable under these rules, the Speaker may exercise all such powers as are necessary for the purpose of the timely completion of all financial business including allotment of time for the disposal of various kinds of such business, and where time is so allotted, the Speaker shall, at the appointed hour, put every question necessary to dispose of all the outstanding matters in connection with the stage or stages for which time has been allotted.

Explanation. - Financial business includes any business which the Speaker holds as coming within this category under the Constitution.

Chapter XX

Privileges

Questions of Privilege

222.

Consent of Speaker.

- A member may, with the consent of the Speaker, raise a question involving a breach of privilege either of a member or of the House or of a Committee thereof.

223.

Notice of question of privilege.

- A member wishing to raise a question of privilege shall give notice in writing to the Secretary-General [by 10.00 hours] [Substituted by L.S. Bn. (II) dated 9.5.1989, para 2930.]

on the day the question is proposed to be raised. If the question raised is based on a document, the notice shall be accompanied by the document:

[Provided that notices received after 10.00 hours shall be deemed to have been received at 10.00 hours on the next day on which the House sits.]

[Added by L.S. Bn. (II) dated 9.5.1989, para 2930.]

224.

Admissibility of questions of privilege.

- The right to raise a question of privilege shall be governed by the following conditions, namely: -

(i)

not more than one question shall be raised at the same sitting;

(ii)

the question shall be restricted to a specific matter of recent occurrence; and

(iii)

the matter requires the intervention of the House.

225.

Mode of raising questions of privilege.

(1)

The Speaker, if gives consent under rule 222 and holds that the matter proposed to be discussed is in order, shall call the member concerned, who shall rise in one's own place and, while asking for leave to raise the question of privilege, make a short statement relevant thereto:

Provided that where the Speaker has refused to give consent under rule 222 or is of opinion that the matter proposed to be discussed is not in order, the Speaker, if thinks necessary, may read the notice of question of privilege and state that the consent is refused or the notice of question of privilege is not in order:

Provided further that the Speaker may, on being satisfied about the urgency of the matter, allow a question of privilege to be raised at any time during the course of a sitting after the disposal of questions.

(2)

If objection to leave being granted is taken, the Speaker shall request those members who are in favour of leave being granted to rise in their places, and if not less than twenty-five members rise accordingly, the Speaker shall declare that leave is granted. If less than twenty-five members rise, the Speaker shall inform the member that such member has not the leave of the House.

226.

Questions of privilege to be considered by House or Committee.

- If leave under rule 225 is granted, the House may consider the question and come to a decision or refer it to a Committee of Privileges on a motion made either by the member who has raised the question of privilege or by any other member.

227.

Reference of questions of privilege to Committee by Speaker.

- Notwithstanding anything contained in these rules, the Speaker may refer any question of privilege to the Committee of Privileges for examination, investigation or report.

228.

Power of Speaker to give directions.

- The Speaker may issue such directions as may be necessary for regulating the procedure in connection with all matters connected with the consideration of the question of privilege either in the Committee of Privileges or in the House.

Intimation to Speaker Regarding Arrest, Detention etc. and Release of Member

229.

Intimation regarding arrest, detention etc. of member.

- When a member is arrested on a criminal charge or for a criminal offence or is sentenced to imprisonment by a court or is detained under an Questions of privilege to be considered by House or Committee. executive order, the committing judge, magistrate or executive authority, as the case may be, shall immediately intimate such fact to the Speaker indicating the reasons for the arrest, detention or conviction, as the case may be, as also the place of detention or imprisonment of the member in the appropriate form set out in the Third Schedule.

230.

Intimation regarding release of member.

- When a member is arrested and after conviction released on bail pending an appeal or otherwise released, such fact shall also be intimated to the Speaker by the authority concerned in the appropriate form set out in the Third Schedule.

231.

Treatment of communications regarding arrest, detention, release etc.

- As soon as may be, the Speaker shall, after receiving a communication referred to in rule 229 or rule 230, read it out in the House if in session, or if the House is not in session, direct that it may be published in the Bulletin for the information of the members:

Provided that if the intimation of the release of a member either on bail or by discharge on appeal is received before the House has been informed of the original arrest, the fact of her or his arrest, or her or his subsequent release or discharge may not be intimated to the House by the Speaker.

Procedure Regarding Arrest and Service of Legal Process within Precincts of the House

232.

Arrest within precincts of House.

- No arrest shall be made within the precincts of the House without obtaining the permission of the Speaker.

233.

Service of legal process.

- A legal process, civil or criminal, shall not be served within the precincts of the House without obtaining the permission

of Speaker.

Chapter XXI

Subordinate Legislation

234.

Laying of regulation, rule etc. on Table.

(1)

Where a regulation, rule, sub-rule, byelaw etc. framed in pursuance of the Constitution or of the legislative functions delegated by Parliament to a subordinate authority is laid before the House, the period specified in the Constitution or the relevant Act for which it is required to be laid shall be completed before the House is adjourned sine die and later prorogued, unless otherwise provided in the Constitution or the relevant Act.

(2)

Where the specified period is not so completed the regulation, rule, sub-rule, bye-law etc. shall be relaid in the succeeding session or sessions until the said period is completed in one session.

235.

Allotment of time for consideration of amendments to regulation, rule etc.

- The Speaker shall, in consultation with the Leader of the House, fix a day or days or part of a day as the Speaker may think fit for the consideration and passing of an amendment to such regulation, rule, sub-rule, bye-law, etc., of which notice may be given by a member:

Provided that notice of the amendment shall be in such form as the Speaker may consider appropriate and shall comply with these rules.

236.

Transmission of amendment to Council.

- After an amendment is passed by the House, it shall be transmitted to the Council for its concurrence and on receipt of a message from the Council agreeing to the amendment, it shall be forwarded by the Secretary-General to the Minister concerned.

237.

Amendment returned by Council.

- If the Council disagrees with the amendment passed by the House or agrees subject to a further amendment thereof or proposes an amendment in substitution thereof, the House may either drop the amendment or agree with the Council in the proposed Laying of regulation, rule etc. on Table amendment or insist on the original amendment passed by the House. A message in either case shall be sent to the Council. In case the House agrees to the amendment as further amended by the Council, the amended amendment shall be forwarded by the Secretary-General to the Minister concerned.

238.

Disagreement between Houses.

- If the Council agrees to the original amendment passed by the House, it shall be sent by the Secretary-General to the Minister concerned, but if the Council disagrees or insists on an amendment to which the House has not agreed, the Houses shall be deemed to have finally disagreed, and all further proceedings thereon shall be dropped.

239.

Laying of regulation, rule etc. as amended on Table.

- If a regulation, rule, sub-rule, bye-law etc. is modified in accordance with the amendment passed by the Houses, the amended regulation, rule, sub-rule, bye-law etc. shall be laid on the Table.

Chapter XXII

Resignation and Vacation of Seats in the House

240.

Resignation of seats in House.

(1)

A member who desires to resign one's seat in the House shall intimate in writing under one's own hand addressed to the Speaker, such intention to resign the seat in the following form and shall not give any reason for the resignation:

'To

The Speaker,

Lok Sabha,

New Delhi.

Madam/Sir,

I hereby tender my resignation of my seat in the House with effect from.....

Yours faithfully,

Member of the House:'

Place..... Date.....

Provided that where any member gives any reason or introduces any extraneous matter the Speaker may while exercising discretion omit such words, phrases or matter and the same shall not be read out in the House.

(1A)

If a member hands over the letter of resignation to the Speaker personally and informs that the resignation is voluntary and genuine and the Speaker has no information or knowledge to the contrary, the Speaker may accept the resignation immediately.

(1B)

If the Speaker receives the letter of resignation either by post or through someone else, the Speaker may make such inquiry as is considered necessary to get satisfied that the resignation is voluntary and Resignation of seats in House. genuine. If the Speaker, after making a summary enquiry either by oneself or through the agency of Lok Sabha Secretariat or through such other agency, as the Speaker may deem fit, is satisfied that the resignation is not voluntary or genuine, the Speaker shall not accept the resignation.

(1C)

A member may withdraw the letter of resignation at any time before it is accepted by the Speaker.

(2)

The Speaker shall, as soon as may be, after accepting the resignation of a member, inform the House about resignation of seat by the member and acceptance of such resignation.

Explanation. - When the House is not in session, the Speaker shall inform the House immediately after the House reassembles.

(3)

The Secretary-General shall, as soon as may be, after the Speaker has accepted the resignation of a member, cause the information to be published in the Bulletin and the Gazette and forward a copy of the notification to the Election Commission for taking steps to fill the vacancy thus caused:

Provided that where the resignation is to take effect from a future date, the information shall be published in the Bulletin and the Gazette not earlier than the date from which it is to take effect.

241.

Vacation of seats in House.

(1)

The seat of a member shall be declared vacant under clause (4) of article 101 of the Constitution on a motion by the Leader of the House or by such other member to whom the functions are delegated in this behalf by the Leader of the House.

(2)

If the motion referred to in sub-rule (1) is carried, the Secretary-General shall cause the information to be published in the Gazette and forward a copy of the notification to the Election Commission for taking steps to fill the vacancy thus caused.

Chapter XXIII

Leave of Absence from the Sittings of the House

242.

Application for leave of absence.

(1)

A member desiring permission of the House to remain absent from the sittings thereof under clause (4) of article 101 of the Constitution shall make an application in writing to the Speaker.

(2)

An application under sub-rule (1) shall specify the period for which leave of absence is required, indicating also the date

of commencement and of termination of such leave of absence and the grounds for it:

Provided that leave of absence applied for at any one time shall not exceed a period of sixty days.

243.

Reference of applications to Committee.

- All applications under rule 242 shall stand referred to the Committee on Absence of Members from the Sittings of the House.

244.

Communication of decision of House to member.

- The Secretary-General shall, as soon as may be, after a decision has been signified by the House on the recommendations of the Committee in respect of an application for leave of absence, communicate it to the member.

245.

Lapse of unexpired portion of leave.

- If a member who has been granted leave of absence under these rules attends the session of the House during the period for which the leave of absence has been granted to such member, the unexpired portion of the leave from the date on which the member resumed attendance shall lapse.

Chapter XXIV

Communications between President and the House

246.

Communications from President to House.

- Communications from the President to the House shall be made to the Speaker by written message signed by the President or, if the President is absent from the place of sitting of the House, the message shall be conveyed to the Speaker through a Minister.

247.

Communications from House to President.

- Communications from the House to the President shall be made -

(i)

by formal address, after motion made and carried in the House; and

(ii)

through the Speaker.

Chapter XXV

Secret Sitting of the House

248.

Secret sitting.

(1)

On a request made by the Leader of the House, the Speaker shall fix a day or part thereof for sitting of the House in secret.

(2)

When the House sits in secret no stranger shall be permitted to be present in the Chamber, Lobby or Galleries:

Provided that members of the Council may be present in their Gallery:

Provided further that persons authorised by the Speaker may be present in the Chamber, Lobby or Galleries.

249.

Report of proceedings.

- The Speaker may cause a report of the proceedings of a secret sitting to be issued in such manner as the Speaker thinks fit, but no other person present shall keep a note or record of any proceedings or decisions of a secret sitting, whether in part or full, or issue any report of, or purport to describe, such proceedings.

250.

Procedure in other respects.

- The procedure in all other respects in connection with a secret sitting shall be in accordance with such directions as the Speaker may give.

251.

Lifting of ban on publication of proceedings.

(1)

When it is considered that the necessity for maintaining secrecy in regard to the proceedings of a secret sitting has ceased to exist and subject to the consent of the Speaker, the Leader of the House or any member so authorized may move a motion that the proceedings in the House during a secret sitting be no longer treated as secret.

(2)

On adoption by the House of the motion under sub-rule (1), the Secretary-General shall cause to be prepared a report of the proceedings of the secret sitting, and shall, as soon as practicable, publish it in such form and manner as the Speaker may direct.

252.

Disclosure of proceedings or decisions.

- Subject to the provisions of rule 251, disclosure of proceedings or decisions of a secret sitting by any person in any manner shall be treated as a gross breach of privilege of the House. Disclosure of proceedings or decisions.

Chapter XXVI

Parliamentary Committees General Rules

253.

Parliamentary Committee.

- In this Chapter, unless the context otherwise requires, 'Committee' means and includes 'Parliamentary Committee' as defined in sub-rule (1) of rule 2.

254.

Appointment of Committee.

(1)

The members of a Committee shall be appointed or elected by the House on a motion made, or nominated by the Speaker as the case may be.

(2)

No member shall be appointed to a Committee if unwilling to serve on it. The proposer shall ascertain whether the member whose name is being proposed is willing to serve on the Committee.

(3)

Casual vacancies in a Committee shall be filled by appointment or election by the House on a motion made, or nomination by the Speaker, as the case may be, and any member appointed, elected or nominated to fill such vacancy shall hold office for the unexpired portion of the term for which the member in whose place, a member to fill the casual vacancy is appointed, elected or nominated would have normally held office.

255.

Objection to membership of Committee.

- Where an objection is taken to the inclusion of a member in a Committee on the ground that the member has a personal, pecuniary or direct interest of such an intimate character that it may prejudicially affect the consideration of any matters to be considered by the Committee, the procedure shall be as follows:

(a)

The member who has taken objection shall precisely state the ground of such objection and the nature of the alleged interest, whether personal, pecuniary or direct, of the proposed member in the matters coming up before the Committee;

(b)

After the objection has been stated, the Speaker shall give an opportunity to the member proposed on the Committee against whom the objection has been taken to state the position;

(c)

if there is dispute on facts, the Speaker may call upon the member taking objection and the member against whose appointment on the Committee objection has been taken, to produce documentary or other evidence in support of their respective cases;

(d)

The Speaker, shall, after considering the evidence so tendered, give decision which shall be final;

(e)

Until the Speaker has given the decision under clause (d), the member against whose appointment on the Committee objection has been taken shall continue to be a member thereof if elected or nominated and take part in discussion, but

shall not be entitled to vote; and

(f)

if the Speaker holds that the member against whose appointment objection has been taken has a personal, pecuniary or direct interest in the matter before the Committee, that member shall cease to be a member thereof forthwith:

Provided that the proceedings of the sitting of the Committee at which such member was present shall not in any way be affected by the decision of the Speaker.

Explanation. - For the purpose of this rule the interest of the member should be direct, personal or pecuniary and separately belong to the person whose inclusion in the Committee is objected to and not in common with the public in general or with any class or section thereof or on a matter of State policy.

256.

Term of office of Committee nominated by Speaker.

- A Committee nominated by the Speaker shall, unless otherwise specified in the rules contained in this Chapter, hold office for the period specified by the Speaker or until a new Committee is nominated.

257.

[Resignation from Committee.

[Substituted by L.S. Bn. (II), dated 9.5.1989, para 2930.]

(1)

A member may resign one's seat from a Committee by writing under own hand addressed to the Speaker, in the following form:

'To

The Speaker,

Lok Sabha,

New Delhi.

Madam/Sir,

I hereby tender my resignation from the membership of the Committee on..... with effect from.....

Yours faithfully,

(Name of the Member).'

Place..... Date.....

(2)

The resignation shall take effect from the date of resignation specified in the letter of resignation.

(3)

If the date from which the resignation should take effect is not specified in the letter, the resignation shall take effect from the date of the letter.

(4)

If the letter of resignation does not bear any date, the resignation shall take effect from the date of receipt of the letter in the Lok Sabha Secretariat.]

258.

Chairperson of Committee.

(1)

The Chairperson of a Committee shall be appointed by the Speaker from amongst members of the Committee:

Provided that the Deputy Speaker, in case is a member of the Committee, shall be appointed as Chairperson of the Committee.

(2)

If the Chairperson is for any reason unable to act, the Speaker may appoint another Chairperson in her or his place.

(3)

If the Chairperson is absent from any sitting, the Committee shall choose another member to act as Chairperson for that sitting.

259.

Quorum in Committee.

(1)

The quorum to constitute a sitting of a Committee shall be, as near as may be, one-third of the total number of members

of the Committee.

(2)

If at any time fixed for any sitting of the Committee, or if at any time during any such sitting, there is no quorum, the Chairperson of the Committee shall either suspend the sitting until there is a quorum or adjourn the sitting to some future day.

(3)

When the Committee has been adjourned in pursuance of sub-rule (2) on two successive dates fixed for sittings of the Committee, the Chairperson shall report the fact to the House:

Provided that where the Committee has been appointed by the Speaker, the Chairperson shall report the fact of such adjournment to the Speaker.

260.

Discharge of members absent from sittings of Committee.

- If a member is absent from two or more consecutive sittings of a Committee without the permission of the Chairperson, a motion may be moved in the House for the discharge of such member from the Committee:

Provided that where the members of the Committee are nominated by the Speaker such member may be discharged by the Speaker.

261.

Decisions in Committee.

- All questions at any sitting of a Committee shall be determined by a majority of votes of the members present and voting.

262.

Casting vote of Chairperson.

- In the case of an equality of votes on any matter, the Chairperson or the person acting as such, shall have a second or casting vote.

263.

Power to appoint sub-Committees.

(1)

A Committee may appoint one or more sub-Committees, each having the powers of the undivided Committee, to examine any matters that may be referred to them and the reports of such sub-Committees shall be deemed to be the reports of the whole Committee, if they are approved at a sitting of the whole Committee.

(2)

The order of reference to a sub-Committee shall clearly state the point or points for investigation.

The report of the sub-Committee shall be considered by the whole Committee.

264.

Sittings of Committee.

- The sittings of a Committee shall be held on such days and at such hour as the Chairperson of the Committee may fix:

Provided that if the Chairperson of the Committee is not readily available, the Secretary-General may fix the date and time of a sitting:

Provided further that in the case of Select or Joint Committee on a Bill, if the Chairperson of the Committee is not readily available, the Secretary - General may, in consultation with the Minister concerned with the Bill, fix the date and time of a sitting.

265.

Committee may sit whilst House sitting.

- A Committee may sit whilst the House is sitting provided that on a division being called in the House, the Chairperson of the Committee shall suspend the proceedings in the Committee for such time as will in the opinion of the Chairperson, enable the members to vote in a division.

266.

Sittings in private.

- The sittings of a Committee shall be held in private.

267.

Venue of Sittings.

- The sittings of a Committee shall be held within the precincts of the Parliament House, and if it becomes necessary to change the place of sitting outside the Parliament House, the matter shall be referred to the Speaker whose decision shall be final.

268.

Strangers to withdraw when Committee deliberates.

- All persons other than members of the Committee and officers of the Lok Sabha Secretariat shall withdraw whenever the Committee is deliberating.

269.

Power to take evidence or call for documents.

(1)

A witness may be summoned by an order signed by the Secretary-General and shall produce such documents as are required for the use of a committee

(2)

It shall be in the discretion of the Committee to treat any evidence given before it as secret or confidential.

(3)

No document submitted to the Committee shall be withdrawn or altered without the knowledge and approval of the Committee.

270.

Power to send for persons, papers and records.

- A Committee shall have power to send for persons, papers and records:

Provided that if any question arises whether the evidence of a person or the production of a document is relevant for the purposes of the Committee, the question shall be referred to the Speaker whose decision shall be final:

Provided further that Government may decline to produce a document on the ground that its disclosure would be prejudicial to the safety or interest of the State.

271.

Counsel for witness.

- A Committee may, under the direction of the Speaker, permit a witness to be heard by a counsel appointed by the witness and approved by the Committee.

272.

Evidence on oath.

(1)

A Committee may administer oath or affirmation to a witness examined before it.

(2)

The form of the oath or affirmation shall be as follows:

'I, A.B.,| swear in the name of Godsolemnly affirm| that the

evidence which I shall give in this case shall be true, that I will conceal nothing, and that no part of my evidence shall be false.'

273.

Examination of witnesses.

- The examination of witnesses before a Committee shall be conducted as follows: -

(i)

The Committee shall, before a witness is called for examination, decide the mode of procedure and the nature of question that may be asked of the witness.

(ii)

The Chairperson of the Committee may first ask the witness such question or questions, as is considered necessary by the Chairperson, with reference to the subject matter under consideration or any subject connected therewith according to the mode of procedure mentioned in clause (i) of this rule.

(iii)

The Chairperson may call other members of the Committee one by one to ask any other questions.

(iv)

A witness may be asked to place before the Committee any other relevant points that have not been covered and which

a witness thinks are essential to be placed before the Committee.

(v)

A verbatim record of proceedings of the Committee shall, when a witness is summoned to give evidence, be kept.

(vi)

The evidence given before the Committee may be made available to all members of the Committee.

274.

Record of decisions.

- A record of the decisions of a Committee shall be maintained and circulated to members of the Committee under the direction of the Chairperson.

275.

Evidence, report and proceedings treated as confidential.

(1)

A Committee may direct that the whole or a part of the evidence or a summary thereof may be laid on the Table.

(2)

No part of the evidence, oral or written, report or proceedings of the Committee which has not been laid on the Table shall be open to inspection by any one except under the authority of the Speaker.

(3)

The evidence given before a Committee shall not be published by any member of the Committee or by any other person until it has been laid on the Table:

Provided that the Speaker may, while exercising discretion direct that such evidence be confidentially made available to members before it is formally laid on the Table.

276.

Special Report.

- A Committee may, if it thinks fit, make a special report on any matter that arises or comes to light in the course of its work which it may consider necessary to bring to the notice of the Speaker or the House, notwithstanding that such matter is not directly connected with, or does not fall within or is not incidental to, its terms of reference.

277.

Report.

(1)

Where the House has not fixed any time for the presentation of a report by a Committee the report shall be presented within one month of the date on which reference to the Committee was made:

Provided that the House may at any time, on a motion being made, direct that the time for the presentation of the report by the Committee be extended to a date specified in the motion.

(2)

Reports may be either preliminary or final.

(3)

The report of the Committee shall be signed by the Chairperson on behalf of the Committee:

Provided that in case the Chairperson is absent or is not readily available the Committee shall choose another member to sign the report on behalf of the Committee.

278.

Availability of report to Government before presentation.

- A Committee may, if it thinks fit, make available to Government any completed part of its report before presentation to the House. Such reports shall be treated as confidential until presented to the House.

279.

Presentation of report.

(1)

The report of a Committee shall be presented to the House by the Chairperson or in the absence of the Chairperson by any member of the Committee.

(2)

In presenting the report the Chairperson or, in the absence of the Chairperson, the member presenting the report shall, if makes any remarks, confine to a brief statement of fact, but there shall be no debate on that statement at this stage.

Report.

280.

Printing, publication or circulation of report before presentation.

- On a request being made and when the House is not in session, the Speaker may, order the printing, publication or circulation of a report of a Committee although it has not been presented to the House. In that case the report shall be presented to the House during its next session at the first convenient opportunity.

281.

Power to make suggestions on procedure.

- A Committee shall have power to pass resolutions on matters of procedure relating to that Committee for the consideration of the Speaker, who may make such variations in procedure as the Speaker may consider necessary.

282.

Power to make detailed rules.

- A Committee may with the approval of the Speaker make detailed rules of procedure to supplement the provisions contained in the rules in this Chapter.

283.

Power of Speaker to give directions.

(1)

The Speaker may from time to time issue such directions to the Chairperson of a Committee, as the Speaker considers necessary, for regulating its procedure and the organisation of its work.

(2)

If any doubt arises on any point of procedure or otherwise, the Chairperson may if thinks fit, refer the point to the Speaker whose decision shall be final.

284.

Business before Committee not to lapse on prorogation of House.

- Any business pending before a Committee shall not lapse by reason only of the prorogation of the House and the Committee shall continue to function notwithstanding such prorogation.

285.

Unfinished work of Committee.

- A Committee which is unable to complete its work before the expiration of its term or before the dissolution of the House may report to the House that the Committee has not been able to complete its work. Any preliminary report, memorandum or note that the Committee may have prepared or any evidence that the Committee may have taken shall be made available to the new Committee.

286.

Applicability of general rules to Committees.

- Except for matters for which special provision is made in the rules relating to any particular Committee, the general rules in this Chapter shall apply to all Committees; and if and so far as any provision in the special rules relating to a Committee is inconsistent with the general rules, the former rules shall prevail.

Business Advisory Committee

287.

Constitution.

- At the commencement of the House or from time to time, as the case may be, the Speaker may nominate a Committee called the Business Advisory Committee consisting of not more than fifteen members including the Speaker who shall be the Chairperson of the Committee.

288.

Functions.

(1)

It shall be the function of the Committee to recommend the time that should be allocated for the discussion of the stage or stages of such Government Bills and other business as the Speaker, in consultation with the Leader of the House, may direct for being referred to the Committee.

(2)

The Committee shall have the power to indicate in the proposed time-table the different hours at which the various

stages of the Bill or other business shall be completed.

(3)

The Committee shall have such other functions as may be assigned to it by the Speaker from time to time.

Explanation. - The expression other business referred to in this rule and rules 290A and 291 means business, other than private members' Bills under rule 65 and private members' resolutions under rule 170.

289.

Report.

- The recommendations of the Committee shall be presented to the House in the form of a report.

290.

Motion in House after presentation of report.

- At any time after the report has been presented to the House a motion may be moved that the House agrees or agrees with amendments or disagrees with the report:

Provided that an amendment may be moved that the report be referred back to the Committee either without limitation or with reference to any particular matter:

Provided further that not more than half an hour shall be allotted for the discussion of the motion and no member shall speak for more than five minutes on such motion.

290A.

Notification of Allocation of Time Order.

- The allocation of time in respect of Bills and other business as approved by the House shall take effect as if it were an order of the House and shall be notified in the Bulletin.

291.

Disposal of outstanding matters at appointed hour.

- At the appointed hour, in accordance with the Allocation of Time Order for the completion of a particular stage of a Bill or other business, the Speaker shall forthwith put every question necessary to dispose of all the outstanding matters in connection with that stage of the Bill or other business.

292.

Variation in Allocation of Time Order.

- No variation in the Allocation of Time Order shall be made except on a motion made, with the consent of the Speaker, and accepted by the House:

Provided that the Speaker may, after taking the sense of the House, increase the time, not exceeding one hour, without any motion being moved.

Committee on Private Members' Bills and Resolutions

293.

Constitution.

(1)

There shall be a Committee on Private Members' Bills and Resolutions consisting of not more than fifteen members.

(2)

The Committee shall be nominated by the Speaker and shall hold office for a term not exceeding one year.

294.

Functions.

(1)

The functions of the Committee shall be -

(a)

to examine every Bill seeking to amend the Constitution notice of which has been given by a private member, before a motion for leave to introduce the Bill is included in the list of business;

(b)

to examine all private members' Bills after they are introduced and before they are taken up for consideration in the House and to classify them according to their nature, urgency and importance into two categories namely, category A and category B;

(c)

to recommend the time that should be allocated for the discussion of the stage or stages of each private member's Bill

and also to indicate in the time-table so drawn up the different hours at which various stages of the Bill in a day shall be completed;

(d)

to examine every private member's Bill which is opposed in the House on the ground that the Bill initiates legislation outside the legislative competence of the House, and the Speaker considers such objection prima facie tenable;

(e)

to recommend time-limit for the discussion of private members' resolutions and other ancillary matters.

(2)

The Committee shall perform such other functions in respect of private members' Bills and resolutions as may be assigned to it by the Speaker from time to time.

295.

Motion in House after presentation of report.

- At any time after the report has been presented to the House a motion may be moved that the House agrees or agrees with amendments or disagrees with the report:

Provided that an amendment may be moved that the report be referred back to the Committee either without limitation or with reference to any particular matter:

Provided further that not more than half an hour shall be allotted for discussion of the motion and no member shall speak for more than five minutes on such motion.

296.

Classification and Allocation of Time.

- The classification of Bills and the allocation of time in respect of Bills and resolutions as approved by the House shall take effect as if it were an order of the House.

297.

Disposal of outstanding matters at appointed hour.

- At the appointed hour, in accordance with the Allocation of Time Order, the Speaker shall forthwith put every question necessary to dispose of all the outstanding matters in connection with the completion of a particular stage of the Bill or the resolution.

Select Committees on Bills

298.

Constitution.

- The members of a Select Committee on a Bill shall be appointed by the House when a motion that the Bill be referred to a Select Committee is made.

299.

Presence of other members at sittings.

- Members who are not members of the Select Committee may be present during the deliberations of the Committee but shall not address the Committee or sit in the body of the Committee:

Provided that a Minister may with the permission of the Chairperson address the Committee of which such Minister may not be a member.

300.

Notice of amendments and procedure generally.

(1)

If notice of a proposed amendment has not been given before the day on which the Bill is taken up by the Select Committee, any member may object to the moving of the amendment and such objection shall prevail unless the Chairperson allows the amendment to be moved.

(2)

In other respects, the procedure in a Select Committee shall, as far as practicable, be the same as is followed in the House during the consideration stage of a Bill, with such adaptations, whether by way of modification, addition or omission, as the Speaker may consider necessary or convenient.

301.

Notice of amendments by other members.

- When a Bill has been referred to a Select Committee any notice given by a member of any amendment to a clause in

the Bill shall stand referred to the Committee provided that where notice of amendment is received from a member who is not a member of the Select Committee such amendment shall not be taken up by the Committee unless moved by member of the Committee.

302.

Power to take evidence.

- A Select Committee may hear expert evidence and representatives of special interests affected by the measure before them.

303.

Report.

(1)

As soon as may be, after a Bill has been referred to a Select Committee, the Select Committee shall meet from time to time in accordance with rule 264 to consider the Bill and shall make a report thereon within the time fixed by the House: Provided that where the House has not fixed any time for the presentation of the report by a Select Committee, the report shall be presented before the expiry of three months from the date on which the House adopted the motion for the reference of the Bill to the Select Committee:

Provided further that the House may at any time, on a motion being made, direct that the time for the presentation of the report by the Select Committee be extended to a date specified in the motion.

(2)

The Select Committee shall in their report state whether the publication of the Bill directed by these rules has taken place, and the date on which the publication has taken place.

(3)

Where a Bill has been altered, the Select Committee may, if they think fit, include in their report a recommendation to the member incharge of the Bill that the next motion of such member should be a motion for circulation, or, where the Bill has already been circulated, for recirculation.

(4)

Any member of the Select Committee may record a minute of dissent on any matter or matters connected with the Bill or dealt with in the report.

(5)

A minute of dissent shall be couched in temperate and decorous language and shall not refer to any discussion in the Select Committee nor cast aspersion on the Committee.

(6)

If in the opinion of the Speaker a minute of dissent contains words, phrases or expressions which are unparliamentary or otherwise inappropriate, the Speaker may order such words, phrases or expressions to be expunged from the minute of dissent.

304.

Presentation of report.

- The report of the Select Committee on a Bill together with the minutes of dissent, if any, shall be presented to the House by the Chairperson or in the absence of the Chairperson, by any member of the Committee.

305.

Printing and publication of reports.

- The Secretary-General shall cause every report of a Select Committee to be printed, and a copy of the report shall be made available for the use of every member of the House. The report, and the Bill, as reported by the Select Committee, shall be published in the Gazette.

Committee on Papers laid on the Table

305A.

Constitution.

(1)

There shall be a Committee on Papers Laid on the Table consisting of not more than 15 members.

(2)

The Committee shall be nominated by the Speaker and shall hold office for a term not exceeding one year.

305B.

Functions.

(1)

The functions of the Committee shall be to examine all papers laid on the Table of the House by Ministers and to report to the House on -

(a)

whether there has been compliance of the provisions of the Constitution, Act, rule or regulation under which the paper has been laid;

(b)

whether there has been any unreasonable delay in laying the paper;

(c)

if there has been such delay, whether a statement explaining the reasons for delay has been laid on the Table of the House and whether those reasons are satisfactory;

(d)

whether both the Hindi and English versions of the paper have been laid on the Table; and

(e)

whether a statement explaining the reason for not laying the Hindi version has been given and whether such reasons are satisfactory.

(2)

The Committee shall perform such other functions in respect of the papers laid on the Table as may be assigned to it by the Speaker from time to time.

305C.

Restriction on raising matters in House about papers laid.

- A member wishing to raise any of the matters referred to in sub-rule (1) of rule 305B shall refer it to the Committee and not raise it in the House.

Committee on Petitions

306.

Constitution.

- At the commencement of the House, or from time to time, as the case may be, the Speaker shall nominate a Committee on Petitions consisting of not less than fifteen members:

Provided that a Minister shall not be nominated a member of the Committee, and where a member, after nomination to the Committee is appointed a Minister, such member shall cease to be a member of the Committee from the date of such appointment.

307.

Functions.

(1)

The Committee shall examine every petition referred to it, and if the petition complies with these rules, the Committee may direct that it be circulated. Where circulation of the petition has not been directed, the Speaker may at any time direct that the petition be circulated.

(2)

Circulation of the petition shall be in extension or in summary form as the Committee or the Speaker, as the case may be, may direct.

(3)

It shall also be the duty of the Committee to report to the House on specific complaints made in the petition referred to it after taking such evidence as it deems fit and to suggest remedial measures either in a concrete form applicable to the case under review or to prevent such cases in future.

307A.

[Evidence of experts, interested parties and availing of public opinion.

[Inserted by Notification No. 12/1/CI/2017, dated 3.8.2017.]

(1)

The Committee may take evidence of experts or interested parties on the petitions / representations on their own initiative or on requests made.

(2)

The Committee may also avail of the public opinion to make the report on the petitions / representations.

The witnesses who express their desire to appear before the Committee shall supply sufficient number of copies of written memoranda for circulation to the members of the Committee who may consider the same at their sitting and then decide whether such witnesses may be called to appear before the Committee.]

Committee on Public Accounts

308.

Functions.

(1)

There shall be a Committee on Public Accounts for the examination of accounts showing the appropriation of sums granted by the House for the expenditure of the Government of India, the annual finance accounts of the Government of India and such other accounts laid before the House as the Committee may think fit.

(2)

In scrutinising the Appropriation Accounts of the Government of India and the report of the Comptroller and Auditor-General thereon, it shall be the duty of the Committee to satisfy itself -

(a)

that the moneys shown in the accounts as having been disbursed were legally available for, and applicable to, the service or purpose to which they have been applied or charged;

(b)

that the expenditure conforms to the authority which governs it; and

(c)

that every re-appropriation has been made in accordance with the provisions made in this behalf under rules framed by competent authority.

(3)

It shall also be the duty of the Committee -

(a)

to examine the statement of accounts showing the income and expenditure of State corporations, trading and manufacturing schemes, concerns and projects together with the balance sheets and statements of profit and loss accounts which the President may have required to be prepared or are prepared under provisions of the statutory rules regulating the financing of a particular corporation, trading or manufacturing scheme or concern or project and the report of the Comptroller and Auditor-General thereon;

(b)

to examine the statement of accounts showing the income and expenditure of autonomous and semi-autonomous bodies, Functions. the audit of which may be conducted by the Comptroller and Auditor-General of India either under the directions of the President or by a statute of Parliament; and

(c)

to consider the report of the Comptroller and Auditor-General in cases where the President may have required the Comptroller and Auditor-General to conduct an audit of any receipts or to examine the accounts of stores and stocks.

(4)

If any money has been spent on any service during a financial year in excess of the amount granted by the House for that purpose, the Committee shall examine with reference to the facts of each case the circumstances leading to such an excess and make such recommendation as it may deem fit:

Provided that the Committee shall not exercise its functions in relation to such public undertakings as are allotted to the Committee on Public Undertakings by these rules or by the Speaker.

309.

Constitution.

(1)

The Committee shall consist of not more than [22 members comprising 15 members who shall be elected by the House every year from amongst its members according to the principle of proportional representation by means of the single transferable vote [and not more than 7 members of Rajya Sabha to be nominated by that House for being associated with the Committee:]

[Substituted by LS Bn. (II) dated 9.5.1989, para 2930.]

Provided that a Minister shall not be elected a member of the Committee, and if a member, after election to the Committee, is appointed a Minister, such member shall cease to be a member of the Committee from the date of such appointment.

(2)

The term of office of members of the Committee shall not exceed one year.

Committee on Estimates

310.

Functions.

- There shall be a Committee on Estimates for the examination of such of the estimates as may seem fit to the Committee or are specifically referred to it by the House or the Speaker. The functions of the Committee shall be -

(a)

to report what economies, improvements in organisation, efficiency or administrative reform, consistent with the policy underlying the estimates, may be effected;

(b)

to suggest alternative policies in order to bring about efficiency and economy in administration;

(c)

to examine whether the money is well laid out within the limits of the policy implied in the estimates; and

(d)

to suggest the form in which the estimates shall be presented to Parliament:

Provided that the Committee shall not exercise its functions in relation to such public undertakings as are allotted to the Committee on Public Undertakings by these rules or by the Speaker.

311.

Constitution.

(1)

The Committee shall consist of not more than thirty members who shall be elected by the House every year from amongst its members according to the principle of proportional representation by means of the single transferable vote:

Provided that a Minister shall not be elected a member of the Committee, and if a member, after election to the Committee, is appointed a Minister, such member shall cease to be a member of the Committee from the date of such appointment.

(2)

The term of office of members of the Committee shall not exceed one year.

312.

Examination of estimates.

- The Committee may continue the examination of the estimates from time to time throughout the financial year and report to the House as its examination proceeds. It shall not be incumbent on the Committee to examine the entire estimates of any one year. The Demands for Grants may be finally voted notwithstanding the fact that the Committee has made no report.

Committee on Public undertakings

312A.

Functions.

- There shall be a Committee on Public Undertakings for the examination of the working of the public undertakings specified in the Fourth Schedule. The functions of the Committee shall be -

(a)

to examine the reports and accounts of the public undertakings specified in the Fourth Schedule;

(b)

to examine the reports, if any, of the Comptroller and Auditor-General on the public undertakings;

(c)

to examine, in the context of the autonomy and efficiency of the public undertakings, whether the affairs of the public undertakings are being managed in accordance with sound business principles and prudent commercial practices; and

(d)

to exercise such other functions vested in the Committee on Public Accounts and the Committee on Estimates in relation to the public undertakings specified in the Fourth Schedule as are not covered by clauses (a), (b) and (c) above and as may be allotted to the Committee by the Speaker from time to time:

Provided that the Committee shall not examine and investigate any of the following, namely: -

- (i) matters of major Government policy as distinct from business or commercial functions of the public undertakings;
- (ii) matters of day-to-day administration; and
- (iii) matters for the consideration of which machinery is established by any special statute under which a particular public undertaking is established.

312B.

Constitution.

(1)

The Committee shall consist of not more than [22 members comprising 15 members]

[Substituted by L.S. Bn. (II) dated 9.5.1989, para 2930.]

who shall be elected by the House every year from amongst its members according to the principle of proportional representation by means of the single transferable vote [and not more than 7 members of Rajya Sabha to be nominated by that House for being associated with the Committee]

[Added by L.S. Bn. (II) dated 9.5.1989, para 2930.]

:

Provided that a Minister shall not be elected a member of the Committee, and if a member, after election to the Committee, is appointed a Minister, such member shall cease to be a member of the Committee from the date of such appointment.

(2)

The term of office of members of the Committee shall not exceed one year.

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[Omitted by L.S. Bn. (II) dated 9.5.1989, para 2930.]

Committee of Privileges

313.

Constitution.

- At the commencement of the House or from time to time, as the case may be, the Speaker shall nominate a Committee of Privileges consisting of not more than fifteen members.

314.

Functions.

(1)

The Committee shall examine every question referred to it and determine with reference to the facts of each case whether a breach of privilege is involved and, if so, the nature of the breach, the circumstances leading to it and make such recommendations as it may deem fit.

(2)

The report may also state the procedure to be followed by the House in giving effect to the recommendations made by the Committee.

315.

Consideration of report by House.

(1)

After the report has been presented, the Chairperson or any member of the Committee or any other member may move that the report be taken into consideration whereupon the Speaker may put the question to the House.

(2)

Before putting the question to the House, the Speaker may permit a debate on the motion, not exceeding half an hour in

duration, and such debate shall not refer to the details of the report further than is necessary to make out a case for the consideration of the report by the House.

(3)

After the motion made under sub-rule (1) is agreed to, the Chairperson or any member of the Committee or any other member, as the case may be, may move that the House agrees, or disagrees or agrees with amendments, with the recommendations contained in the report.

316.

Priority for consideration of report by House.

- A motion that the report of the Committee be taken into consideration shall be accorded the priority assigned to a matter of privilege under sub-rule (1) of rule 225, unless there has been undue delay in bringing it forward:

Provided that when a date has already been fixed for the consideration of the report, it shall be given priority as a matter of privilege on the day so appointed.

Committee on Subordinate Legislation

317.

Functions.

- There shall be a Committee on Subordinate Legislation to scrutinize and report to the House whether the powers to make regulations, rules, sub-rules, bye-laws etc., conferred by the Constitution or delegated by Parliament are being properly exercised within such delegation.

318.

Constitution.

(1)

The Committee shall consist of not more than fifteen members who shall be nominated by the Speaker:

Provided that a Minister shall not be nominated a member of the Committee, and if a member, after nomination to the Committee is appointed a Minister, such member shall cease to be a member of the Committee from the date of such appointment.

(2)

The term of office of members of the Committee shall not exceed one year.

319.

Numbering and publication of Orders.

- Each regulation, rule, sub-rule, bye-law etc. framed in pursuance of the provisions of the Constitution or the legislative functions delegated by Parliament to a subordinate authority, and which is required to be laid before the House, hereinafter referred to as "Order", shall, subject to such rules as the Speaker may in consultation with the Leader of the House prescribe, be numbered centrally and published in the Gazette immediately after it is promulgated.

320.

Examination of Orders.

- After each such Order referred to in rule 319 is laid before the House, the Committee shall, in particular, consider -

(i)

whether it is in accord with the general objects of the Constitution or the Act pursuant to which it is made;

(ii)

whether it contains matter which in the opinion of the Committee should more properly be dealt with in an Act of Parliament.

(iii)

whether it contains imposition of any tax;

(iv)

whether it directly or indirectly bars the jurisdiction of the courts;

(v)

whether it gives retrospective effect to any of the provisions in respect of which the Constitution or the Act does not expressly give any such power;

(vi)

whether it involves expenditure from the Consolidated Fund of India or the public revenues;

(vii)

whether it appears to make some unusual or unexpected use of the powers conferred by the Constitution or the Act pursuant to which it is made;

- (viii)
whether there appears to have been unjustifiable delay in its publication or in laying it before Parliament; and
(ix)
whether for any reason its form or purport calls for any elucidation.

321.

Report.

- (1)
If the Committee is of opinion that any Order should be annulled wholly or in part, or should be amended in any respect, it shall report that opinion and the grounds thereof to the House.

- (2)
If the Committee is of opinion that any other matter relating to any Orders should be brought to the notice of the House, it may report that opinion and matter to the House.

322.

Power of Speaker to give directions.

- The Speaker may issue such directions as may be considered necessary for regulating the procedure in connection with all matters connected with the consideration of any question of Subordinate Legislation either in the Committee or in the House.

Committee on Government Assurances

323.

Functions.

- There shall be a Committee on Government Assurances to scrutinise the assurances, promises, undertakings, etc., given by Ministers, from time to time, on the floor of the House and to report on -

- (a)
the extent to which such assurances, promises, undertakings, etc. have been implemented; and
(b)
where implemented whether such implementation has taken place within the minimum time necessary for the purpose.

324.

Constitution.

- (1)
The Committee shall consist of not more than fifteen members who shall be nominated by the Speaker:
Provided that a Minister shall not be nominated a member of the Committee, and if a member, after nomination to the Committee is appointed a Minister, such member shall cease to be a member of the Committee from the date of such appointment.

- (2)
The term of office of members of the Committee shall not exceed one year.

Committee on Absence of Members from the Sittings of the House

325.

Constitution.

- The Committee on Absence of Members from the sittings of the House shall consist of fifteen members nominated by the Speaker and shall hold office for a term not exceeding one year.

326.

Functions.

- (1)
The functions of the Committee shall be: -
(i)
to consider all applications from members for leave of absence from the sittings of the House; and
(ii)
to examine every case where a member has been absent for a period of sixty days or more, without permission, from the sittings of the House and to report whether the absence should be condoned or circumstances of the case justify

that the House should declare the seat of the member vacant.

(2)

The Committee shall perform such other functions in respect of attendance of members in the House as may be assigned to it by the Speaker from time to time.

327.

Pleasure of House taken where leave of absence recommended.

- Where the Committee recommends that leave of absence be granted to a member or the absence be condoned, as the case may be, the pleasure of the House shall be taken by the Speaker in the following terms on a day as soon as may be after the presentation of the report: -

'The Committee on Absence of Members from the Sittings of the House in its...report has recommended that leave of absence be granted or absence be condoned (as the case may be) in respect of Smt./ Kumari/ Shri..... for the period indicated in the report.

The member is being informed accordingly.'

328.

Motion where leave of absence not recommended.

- Where leave of absence is not recommended by the Committee in respect of any application, a motion may be moved by any member that the House agrees or agrees with amendment or disagrees with the recommendations of the Committee in respect of that application.

Rules Committee

329.

Functions.

- There shall be a Committee on Rules to consider matters of procedure and conduct of business in the House and to recommend any amendments or additions to these rules that may be deemed necessary.

330.

Constitution.

- The Committee on Rules shall be nominated by the Speaker and shall consist of fifteen members including the Chairperson of the Committee. The Speaker shall be the ex-officio Chairperson of the Committee.

331.

Laying of report on Table.

(1)

The recommendations of the Committee shall be laid on the Table and within a period of seven days, beginning with the day on which they are so laid, any member may give notice of any amendment to such recommendations.

(2)

Any notice given by a member of any amendment to the recommendations of the Committee shall stand referred to the Committee who shall consider it and make such changes in their recommendations as the Committee may consider fit. The final report of the Committee after taking into consideration the amendments suggested by the members shall be laid on the Table. Thereafter, on the House agreeing to the report on a motion made by a member of the Committee, the amendments to the rules as approved by the House, shall be promulgated by the Speaker in the Bulletin.

(3)

If notice of such amendment has not been given within seven days, the recommendations of the Committee shall be deemed to have been approved by the House and on the expiry of the said period the Speaker shall promulgate in the Bulletin the amendments to the rules as recommended by the Committee.

(4)

The amendments to the rules shall come into force on their publication in the Bulletin unless otherwise specified.

Committee on the Welfare of Scheduled Castes and Scheduled Tribes

331A.

Functions.

- There shall be a Committee on the Welfare of Scheduled Castes and Scheduled Tribes. The functions of the Committee shall be: -

(a)

to consider the reports submitted by the National Commission for the Scheduled Castes under article 338(5)(d) and the

[National Commission for the Scheduled Tribes under article 338A(5)(d)]

[Substituted by L.S. Bn. (II) dated 19.3.2010, para 1265.]

of the Constitution and to report as to the measures that should be taken by the Union Government in respect of matters within the purview of the Union Government including the Administrations of the Union Territories;

(b)

to report on the action taken by the Union Government and the Administrations of the Union Territories on the measures proposed by the Committee;

(c)

to examine the measures taken by the Union Government to secure due representation of the Scheduled Castes and Scheduled Tribes in services and posts under its control (including appointments in the Public Sector Undertakings, Statutory and Semi- Government Bodies and in the Union Territories) having regard to the provisions of article 335;

(d)

to report on the working of the welfare programmes for the Scheduled Castes and the Scheduled Tribes in the Union Territories; and

(e)

to examine such other matters as may seem fit to the Committee or are specifically referred to it by the House or the Speaker.

331B.

Constitution.

(1)

The Committee shall consist of not more than [30 members, comprising 20 members]

[Substituted by L.S. Bn. (II) dated 9.5.1989, para 2930.]

who shall be elected by the House every year from amongst its members according to the principle of proportional representation by means of the single transferable vote [and not more than 10 members of Rajya Sabha to be nominated by that House for being associated with the Committee]

[Added by L.S. Bn. (II) dated 9.5.1989, para 2930.]

:

Provided that a Minister shall not be elected a member of the Committee, and if a member, after election to the Committee, is appointed a Minister, such member shall cease to be a member of the Committee from the date of such appointment.

(2)

The term of office of members of the Committee shall not exceed one year.

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[Omitted by L.S. Bn. (II) dated 9.5.1989, para 2930.]

[Departmentally Related Standing Committees

[Substituted by L.S. Bn. (II) dated 29.3.1993, para 1921.]

331C.

Departmentally Related Standing Committees.

(1)

There shall be Departmentally Related Standing Committees of the Houses (to be called the Standing Committees).

(2)

The Ministries/Departments covered under the jurisdiction of each of the Standing Committees shall be as specified in the Fifth Schedule:

Provided that the Chairperson, Rajya Sabha and the Speaker may alter the said Schedule from time to time in consultation with each other.

331D.

Constitution.

(1)

Each of the Standing Committees constituted under Rule 331C shall consist of not more than [31 members, 21

members to be nominated by the Speaker from amongst the members of Lok Sabha and 10]

[Substituted by L.S. Bn. (II) dated 20.7.2004, Para 253.]

members to be nominated by the Chairperson, Rajya Sabha, from amongst the members of Rajya Sabha.

(2)

A Minister shall not be nominated as a member of the Committee, and if a member after nomination to the Committee is appointed a Minister, such member shall cease to be a member of the Committee from the date of such appointment.

(3)

The Chairperson of Committees as specified in Part I of Fifth Schedule shall be appointed by the Chairperson, Rajya Sabha and Chairperson of Committees as specified in Part II of the said Schedule shall be appointed by the Speaker, from amongst the members of the Committees.

(4)

The term of office of the members of the Committees shall not exceed one year.

331E.

Functions.

(1)

The functions of each of the Standing Committees shall be: -

(a)

to consider the Demands for Grants of the concerned Ministries/ Departments and make a report on the same to the Houses. The report shall not suggest anything of the nature of cut motions;

(b)

to examine such Bills pertaining to the concerned Ministries/Departments as are referred to the Committee by the Chairperson, Rajya Sabha or the Speaker, as the case may be, and make report thereon;

(c)

to consider annual reports of Ministries/ Departments and make reports thereon;

(d)

to consider national basic long term policy documents presented to the Houses, if referred to the Committee by the Chairperson, Rajya Sabha or the Speaker, as the case may be, and make reports thereon.

(2)

The Standing Committees shall not consider the matters of day to day administration of the concerned Ministries/Departments.

331F.

Applicability of provisions relating to functions.

- Each of the functions of these Committees as provided in clauses (a) to (d) of sub-rule (1) of rule 331E shall be applicable to the Committees from the date as may be notified by the Chairperson, Rajya Sabha and the Speaker in respect of applicability of particular function.

331G.

Procedure relating to Demands for Grants.

- The following procedure shall be followed by each of the Standing Committees in their consideration of the Demands for Grants and making a report thereon to the Houses: -

(a)

after the general discussion on the Budget in the Houses is over, the Houses shall be adjourned for a fixed period;

(b)

the Committees shall consider the Demands for Grants of the concerned Ministries during the aforesaid period;

(c)

the Committees shall make their report within the period and shall not ask for more time;

(d)

the Demands for Grants shall be considered by the House in the light of the reports of the Committees; and

(e)

there shall be a separate report on the Demands for Grants of each Ministry.

331H.

Procedure relating to Bills.

- The following procedure shall be followed by each of the Standing Committees in examining the Bills and making report thereon: -

(a)

the Committee shall consider the general principles and clauses of the Bills referred to them and make report thereon;

(b)

the Committee shall consider only such Bills introduced in either of the Houses as are referred to them by the Chairperson, Rajya Sabha or the Speaker, as the case may be; and

(c)

the Committee shall make report on the Bills in the given time.

331I.

Reports of the Committees.

(1)

The Reports of the Committees shall be based on broad consensus.

(2)

A Member of a Standing Committee may give note of dissent on the report of the Committee.

(3)

The note of dissent shall be presented to the House along with the report.

331J.

Applicability of General Rules.

- Except for matters for which special provision is made in the rule relating to the Standing Committees, the general rules applicable to other Parliamentary Committees in Rajya Sabha shall apply mutatis mutandis to the Standing Committees specified in Part-I of the Fifth Schedule and the general rules applicable to other Parliamentary Committees in Lok Sabha shall apply to Standing Committees as specified in Part-II of the Schedule.

331K.

Venue of sittings.

- The Standing Committees shall not work in any other place except the precincts of Parliament House, unless otherwise specifically permitted by the Chairperson, Rajya Sabha or the Speaker, as the case may be.

331L.

Power to have expert opinion.

- The Committee may avail of the expert opinion or the public opinion to make the report.

331M.

Matters not to be considered.

- The Standing Committees shall not generally consider the matters which are considered by the other Parliamentary Committees.

331N.

Reports to have persuasive value.

- The report of the Standing Committees shall have persuasive value and shall be treated as considered advice given by the Committees.]

[Committee on the Empowerment of Women

[Added by L.S. Bn. (II), dated 6.3.1997, Para 1003.]

331O.

Constitution.

(1)

There shall be a Committee on the Empowerment of Women -

(2)

The Committee shall consist of not more than 30 Members, 20 Members to be nominated by the Speaker from amongst the Members of Lok Sabha and 10 Members to be nominated by the Chairperson, Rajya Sabha, from amongst the Members of Rajya Sabha.

(3)

A Minister shall not be a Member of the Committee, and if a Member, after nomination to the Committee is appointed as Minister, such member shall cease to be a Member of the Committee from the date of such appointment.

(4)

The Chairperson of the Committee shall be appointed by the Speaker from amongst the Members of the Committee.

(5)

The term of office of Members of the Committee shall not exceed one year.

331P.

Functions.

- The functions of the Committee shall be -

(1)

to consider the reports submitted by the National Commission for Women and to report on the measures that should be taken by the Union Government for improving the status/conditions of women in respect of matters within the purview of the Union Government including the Administrations of the Union Territories;

(2)

to examine the measures taken by the Union Government to secure for women equality, status and dignity in all matters;

(3)

to examine the measures taken by the Union Government for comprehensive education and adequate representation of women in Legislative bodies/services and other fields;

(4)

to report on the working of the welfare programmes for the women;

(5)

to report on the action taken by the Union Government and Administrations of the Union Territories on the measures proposed by the Committee; and

(6)

to examine such other matters as may seem fit to the Committee or are specifically referred to it by the House or the Speaker and the Rajya Sabha or the Chairperson, Rajya Sabha.

331Q.

Matters not to be considered by other Committees.

- The other Parliamentary Committees, including the Departmentally related Standing Committees, shall not, as far as possible, consider the matters which are exclusively assigned to this Committee under the rules.]

Chapter XXVII

General Rules of Procedure

Notices

332.

Mode of giving notice.

(1)

Every notice required by these rules shall be given in writing addressed to the Secretary-General and signed by the member giving notice, and shall be left at the Parliamentary Notice Office which shall be kept open for this purpose between the hours to be notified from time to time on every day except Sunday or a public holiday.

(2)

Notices left at the Parliamentary Notice Office after the hours notified under sub-rule (1) shall be treated as given on the next day.

333.

Contingent Notice.

(1)

A member may give notice of a motion or resolution or Bill which the member may desire to be taken up on the conclusion of other business on which that motion is contingent and if such a notice is admitted by the Speaker it may be included in the list of business under the heading; contingent notice of motion or resolution or Bill, as the case may be.

(2)

A contingent notice shall be in such form as the Speaker may prescribe and shall be taken up in the House only after the business on which the notice is contingent is disposed of.

334.

Circulation of notices and papers to members.

(1)

The Secretary-General shall make every effort to circulate to each member a copy of every notice or other paper which is required by these rules to be made available for the use of members.

(2)

A notice or other paper shall be deemed to have been made available for the use of every member if a copy thereof is deposited in such manner and in such places as the Speaker may, from time to time, direct.

334A.

Prohibition of advance publicity of notices.

- A notice shall not be given publicity by any member or other person until it has been admitted by the Speaker and circulated to member:

Provided that a notice of a question shall not be given any publicity until the day on which the question is answered in the House.

335.

Lapse of pending notices on prorogation of House.

- On the prorogation of the House, all pending notices, other than notices of intention to move for leave to introduce a Bill, shall lapse and fresh notices shall be given for the next session:

Provided that a fresh notice shall be necessary of intention to move for leave to introduce any Bill in respect of which sanction or recommendation has been granted under the Constitution if the sanction or recommendation, as the case may be, has ceased to be operative.

336.

Motion, resolution or amendment moved not to lapse.

- A motion, resolution or an amendment, which has been moved and is pending in the House, shall not lapse by reason only of the prorogation of the House.

337.

Power of Speaker to amend notices.

- If in the opinion of the Speaker, any notice contains words, phrases or expressions which are argumentative, unparliamentary, ironical, irrelevant, verbose, or otherwise inappropriate, the Speaker may, while exercising discretion, amend such notice before it is circulated.

Motions

338.

Repetition of motion.

- A motion shall not raise a question substantially identical with one on which the House has given a decision in the same session.

339.

Withdrawal of motion.

(1)

A member who has made a motion may withdraw the same by leave of the House.

(2)

The leave shall be signified not upon question but by the Speaker taking the pleasure of the House. The Speaker shall ask: 'Is it your pleasure that the motion be withdrawn?' If no one dissents, the Speaker shall say: The motion is by leave withdrawn. But if any dissentient voice be heard or a member rises to continue the debate the Speaker shall forthwith put the motion:

Provided that if an amendment has been proposed to a motion, the original motion shall not be withdrawn until the amendment has been disposed of.

340.

Adjournment of debate on motion.

- At any time after a motion has been made, a member may move that the debate on the motion be adjourned.

341.

Motion in abuse of rules or dilatory motion.

(1)

If the Speaker is of opinion that a motion for the adjournment of a debate is an abuse of the rules of the House, the Speaker may either forthwith put the question thereon or decline to propose the question.

(2)

If the Speaker is of opinion that a motion for recirculation of a Bill to elicit further opinion thereon is in the nature of a dilatory motion in abuse of the rules of the House in as much as the original circulation was adequate or comprehensive or that no circumstance has arisen since the previous circulation to warrant the recirculation of the Bill, the Speaker may, forthwith put the question thereon or decline to propose the question.

(3)

If the Speaker is of opinion that a motion for recommitment of a Bill to a Select Committee of the House or a Joint Committee of the Houses or circulation or recirculation of the Bill after the Select Committee of the House or the Joint Committee of the Houses has reported thereon, is in the nature of a dilatory motion in abuse of the rules of the House inasmuch as the Select Committee of the House or the Joint Committee of the Houses, as the case may be, has dealt with the Bill in a proper manner or that no unforeseen or new circumstance has arisen since the Bill emerged from such Committee, the Speaker may forthwith put the question thereon or decline to propose the question.

342.

Motion to consider policy, situation, statement or any other matter.

- A motion that the policy or situation or statement or any other matter be taken into consideration shall not be put to the vote of the House, but the House shall proceed to discuss such matter immediately on conclusion of the speech of the mover and no further question shall be put at the conclusion of the debate at the appointed hour unless a member moves a substantive motion in appropriate terms to be approved by the Speaker and the vote of the House shall be taken on such motion.

Anticipating Discussion

343.

Anticipating discussion.

- No member shall anticipate the discussion of any subject of which notice has been given provided that in determining whether a discussion is out of order on the ground of anticipation, regard shall be had by the Speaker to the probability of the matter anticipated being brought before the House within a reasonable time.

Amendments

344.

Scope of amendments.

(1)

An amendment shall be relevant to, and within the scope of, the motion to which it is proposed.

(2)

An amendment shall not be moved which has merely the effect of a negative vote.

(3)

An amendment on a question shall not be inconsistent with a previous decision on the same question.

345.

Notice of amendments.

- Notice of an amendment to a motion shall be given one day before the day on which the motion is to be considered, unless the Speaker allows the amendment to be moved without such notice.

346.

Selection of amendments.

- The Speaker shall have power to select the amendments to be proposed in respect of any motion, and if thinks fit, may call upon any member who has given notice of an amendment to give such explanation of the object of the amendment as may enable the Speaker to form a judgement upon it.

347.

Putting of amendments.

- The Speaker may put amendments in such order as may be considered appropriate:

Provided that the Speaker may refuse to put an amendment which in the opinion of the Speaker is frivolous.

Communication of President's Recommendation

348.

Mode of Communication of recommendation.

- Every sanction or recommendation by the President shall be communicated to the Secretary-General by a Minister in the following terms: -

'The President, having been informed of the subject matter of the proposed Bill, motion, demand for grant or amendment, accords the previous sanction to the introduction of the Bill or the moving of the amendment or, recommends the introduction of the Bill or the moving of the motion, demand for grant or amendment in the House or recommends to the House the consideration of the Bill.'

It shall be printed in the proceedings of the House in such manner as the Speaker may direct.

Rules to be Observed by Members

349.

Rules to be observed by members in House.

- Whilst the House is sitting, a member -

- (i)
shall not read any book, newspaper or letter except in connection with the business of the House;
- (ii)
shall not interrupt any member while speaking by disorderly expression or noises or in any other disorderly manner;
- (iii)
shall bow to the Chair while entering or leaving the House, and also when taking or leaving one's own seat;
- (iv)
shall not pass between the Chair and any member who is speaking;
- (v)
shall not leave the House when the Speaker is addressing the House;
- (vi)
shall always address the Chair;
- (vii)
shall keep to one's own usual seat while addressing the House;
- (viii)
shall maintain silence when not speaking in the House;
- (ix)
shall not obstruct proceedings, hiss or interrupt and shall avoid making running commentaries when [another member is speaking;]
[Substituted by L.S. Bn. (II) dated 9.5.1989, para 2930.]
- (x)
shall not applaud when a stranger enters any of the Galleries, or the Special Box;
- (xi)
[shall not shout slogans in the House;
[Substituted by L.S. Bn. (II) dated 9.5.1989, para 2930.]
- (xii)
shall not sit or stand with back towards the Chair;
- (xiii)
shall not approach the Chair personally in the House. The member may send chits to the officers at the Table, if necessary;
- (xiv)
shall not wear or display badges of any kind in the House {except the National Flag in the form of a lapel pin or a badge};
- (xv)
shall not bring or display arms in the House;
- (xvi)
shall not display flags, emblems or any exhibits in the House;
- (xvii)
shall not leave the House immediately after delivering the speech;
- (xviii)

shall not distribute within the precincts of Parliament House any literature, questionnaire, pamphlets, press notes, leaflets, etc. not connected with the business of the House;

(xix)

shall not place one's hat/cap on the desk in the House, bring boards in the Chamber for keeping files or for writing purposes, smoke or enter the House with the coat hanging on the arms;

(xx)

shall not carry walking stick into the House unless permitted by the Speaker on health grounds;

(xxi)

shall not tear off documents in the House in protest;

(xxii)

shall not bring or play cassette or tape recorder in the House; and

(xxiii)

shall avoid talking or laughing in Lobby loud enough to be heard in the House.]

350.

Only member called by Speaker entitled to speak.

- When a member rises to speak, the name of such member shall be called by the Speaker. If more members than one rise at the same time, the member whose name is so called shall be entitled to speak.

351.

Mode of addressing House.

- A member desiring to make any observations on any matter before the House shall speak from one's own place, shall rise when speaking and shall address the Speaker:

Provided that a member disabled by sickness or infirmity may be permitted to speak sitting.

352.

Rules to be observed while speaking.

- A member while speaking shall not -

(i)

refer to any matter of fact on which a judicial decision is pending;

(ii)

[make personal reference by way of making an allegation imputing a motive to or questioning the bona fides of any other member of the House unless it be imperatively necessary for the purpose of the debate being itself a matter in issue or relevant thereto;]

[Substituted by L.S. Bn. (II) dated 9.5.1989, para 2930.]

(iii)

use offensive expressions about the conduct or proceedings of Parliament or any State Legislature;

(iv)

reflect on any determination of the House except on a motion for rescinding it;

(v)

reflect upon the conduct of persons in high authority unless the discussion is based on a substantive motion drawn in proper terms;

Explanations. - The words 'persons in high authority' mean persons whose conduct can only be discussed on a substantive motion drawn in proper terms under the Constitution or such other persons whose conduct, in the opinion of the Speaker, should be discussed on a substantive motion drawn up in terms approved by the Speaker;

(vi)

use the President's name for the purpose of influencing the debate;

(vii)

utter treasonable, seditious or defamatory words;

[***]

[Omitted by L.S. Bn. (II) dated 9.5.1989, para 2930.]

(viii)

use the right of speech for the purpose of obstructing the business of the House;

(ix)

[make any reference to the strangers in any of the galleries;

[Added by L.S. Bn. (II) dated 9.5.1989, para 2930.]

(x)

refer to Government officials by name; and

(xi)

read a written speech except with the previous permission of the Chair.]

353.

Procedure regarding allegation against any person.

- No allegation of a defamatory or incriminatory nature shall be made by a member against any person unless the member has given [adequate advance notice]

[Substituted by L.S. Bn. (II) dated 9.5.1989, para 2930.]

to the Speaker and also to the Minister concerned so that the Minister may be able to make an investigation into the matter for the purpose of a reply:

Provided that the Speaker may at any time prohibit any member from making any such allegation if the Speaker is of opinion that such allegation is derogatory to the dignity of the House or that no public interest is served by making such allegation.

354.

Restriction on quoting speeches made in Council.

- No speech made in the Council shall be quoted in the House unless it is a definite statement of policy by a Minister:

Provided that the Speaker, on a request being made in advance, may give permission to a member to quote a speech or make reference to the proceedings in the Council, if the Speaker thinks that such a course is necessary in order to enable the member to develop a point of privilege or procedure.

355.

Questions to be asked through Speaker.

- When, for the purposes of explanation during discussion or for any other sufficient reason, any member has occasion to ask a question of another member on any matter then under the consideration of the House, the member shall ask such question through the Speaker.

356.

Irrelevance or repetition.

- The Speaker, after having called the attention of the House to the conduct of a member who persists in irrelevance or in tedious repetition either in one's own arguments or of the arguments used by other members in debate, may direct that member to discontinue the speech.

357.

Personal explanation.

- A member may, with the permission of the Speaker, make a personal explanation although there is no question before the House, but in this case no debatable matter may be brought forward, and no debate shall arise.

Order of Speeches, Right of Reply and Conclusion of Debate

358.

Order of speeches and right of reply.

(1)

After the member who moves a motion has spoken, other members may speak to the motion in such order as the Speaker may call upon them. If any member who is so called upon does not speak, such member shall not be entitled except with the permission of Speaker, to speak to the motion at any later stage of the debate.

(2)

Except in the exercise of right of reply or as otherwise provided by these rules, no member shall speak more than once to any motion, except with the permission of the Speaker.

(3)

A member who has moved a motion may speak again by way of reply, and if the motion is moved by a private member, the Minister concerned, whether previously spoken in the debate or not, may with the permission of the Speaker, speak after the mover has replied:

Provided that nothing in this sub-rule shall be deemed to give any right of reply to the mover of an amendment to a Bill

or a resolution save with the permission of the Speaker.

359.

Conclusion of debate.

- Subject to the provisions of sub-rule (3) of rule 358 the reply of the mover of the original motion shall in all cases conclude the debate.

Address by Speaker

360.

Address by Speaker.

- The Speaker may herself/himself, or on a point being raised or on a request made by a member, may address the House at any time on a matter under consideration in the House with a view to aid members in their deliberations, and such expression of views shall not be taken to be in the nature of a decision.

Procedure When Speaker Rises

361.

Procedure when Speaker rises.

(1)

The Speaker shall, whenever rises, be heard in silence and any member who is then speaking or offering to speak shall immediately resume one's own seat.

(2)

No member shall leave one's own seat while the Speaker is addressing the House.

Closure and Limitation of Debate

362.

Closure.

(1)

At any time after a motion has been made, any member may move: 'That the question be now put', and unless it appears to the Speaker that the motion is an abuse of these rules or an infringement of the right of reasonable debate, the Speaker shall then put the motion 'That the question be now put'.

(2)

Where the motion: 'That the question be now put' has been carried, the question or questions consequent thereon shall be put forthwith without further debate:

Provided that the Speaker may allow a member any right of reply which the member may have under these rules.

363.

Limitation of debate.

(1)

Whenever the debate on any motion in connection with a Bill or on any other motion becomes unduly protracted, the Speaker may, after taking the sense of the House, fix a time limit for the conclusion of discussion on any stage or all stages of the Bill or the motion, as the case may be.

(2)

At the appointed hour, in accordance with the time limit fixed for the completion of a particular stage of a Bill or a motion, the Speaker shall, unless the debate is sooner concluded, forthwith put every question necessary to dispose of all the outstanding matters in connection with that stage of the Bill or the motion.

Decision of House

364.

Question on motion made.

- A matter requiring the decision of the House shall be decided by means of a question put by the Speaker on a motion made by a member.

365.

Question on motion made.

- When a motion has been made, the Speaker shall propose the question for consideration, and put it for the decision of the House. If a motion embodies two or more separate propositions, those propositions may be proposed by the Speaker as separate questions.

366.

No speech after voices collected.

- A member shall not speak on a question after the Speaker has collected the voices both of the 'Ayes' and of the 'Noes' on that Question.

Division

367.

Procedure regarding division.

(1)

On the conclusion of a debate, the Speaker shall put the question and invite those who are in favour of the motion to say 'Aye' and those against the motion to say 'No'.

(2)

The Speaker shall then say: 'I think the Ayes (or the Noes, as the case may be) have it'. If the opinion of the Speaker as to the decision of a question is not challenged, the Speaker shall say twice: 'The Ayes (or the Noes, as the case may be) have it' and the question before the House shall be determined accordingly.

(3)

(a)

If the opinion of the Speaker as to the decision of a question is challenged, the Speaker shall order that the Lobby be cleared.

(b)

After the lapse of [three minutes and thirty seconds]

[Substituted by L.S. Bn. (II) dated 9.5.1989, para 2930.]

, the Speaker shall put the question a second time and declare whether in opinion of the Speaker the 'Ayes' or the 'Noes' have it.

(c)

If the opinion so declared is again challenged, the Speaker shall direct that the votes be recorded either by operating the automatic vote recorder or by using 'Aye' and 'No' Slips in the House or by the Members going into the Lobbies:

Provided that the Speaker may, if is of the opinion that the Division is unnecessarily claimed, ask the members who are for 'Aye' and those for 'No' respectively to rise in their places and, on a count being taken, may declare the determination of the House. In such a case, the names of the voters shall not be recorded.

367A.

Division by automatic vote recorder.

(1)

Where the Speaker directs under clause (c) of sub-rule (3) of rule 367 that the votes be recorded by operating the automatic vote recorder, it shall be put into operation and the members shall cast their votes from the seats respectively allotted to them by pressing the buttons provided for the purpose.

(2)

After the result of the voting appears on the indicator board, the result of the Division shall be announced by the Speaker and it shall not be challenged.

(3)

A member who is not able to cast one's own vote by pressing the button provided for the purpose due to any reason considered sufficient by the Speaker, may, with the permission of the Speaker, have the vote recorded verbally by stating whether she or he is in favour of or against the motion, before the result of the Division is announced.

(4)

If a member finds having voted by mistake by pressing the wrong button, such member may be allowed to correct the mistake provided it is brought to notice of the Speaker by the member before the result of the Division is announced.

367AA.

Division by distribution of 'Aye' and 'No' slips.

(1)

Where the Speaker directs under clause (c) of sub-rule (3) of rule 367 that the votes shall be recorded by members on 'Aye' and 'No' slips, the Division Clerks shall supply to such members at their seats, 'Aye' or 'No' slips, according to the choice indicated by a member. A member shall record the vote on the slip by signing and indicating one's own Division Number thereon.

(2)

After the members have recorded their votes, the Division Clerks shall collect the 'Aye' and 'No' slips and bring them to the Table where the votes shall be counted by the Officers at the Table and the totals of 'Ayes' and 'Noes' presented to the Speaker.

(3)

The result of the Division shall be announced by the Speaker and it shall not be challenged.

367B.

Division by going into Lobbies.

(1)

Where the Speaker directs under clause (c) of sub-rule (3) of rule 367 that the votes shall be recorded by the members going into the Lobbies, the Speaker shall direct the 'Ayes' to go into the Right Lobby and the 'Noes' into the Left Lobby. In the 'Ayes' or 'Noes' Lobby, as the case may be, each member shall state one's own Division Number and the Division Clerk, while marking off the number on the Division List, shall simultaneously call out the name of the member.

(2)

After voting in the Lobbies is completed, the Division Clerks shall bring the Division Lists to the Table when the votes shall be counted by the officers at the Table and the totals of 'Ayes' and 'Noes' presented to the Speaker.

(3)

The result of the Division shall be announced by the Speaker and it shall not be challenged.

(4)

A member who is unable to go to the Division Lobby owing to sickness or infirmity may, with the permission of the Speaker, have the vote recorded either at the allotted seat of such member or in the Lobby before the result of the Division is announced.

(5)

If a member finds having voted by mistake in the wrong Lobby, such Member may be allowed to correct the mistake, provided it is brought to the notice of the Speaker by the member before the result of the Division is announced.

(6)

When the Division Clerks have brought the Division Lists to the Table, a member who has not upto that time recorded one's own vote but who then wishes to have the vote recorded may do so with the permission of the Speaker before the result of the Division is announced.

Papers to be Laid on the Table

368.

Papers quoted to be laid.

- If a Minister quotes in the House a despatch or other State paper which has not been presented to the House, the Minister shall lay the relevant paper on the Table:

Provided that this rule shall not apply to any documents which are stated by the Minister to be of such a nature that their production would be inconsistent with public interest:

Provided further that where a Minister gives in one's own words a summary or gist of such despatch or State paper it shall not be necessary to lay the relevant papers on the Table.

369.

Authentication and treatment of papers laid.

(1)

A paper or document to be laid on the Table shall be duly authenticated by the member presenting it.

(2)

All papers and documents laid on the Table shall be considered public.

370.

Document containing advice or opinion disclosed to be laid.

- If, in answer to a question or during debate, a Minister discloses the advice or opinion given to the Minister by any officer of the Government or by any other person or authority, the Minister shall ordinarily lay the relevant document or parts of document containing that opinion or advice, or a summary thereof on the Table.

Objection to Vote of a Member on Grounds of Personal, Pecuniary or Direct Interest

371.

Objection to vote of a member.

- If the vote of a member in a division in the House is challenged on the ground of personal, pecuniary or direct interest in the matter to be decided, the Speaker, if considers necessary, may call upon the member making the challenge to state precisely the grounds of objection and the member whose vote has been challenged to state one's own case and shall decide whether the vote of the member should be disallowed or not and the decision of the Speaker shall be final: Provided that the vote of a member or members is challenged immediately after the division is over and before the result is announced by the Speaker.

Explanation. - For the purposes of this rule the interest of the member should be direct, personal or pecuniary and separately belong to the person whose vote is questioned and not in common with the public in general or with any class or section thereof or on a matter of State policy.

Statement by Minister

372.

Statement by Minister.

- A statement may be made by a Minister on a matter of public importance with the consent of the Speaker but no question shall be asked at the time the statement is made.

Withdrawal and Suspension of Members

373.

Withdrawal of Member.

- The Speaker, if is of the opinion that the conduct of any member is grossly disorderly, may direct such member to withdraw immediately from the House, and any member so ordered to withdraw shall do so forthwith and shall remain absent during the remainder of the day's sitting.

374.

Suspension of Member.

(1)

The Speaker, may, if deems it necessary, name a member who disregards the authority of the Chair or abuses the rules of the House by persistently and wilfully obstructing the business thereof.

(2)

If a member is so named by the Speaker, the Speaker shall, on a motion being made forthwith put the question that the member (naming such member) be suspended from the service of the House for a period not exceeding the remainder of the session:

Provided that the House may, at any time, on a motion being made, resolve that such suspension be terminated.

(3)

A member suspended under this rule shall forthwith withdraw from the precincts of the House.

374A.

[Automatic Suspension of a Member.

[Added by L.S. Bn. (II), dated 5.12.2001, Para 2430.]

(1)

Notwithstanding anything contained in rules 373 and 374, in the event of grave disorder occasioned by a member coming into the well of the House or abusing the Rules of the House persistently and wilfully obstructing its business by shouting slogans or otherwise, such member shall, on being named by the Speaker, stand automatically suspended from the service of the House for five consecutive sittings or the remainder of the session, whichever is less:

Provided that the House may, at any time, on a motion being made, resolve that such suspension be terminated.

(2)

On the Speaker announcing the suspension under this rule, the member shall forthwith withdraw from the precincts of the House.]

Adjournment of House or Suspension of Sitting Due to Grave Disorder

375.

Power of Speaker to adjourn House or suspend sitting.

- In the case of a grave disorder arising in the House, the Speaker, may if thinks it necessary to do so, adjourn the House or suspend any sitting for a time to be named by the Speaker.

Points of Order

376.

Points of order and decisions thereon.

(1)

A point of order shall relate to the interpretation or enforcement of these rules or such Articles of the Constitution as regulate the business of the House and shall raise a question which is within the cognizance of the Speaker.

(2)

A point of order may be raised in relation to the business before the House at the moment:

Provided that the Speaker may permit a member to raise a point of order during the interval between the termination of one item of business and the commencement of another if it relates to maintenance of order in, or arrangement of business before, the House.

(3)

Subject to conditions referred to in sub-rules (1) and (2) a member may formulate a point of order and the Speaker shall decide whether the point raised is a point of order and if so, the decision of the Speaker thereon, shall be final.

(4)

No debate shall be allowed on a point of order, but the Speaker, if thinks fit, may hear members before giving the decision.

(5)

A point of order is not point of privilege.

(6)

A member shall not raise a point of order -

(a)

to ask for information; or

(b)

to explain one's own position; or

(c)

when a question on any motion is being put to the House; or

(d)

which may be hypothetical; or

(e)

that Division Bells did not ring or were not heard.

377.

[Raising a matter which is not a point of order.

[Substituted by L.S. Bn. (II) dated 9.5.1989, para 2930.]

- A member who wishes to bring to the notice of the House a matter which is not a point of order, shall give notice in writing to the Secretary-General specifying clearly and precisely the text of the matter to be raised. The member shall be permitted to raise it only after the Speaker has given the consent and at such time and date as the Speaker may fix.]

377A.

[Conditions of admissibility.

[Added by L.S. Bn. (II) dated 9.5.1989, para 2930.]

- In order that a notice may be admissible it shall satisfy the following conditions: -

(i)

it shall not refer to a matter which is not primarily the concern of the Government of India;

(ii)

it shall not relate to a matter which has been discussed in the same session or which is substantially identical to the matter already raised by a member under this rule during the session;

(iii)

it shall not exceed 250 words;

(iv)

it shall not raise more than one issue;

(v)

it shall not contain arguments, inferences, ironical expressions, imputations, epithets or defamatory statements; and

(vi)

it shall not refer to proceedings of a parliamentary/consultative committee.

377B.

Time for tabling notices and their validity.

(1)

Notices received during a week commencing from its first sitting till 10.00 hours on the last day of the week on which the House sits shall be valid for that week.

(2)

Notices received after 10.00 hours on the last day of the week on which the House sits shall be valid for the next week. Notices received after 10.00 hours and upto 10.30 hours on that day shall be deemed to have been received at the same point of time and these shall be ballotted to determine the inter-se priority of members. Notices received subsequently shall be arranged in accordance with the date and time of their receipt.

(3)

Notices not selected during the week for which they have been tabled, shall lapse at the end of the week:

Provided that a notice referred for facts under order of the Speaker shall not lapse till it is finally disposed of.

377C.

Restrictions on raising matters.

(1)

No member shall raise more than one matter during a week.

(2)

Only the text approved by the Speaker shall go on record.]

Maintenance of Order

378.

Speaker to preserve order and enforce decisions.

- The Speaker shall preserve order and shall have all powers necessary for the purpose of enforcing own decisions.

Proceedings of the House, Parliamentary Papers and Custody of Papers

379.

Preparation and publication of proceedings.

- The Secretary-General shall cause to be prepared a full report of the proceedings of the House at each of its sittings and shall, as soon as practicable, publish it in such form and manner as the Speaker may, from time to time, direct.

380.

Expunction.

- If the Speaker is of opinion that words have been used in debate which are defamatory or indecent or unparliamentary or undignified, the Speaker may, while exercising discretion order that such words be expunged from the proceedings of the House.

381.

Indication in proceedings regarding expunction.

- The portion of the proceedings of the House so expunged shall be marked by asterisks and an explanatory footnote shall be inserted in the proceedings as follows:

'Expunged as ordered by the Chair'

382.

Printing and publication of Parliamentary papers.

(1)

The Speaker may authorise printing, publication, distribution or sale of any paper, document or report in connection with the business of the House or any paper, document or report laid on the table or presented to the House or a Committee thereof.

(2)

A paper, document or report printed, published, distributed or sold in pursuance of sub-rule (1) shall be deemed to have been printed, published, distributed or sold under the authority of the House within the meaning of clause (2) of article 105 of the Constitution.

(3)

If a question arises whether a paper, document or report is in connection with the business of the House or not, the question shall be referred to the Speaker whose decision shall be final.

383.

Custody of papers.

- The Secretary-General shall have custody of all records, documents and papers belonging to the House or any of its Committees or Lok Sabha Secretariat and the Secretary-General shall not permit any such records, documents or papers to be taken from the Parliament House without the permission of the Speaker.

Chamber of the House

384.

Restriction on use of Chamber of House.

- The Chamber of the House shall not be used for any purpose other than the sittings of the House.

Admission of Officers of the Council

385.

Admission of officers of Council to House.

- Any officer of the Secretarial staff of the Council shall be entitled to admission to the House during any sitting of the House.

Admission, Withdrawal and Removal of Strangers

386.

Admission of strangers.

- The admission of strangers during the sittings of the House to those portions of the House which are not reserved for the exclusive use of members shall be regulated in accordance with orders made by the Speaker.

387.

Withdrawal of strangers.

- The Speaker, whenever thinks fit, may order the withdrawal of strangers from any part of the House.

387A.

Removal and taking into custody of strangers.

- An officer of the Secretariat authorised in this behalf by the Speaker shall remove from the precincts of the House or take into custody, any stranger seen therein or who may be reported to such officer to be, in any portion of the precincts of the House which is reserved for the exclusive use of members, and also any stranger who, having been admitted into any portion of the precincts of the House, misconducts or wilfully infringes the regulations made by the Speaker under rule 386 or does not withdraw when the strangers are directed to withdraw under rule 387 while the House is sitting.

Business Pertaining to state under President's Rule

387B.

Application of rules to business pertaining to State under President's rule.

- These rules shall, with such variations or modifications, as the Speaker may from time to time make, apply to the business pertaining to a State, the powers of whose Legislature are, by virtue of a Proclamation issued by the President under article 356 of the Constitution exercisable by or under the authority of Parliament.

Suspension of Rules

388.

Suspension of rules.

- Any member may, with the consent of the Speaker, move that any rule may be suspended in its application to a particular motion before the House and if the motion is carried the rule in question shall be suspended for the time being.

Residuary Powers

389.

Residuary powers.

- All matters not specifically provided for in these rules and all questions relating to the detailed working of these rules shall be regulated in such manner as the Speaker may, from time to time, direct.

First Schedule

(See rule 161)

Form of Petition

To

Lok Sabha

The humble petition of

(Here insert name and designation or description of petitioner(s) in concise form, e.g., "A.B. and others" or "the inhabitants of" or "the municipality of ...etc.").

sheweth

(Here insert concise statement of case)

and accordingly your petitioner(s) pray that

(here insert "that the Bill be or be not proceeded with" or "that special provision be made in the Bill to meet the case of your petitioner(s)" or any other appropriate prayer regarding the Bill or matter before the House or a matter of general public interest).

and your petitioner(s) as in duty bound will ever pray.

Name of Petitioner

Address

Signature or thumb impression

Counter signature of member presenting.

Second Schedule

[

*

* ***]

[Omitted by L.S. Bn. (II) dated 17.02.2014, para 6174.]

Third Schedule

(See rules 229 and 230)

Form of communication regarding arrest, detention, conviction or release, as the case may be, of a member

Place

Date

To

The Speaker,

Lok Sabha,

New Delhi.

Dear Madam/Mr. Speaker,

A

I have the honour to inform you that I have found it my duty, in the exercise of my powers under Section of the (Act), to direct that Shrimati/Kumari/Shri.....

Members of the Lok Sabha, be =| arresteddetained| for (reasons for the arrest or detention, as the case may be).

Shrimati/Kumari/Shri....., M.P., was| accordingly arrestedtaken into custody| at (time) on.....(date) and is at present lodged in the jail, (Place).

B

I have the honour to inform you that Shrimati/Kumari/Shri, Member of the Lok Sabha, was tried at the Court before me on a charge (or charges) of (reasons for the conviction).

On (date) after a trial lasting for days, I found Shrimati/Kumari/ Shriguilty of and sentenced her/him to imprisonment for (period).

(Her/his application for leave to appeal to* is pending consideration).

*Name of the Court.

C

I have the honour to inform you that Shrimati/Kumari/ Shri, Member of the Lok Sabha, who was arrested/ detained/convicted on (date), for (reasons for arrest/detention/conviction), was released on (date) on (grounds for release).

Yours faithfully,

(Judge, Magistrate or executive authority)

Fourth Schedule

(See rule 312A)

List of Public Undertakings

Part I ? (Public Undertakings established by Central Acts)

1. The Damodar Valley Corporation.

2. The Industrial Finance Corporation [of India]

[Added by L.S. Bn. (II) dated 9.5.1989, para 2930.]

.

3. The Indian Airlines [***]

[Omitted by L.S. Bn. (II) dated 9.5.1989, para 2930.]

.

4. The Air India [***]

[Omitted by L.S. Bn. (II) dated 9.5.1989, para 2930.]

.

5. The Life Insurance Corporation [of India]

[Added by L.S. Bn. (II) dated 9.5.1989, para 2930.]

.

6. The Central Warehousing Corporation.

7. Oil and Natural Gas Commission.

8. The Food Corporation of India.

9. The International Airports Authority of India.

10. The Industrial Development Bank of India [

*

*)

[Entry 11 Omitted by L.S. Bn. (II) dated 9.5.1989, para 2930.]

.

11. The Delhi Transport Corporation.

Part II ? (Public Undertakings which are Government Companies formed under the Companies Act)

Every Government Company whose annual report is placed before the Houses of Parliament under sub-section (1) of Section 619A of the Companies Act, 1956.

Part III ? 1. Hindustan [Aeronautics]

[Entry 12 renumbered as 11 by L.S. Bn. (II) dated 9.5.1989, para 2930.]

Ltd., Bangalore.

2. Bharat Electronics Ltd., Bangalore.

3. Mazagon Docks Ltd., Bombay.

4. Garden Reach [Ship Builders and Engineers]

[Substituted by L.S. Bn. (II) dated 9.5.1989, para 2930.]

Ltd., Calcutta.

[Fifth Schedule]

[Extant Schedule of 17 Committees substituted by revised Schedule of 24 Committees by L.S. Bn. (II) dated 20.7.2004 (Para 253) and adapted vide Bn. (II) dated 5.5.2006 (Para 2367), dated 10.4.2007 (Para 3493), 10.9.2008 (Para No. 6008) and 10.11.2009 (Para No. 675), 1.11.2011 (Para 3223).]

(See rule 331C)

Ministries/Departments under the Jurisdiction of the Standing Committees

Sl. No.

Names of the Committees

Ministries/Departments

Part I

1.

Committee on Commerce

Commerce and Industry

2.

Committee on Home Affairs

(1)

Home Affairs

(2)

Development of North-Eastern Region

3.

Committee on Human Resource Development

(1)

Human Resource Development

(2)

Youth Affairs and Sports

(3)

Women and Child Development

4.

Committee on Industry

(1)

Heavy Industries and Public Enterprises

(2)

Micro, Small and Medium Enterprises

5.

Committee on Science & Technology, Environment &
Forests

(1)

Science and Technology

(2)

Space

(3)

Earth Sciences

(4)

Atomic Energy

(5)

Environment and Forests

6.

Committee on Transport, Tourism and Culture

(1)

Civil Aviation

(2)

Road Transport and Highways

(3)

Shipping

(4)

Culture

(5)

Tourism

7.

Committee on Health and Family Welfare

Health and Family Welfare

8.

Committee on Personnel, Public Grievances, Law and Justice

(1)

Law and Justice

(2)

Personnel, Public Grievances and and Justice Pensions

Part

9.

Committee on Agriculture

(1)

Agriculture

(2)

Food Processing Industries

10.

Committee on Information Technology

(1)

Communications and Information Technology

(2)

Information and Broadcasting

11.

Committee on Defence Defence

12.

Committee on Energy

(1)

New and Renewable Energy

(2)

Power

13.

Committee on External Affairs

(1)

External Affairs

(2)

Overseas Indian Affairs

14.

Committee on Finance

(1)

Finance

(2)

Corporate Affairs

(3)

Planning

(4)

Statistics and Programme Implementation

15.

Committee on Food, Consumer Affairs, Food and Public
Distribution

Consumer Affairs food and Public Distribution

16.

Committee on Labour

(1)

Labour and Employment

(2)

Textiles

17.

Committee on Petroleum and Natural Gas

Petroleum and Natural Gas

18.

Committee on Railways

Railways

19.

Committee on Urban Development

(1)

Urban Development

(2)

Housing and Urban Poverty Alleviation

20.

Committee on Water Resources

Water Resources

21.

Committee on Chemicals and Fertilizers

Chemicals and Fertilizers

22.

Committee on Rural Development

(1)

Rural Development

(2)

Drinking Water and Sanitation

(3)

Panchayati Raj

23.

Committee on Coal and Steel

(1)

Coal

(2)

Mines

(3)

Steel

24.

Committee on Social Justice and Empowerment

(1)

Social Justice and Empowerment

(2)

Tribal Affairs

(3)

Minority Affairs

Appendix I

The Houses of Parliament (Joint Sitzings and Communications) Rules*

* Rules made by the President, after consultation with the Chairman of the Council of States and the Speaker of the House of the People, in exercise of the powers conferred by clause (3) of article 118 of the Constitution of India.

[Department of Parly. Affairs Notification No. 5(1) PA-52, dated 16.5.1952; Gazette Ex. (I-1), 20.5.1952].

Chapter I

Preliminary

1. Short Title. - These Rules may be called the Houses of Parliament (Joint Sitzings and Communications) Rules.

2. Definitions. - In these Rules unless the context otherwise requires, -

(a)

"Council" means the Council of States;

(b)

"House" means the House of the People;

(c)

"Houses" means the Council of States and the House of the People;

(d)

"Joint Sitting" means a joint sitting of the Houses;

(e)

"Member" means a member of the Council or of the House;

(f)

"Secretary-General" means the Secretary - General of the House and includes any person for the time being performing the duties of the Secretary-General of the House;

(g)

"Speaker" means the Speaker of the House.

Chapter II

Joint Sitzings of Houses

3. Summons to members. - The Secretary-General shall issue a summon to each member specifying the time and place for a joint sitting.

4. Time of sittings. - The hour upon which a joint sitting shall adjourn and the day and hour or the part of the same day to which it shall be adjourned shall be determined by the Speaker.

5. Presiding Officers. - During the absence of the Speaker from any joint sitting, the Deputy Speaker of the House or, if he is also absent, the Deputy Chairman of the Council or, if he is also absent such other person as may be determined by the members present at the sitting, shall preside.

6. Quorum. - The quorum to constitute a joint sitting shall be one tenth of the total number of members of the Houses.

7. Procedure. - At any joint sitting the procedure of the House shall apply with such modifications and variations as the Speaker may consider necessary or appropriate.

8. Report of proceedings of joint sittings. - The Secretary-General shall cause to be prepared a full report of the proceedings of every joint sitting, and shall, as soon as practicable, publish it in such form and manner as the Speaker may, from time to time, direct.

Chapter III

Communications between Houses

9. Communication by messages. - Communications between the Houses shall be by messages.

10. Mode of sending messages. - Every message from the House to the Council or from the Council to the House shall be in writing or in print or partly in writing and partly in print and shall be signed by the Secretary-General of the House or the Council and conveyed to the Secretary-General of the Council or the House, as the case may be.

11. Communication of messages to members. - (1) If any such message is received by the Secretary-General of the House or the Council when it is in session, he shall report the message to the House or the Council, as the case may be, at the first convenient opportunity after its receipt.

(2)

Whenever the House or the Council to which a message is sent is not in session, a copy of the message shall, as soon as it is received by the Secretary-General of the House or the Council, be forwarded by him to every member of the House or the Council, as the case may be.

12. Procedure to deal with the subject matter of the message. - The subject matter of the message shall be dealt with by the House or the Council, as the case may be, to which the message is sent according to the rules regulating its procedure and the conduct of its business.

Appendix II

Rules Relating to Committees not Mentioned in the Rules of Procedure*

*Rules made by the Speaker.

General Purposes Committee

1. Constitution. - There shall be a General Purposes Committee consisting of the Speaker, the Deputy Speaker, members of the Panel of Chairpersons, Chairmen of all Standing Parliamentary Committees of Lok Sabha, Leaders of recognised parties and groups in Lok Sabha and such other members as may be nominated by the Speaker. The Speaker shall be the ex-officio Chairperson of the Committee.

2. Functions. - The functions of the Committee shall be to consider and advise on such matters concerning the affairs of the House as may be referred to it by the Speaker from time to time.

3. Provisions applicable in other respects. - In other respects, the general rules applicable to Parliamentary Committees given in Chapter XXVI of the Rules of Procedure and Conduct of Business in Lok Sabha (Fifteenth Edition) shall apply with such adaptations, whether by way of modification, addition or omission, as the Speaker may consider necessary or convenient.

House Committee

1. Constitution. - (1) There shall be a House Committee consisting of not more than twelve members including the Chairperson.

(2)

The Committee shall be nominated by the Speaker and shall hold office for a term not exceeding one year. A member may be re-nominated by the Speaker to the new House Committee.

2. Quorum. - The quorum to constitute a sitting of the Committee shall be five.

3.

(1)

The functions of the House Committee shall be -

(i)

to deal with all questions relating to residential accommodation for members of Lok Sabha; and

(ii)

to exercise supervision over facilities for accommodation, food, medical aid and other amenities accorded to members in members' residences and hostels in Delhi.

(2)

The functions of the Committee shall be advisory.

4. Accommodation Sub-Committee. - (1) There shall also be an Accommodation sub-Committee consisting of not more than four members including the Chairperson of the House Committee who shall be the ex-officio Chairperson of the sub-Committee.

(2)

The members of the sub-Committee shall be nominated by the Chairperson of the House Committee from amongst the members of the House Committee.

(3)

The quorum to constitute a sitting of the sub-Committee shall be two.

(4)

The function of the sub-Committee shall be to advise on the allotment of residential accommodation to members.

5. Power to Appoint Sub-Committees. - (1) The Committee may appoint one or more sub-Committees each having the powers of the undivided Committee, to examine any special points relating to residential accommodation, food, medical aid and other amenities in members' residences and the report of such sub-Committees shall be deemed to be the reports of the whole Committee, if they are approved at a sitting of the whole Committee.

(2)

The order of reference to a sub-Committee shall clearly state the point or points for investigation. The report of the sub-Committee shall be considered by the whole Committee.

6. Secretariat for Committee. - The Secretariat for the House Committee or its sub-Committees shall be provided by the Lok Sabha Secretariat. An Officer of the Lok Sabha Secretariat nominated in this behalf by the Secretary-General of the Lok Sabha shall be the Secretary to the House Committee and the Accommodation sub-Committee.

7. Record of proceedings and minutes of Committee. - (1) A record of the proceedings of the sittings of the House Committee and the Accommodation sub-Committee shall be maintained.

(2)

The draft minutes shall be prepared by the Secretary to the Committee and approved by the Chairperson.

(3)

The minutes of each sitting shall be circulated to members of the Committee or the sub-Committee, as the case may be. Relevant extracts therefrom may be forwarded to appropriate authorities for necessary action.

8. Appeal. - An appeal against the decision of the House Committee or Accommodation sub-Committee shall lie to the Speaker whose decision shall be final.

9. Provisions applicable in other respects. - In other respects, the general rules applicable to Parliamentary Committees given in Chapter XXVI of the Rules of Procedure and Conduct of Business in Lok Sabha (Fifteenth Edition) shall apply with such adaptations, whether by way of modification, addition or omission, as the Speaker may consider necessary or convenient.

Library Committee

1. Constitution. - (1) There shall be a Library Committee consisting of -

(a)

the Deputy Speaker and five other members from the Lok Sabha nominated by the Speaker; and

(b)

three members from the Rajya Sabha nominated by the Chairperson of the Rajya Sabha.

(2)

The Committee shall hold office for a term not exceeding one year.

(3)

The Deputy Speaker shall be the ex-officio Chairperson of the Committee.

(4)

Casual vacancies in the Committee shall be filled by nomination by the Speaker in respect of members from the Lok Sabha and by the Chairperson of the Rajya Sabha in respect of members from the Rajya Sabha.

2. Functions. - The functions of the Committee shall be -

(a)

to consider and advise on such matters concerning the Library as may be referred to it by the Speaker from time to time;

(b)

to consider suggestions for the improvement of the Library; and

(c)

to assist members of Parliament in fully utilising the services provided by the Library.

3. Resignation from Committee. - A member may resign one's seat from the Committee by writing under one's own hand addressed to the Chairperson of the Committee.

4. Discharge of members absent from sittings of Committee. - The Speaker of the Lok Sabha or the Chairperson of the Rajya Sabha, as the case may be, may discharge a member from the Committee, if such member is absent from two or more consecutive sittings thereof without the permission of the Chairperson of the Committee.

5. Committee may sit whilst Houses sitting. - The Committee may sit whilst the Lok Sabha or the Rajya Sabha is sitting provided that on a division being called in either House, the Chairperson of the Committee shall suspend the proceedings in the Committee for such time as will, in the opinion of the Chairperson, enable the members to vote in a division.

6. Provisions applicable in other respects. - In other respects, the general rules applicable to Parliamentary Committees given in Chapter XXVI of the Rules of Procedure and Conduct of Business in Lok Sabha (Fifteenth Edition) shall apply with such adaptations, whether by way of modification, addition or omission, as the Speaker may consider necessary or convenient.

Appendix III

Provisions Relating to the Joint Committee on Salaries and Allowances of Members of Parliament Extract of section 9 of the Salary, Allowances and Pension of Members of Parliament Act, 1954: -

9. Power to make rules. - (1) For the purpose of making rules under this section, there shall be constituted a Joint Committee of both Houses of Parliament consisting of five members from the Council of States nominated by the Chairman and ten members from the House of the People nominated by the Speaker.

(2)

The Joint Committee constituted under subsection (1) shall elect its Chairman and shall have power to regulate its procedure.

(2A)

[a member of the Joint Committee shall hold office as such member for one year from the date of his nomination and any casual vacancy in the Joint Committee may be filled by nomination by the Chairman of the Council of States, or the Speaker of the House of the People, as the case may be.

Explanation. - In the case of a member of a Joint Committee holding office as such immediately before the commencement of the Salaries and Allowances of Members of Parliament (Amendment) Act, 1958, the period of one year shall be computed from the date of such commencement.]

[Inserted by Act 55 of 1958 effective from 30.12.1958.]

(3)

The Joint Committee constituted under subsection (1) may [after consultation with the Central Government]

[Inserted by Act 55 of 1958 effective from 30.12.1958.]

make rules to provide for all or any of the following matters, namely: -

(a)

the routes for performance of any journey;

(aa)

[the person who may be specified as dependent under sub-clause (g) of clause (aa) of section 2;]

[Inserted by Act 9 of 2004 effective from 9.1.2004.]

(b)

the manner in which fractions of a day shall be dealt with for the purpose of determining the daily allowance admissible for that day;

(c)

the travelling allowance admissible where a member is provided with free transit for the whole or any part of a journey [and the reduction of the daily allowance where a member is provided with free board or lodging at the expenses of the Government or a local authority;]

[Inserted by Act 55 of 1958 effective from 30.12.1958.]

(cc)

[the rate at which road mileage shall be paid under sub-clause (ii) of clause (c) of subsection (1) of section 4;]

[Inserted by Act 61 of 1982 effective from 6.11.1982.]

(ccc)

[the transit accommodation and the period for which such accommodation may be provided under section 5A;]

[Inserted by Act 9 of 2004 effective from 9.1.2004.]

(d)

the travelling allowance admissible where the place from which a member commences his journey or to which he returns is not his usual place of residence;

(dd)

[the travelling allowance admissible in respect of journeys performed by any vessel where there is no regular steamer service;

[Substituted by Act 55 of 1958 effective from 30.12.1958.]

(ddd)

the travelling and daily allowances admissible for journeys performed by a member in the course of a tour outside India undertaken in connection with his duties as such member;]

(e)

the form in which certificates, if any, shall be furnished by a member for the purpose of claiming any allowance under this Act.

(ee)

[the form in which certificates, if any, shall be furnished by any person for the purpose of claiming any pension under this Act;]

[Inserted by Act 105 of 1976 effective from 9.9.1976.]

(f)

[the constituency allowance and medical and other facilities mentioned in section 8 and the amount to be paid in cash in lieu of such facilities;

[Substituted by Act 48 of 1975 effective from 16.8.1975.]

(ff)

the amount which may be paid by way of repayable advance for the purchase of conveyance; the rate of interest thereon and the mode of recovery of such amount and interest thereon;]

(fff)

[to provide for carry forward of unutilised free telephone calls pertaining to any year beginning on or after the 1st day of April, 2002 to any subsequent year]

[Inserted by Act 9 of 2004 effective from 9.1.2004.]

; and

(g)

generally for regulating payment of the daily and travelling allowances and pension under this Act.

(4)

Any rules made under sub-section (3) shall not take effect until they are approved and confirmed by the Chairman of the Council of States and the Speaker of the House of the People and are published in the Official Gazette, and such publication of the rules shall be conclusive proof that they have been duly made.

Appendix IV

The Members of Lok Sabha (Disqualification on Ground of Defection) Rules, 1985

In exercise of the powers conferred by paragraph 8 of the Tenth Schedule to the Constitution of India, the Speaker, Lok Sabha, hereby makes the following rules, namely: -

1. Short title. - These rules may be called the Members of Lok Sabha (Disqualification on Ground of Defection) Rules, 1985.

2. Definitions. - In these rules, unless the context otherwise requires: -

(a)

'Bulletin' means the Bulletin of the House of the People (Lok Sabha);

(b)

'Committee' means the Committee of Privileges of the House of the People (Lok Sabha);

(c)

'Form' means a form appended to these rules;

(d)

'date of commencement', in relation to these rules means the date on which these rules take effect under sub-paragraph (2) of paragraph 8 of the Tenth Schedule;

(e)

'House' means the House of the People (Lok Sabha);

(f)

'leader' in relation to a legislature party, means a member of the party chosen by it as its leader and includes any other member of the party authorised by the party to act, in the absence of the leader as, or discharge the functions of, the leader of the party for the purposes of these rules;

(g)

'member' means a member of the House of the People (Lok Sabha);

(h)

'Tenth Schedule' means the Tenth Schedule to the Constitution of India;

(i)

'Secretary-General' means the Secretary - General to the House of the People (Lok Sabha) and includes any person for the time being performing the duties of the Secretary-General.

3. Information to be furnished by leader of a legislature party. - (1) The leader of each legislature party (other than legislature party consisting of only one member) shall, within thirty days after the first sitting of the House, or, where such legislature party is formed after the first sitting, within thirty days after its formation, or, in either case within such further period as the Speaker may for sufficient cause allow, furnish the following to the Speaker, namely: -

(a)

a statement (in writing) containing the names of members of such legislature party together with other particulars regarding such members as in Form I and the names and designations of the members of such party who have been

authorised by it for communicating with the Speaker for purposes of these rules;

(b)

a copy of the rules and regulations (whether known as such or as constitution or by any other name) of the political party concerned; and

(c)

where such legislature party has any separate set of rules and regulations (whether known as such or as constitution or by any other name), also a copy of such rules and regulations.

(2)

Where a legislature party consists of only one member, such member shall furnish a copy of the rules and regulations mentioned in clause (b) of sub-rule (1) to the Speaker, within thirty days after the first sitting of the House or, where one has become a member of the House after the first sitting, within thirty days after taking one's seat in the House, or, in either case within such further period as the Speaker may for sufficient cause allow.

(3)

In the event of any increase in the strength of a legislature party consisting of only one member, the provisions of sub-rule (1) shall apply in relation to such legislature party as if such legislature party had been formed on the first date on which its strength increased.

(4)

Whenever any change takes place in the information furnished by the leader of a legislature party under sub-rule (1) or by a member under sub-rule (2), the member concerned, within thirty days thereafter, or, within such further period as the Speaker may for sufficient cause allow, furnish in writing information to the Speaker with respect to such change.

(5)

In the case of the House in existence on the date of commencement of these rules, the reference in sub-rules (1) and (2) to the date of the first sitting of the House shall be construed as a reference to the date of commencement of these rules.

(6)

Where a member belonging to any political party votes or abstains from voting in the House contrary to any direction issued by such political party or by any person or authority authorised by it in this behalf, without obtaining, in either case, the prior permission of such political party, person or authority, the leader of the legislature party concerned or where such member is the leader, or as the case may be, the sole member of such legislature party, such member, shall, as soon as may be after the expiry of fifteen days from the date of such voting or abstention, and in any case within thirty days from the date of such voting or abstention, inform the Speaker as in Form II whether such voting or abstention has or has not been condoned by such political party, person or authority.

Explanation. - A member may be regarded as having abstained from voting only when such member, being entitled to vote, voluntarily refrained from voting.

4. Information etc to be furnished by members. - (1) Every member who has taken seat in the House before the date of commencement of these rules shall furnish to the Secretary-General, within thirty days from such date or within such further period as the Speaker may for sufficient cause allow, a statement of particulars and declaration as in Form III.

(2)

Every member who takes seat in the House after the commencement of these rules shall, before making and subscribing an oath or affirmation under article 99 of the Constitution and taking seat in the House, deposit with the Secretary-General, the election certificate or, as the case may be, a certified copy of the notification of being nominated as a member and also furnish to the Secretary-General a statement of particulars and declaration as in Form III.

Explanation. - For the purposes of this sub-rule, "Election Certificate" means the certificate of election issued under the Representation of the People Act, 1951 (

43 of 1951

) and the rules made thereunder.

(3)

A summary of the information furnished by the members under this rule shall be published in the Bulletin and if any discrepancy therein is pointed out to the satisfaction of the Speaker, necessary corrigendum shall be published in the Bulletin.

5. Register of information as to members. - (1) The Secretary-General shall maintain, as in Form IV, a register based on

the information furnished under rules 3 and 4 in relation to the members.

(2)

The information in relation to each member shall be recorded on a separate page in the Register.

6. References to be by petitions. - (1) No reference of any question as to whether a member has become subject to disqualification under the Tenth Schedule shall be made except by a petition in relation to such member made in accordance with the provisions of this rule.

(2)

A petition in relation to a member may be made in writing to the Speaker by any other member:

Provided that a petition in relation to the Speaker shall be addressed to the Secretary-General.

(3)

The Secretary-General shall, -

(a)

as soon as may be after the receipt of a petition under the proviso to sub-rule (2) make a report in respect thereof to the House; and

(b)

as soon as may be after the House has elected a member in pursuance of the proviso to sub-paragraph (1) of paragraph 6 of the Tenth Schedule place the petition before such member.

(4)

Before making any petition in relation to any member, the petitioner shall satisfy oneself that there are reasonable grounds for believing that a question has arisen as to whether such member has become subject to disqualification under the Tenth Schedule.

(5)

Every petition, -

(a)

shall contain a concise statement of the material facts on which the petitioner relies; and

(b)

shall be accompanied by copies of the documentary evidence, if any, on which the petitioner relies and where the petitioner relies on any information furnished by any person, a statement containing the names and addresses of such persons and the gist of such information as furnished by each such person.

(6)

Every petition shall be signed by a petitioner and verified in the manner laid down in the Code of Civil Procedure, 1908 (5 of 1908), for the verification of pleadings.

(7)

Every annexure to the petition shall also be signed by the petitioner and verified in the same manner as the petition.

7. Procedure. - (1) On receipt of a petition under rule 6, the Speaker shall consider whether the petition complies with the requirements of that rule.

(2)

If the petition does not comply with the requirements of rule 6, the Speaker shall dismiss the petition and intimate the petitioner accordingly.

(3)

If the petition complies with the requirements of rule 6, the Speaker shall cause copies of the petition and of the annexures thereto to be forwarded, -

(a)

to the member in relation to whom the petition has been made; and

(b)

where such member belongs to any legislature party and such petition has not been made by the leader thereof, also to such leader, and such member or leader shall, within seven days of the receipt of such copies, or within such further period as the Speaker may for sufficient cause allow, forward comments in writing thereon to the Speaker.

(4)

After considering the comments, if any, in relation to the petition, received under sub-rule (3) within the period allowed (whether originally or on extension under that sub-rule), the Speaker may either proceed to determine the question or, if

the Speaker is satisfied, having regard to the nature, and circumstances of the case that it is necessary or expedient so to do, refer the petition to the Committee for making a preliminary inquiry and submitting a report to the Speaker.

(5)

The Speaker shall, as soon as may be after referring a petition to the Committee under sub-rule (4), intimate the petitioner accordingly and make an announcement with respect to such reference in the House or, if the House is not then in session, cause the information as to the reference to be published in the Bulletin.

(6)

Where the Speaker makes a reference under sub-rule (4) to the Committee, the Speaker shall proceed to determine the question as soon as may be after receipt of the report from the Committee.

(7)

The procedure which shall be followed by the Speaker for determining any question and the procedure which shall be followed by the Committee for the purpose of making a preliminary inquiry under sub-rule (4) shall be, so far as may be, the same as the procedure for inquiry and determination by the Committee of any question as to breach of privilege of the House by a member, and neither the Speaker nor the Committee shall come to any finding that a member has become subject to disqualification under the Tenth Schedule without affording a reasonable opportunity to such member to represent his case and to be heard in person.

(8)

The provisions of sub-rules (1) to (7) shall apply with respect to a petition in relation to the Speaker as they apply with respect to a petition in relation to any other member and for this purpose, reference to the Speaker in these sub-rules shall be construed as including references to the member elected by the House under the proviso to sub-paragraph (1) of paragraph 6 of the Tenth Schedule.

8. Decision on petitions. - (1) At the conclusion of the consideration of the petition, the Speaker or, as the case may be, the member elected under the proviso to sub-paragraph

(1)

of paragraph 6 of the Tenth Schedule shall by order in writing, -

(a)

dismiss the petition, or

(b)

declare that the member in relation to whom the petition has been made has become subject to disqualification under the Tenth Schedule, and cause copies of the order to be delivered or forwarded to the petitioner, the member in relation to whom the petition has been made and to the leader of the legislature party, if any, concerned.

(2)

Every decision declaring a member to have become subject to disqualification under the Tenth Schedule shall be reported to the House forthwith if the House is in session, and if the House is not in session, immediately after the House reassembles.

(3)

Every decision referred to in sub-rule (1) shall be published in the Bulletin and notified in the Official Gazette and copies of such decision forwarded by the Secretary-General to the Election Commission of India and the Central Government.

9. Directions as to detailed working of these rules. - The Speaker may, from time to time, issue such directions as the Speaker may consider necessary in regard to the detailed working of these rules.

Form I

[See Rule 3(1)(a)]

Name of the Legislature Party:

Name of the corresponding political party:

Sl.No.

Name of the Member (in block letters)

Father's/husband's name

Permanent Address

Name of the State from which elected

Name which from which elected

(1)

(2)

(3)

(4)

(5)

(6)

Date:

Signature of the leader of the legislature party

Form II

[See Rule 3(6)]

To

The Speaker,

Lok Sabha

Madam/Sir,

At the sitting of the House held on (date) during voting on (subject-matter)

.....

?Shrimati/Kumar/Shri M.P.

(Division No.) member of (name

of political party) and member of (name of

legislature party) had voted/abstained from voting,

?, (name of the member)

M.P., (Division No.) member of (name of

the political party) and leader of/sole member of

..... (name of legislature party) voted/abstained

from voting,

contrary to the direction issued by ... *(†person/authority/party) without obtaining the prior permission of the said
*person/authority/ party.

2. On (date) the aforesaid matter was considered by *(†person/authority/party) and
the said †voting/abstention was †condoned/was not condoned by †him/it.

Date:

Yours faithfully,

(Signature)

.

†Strike out inappropriate words/portions.

*(here mention the name of the person/authority/party, as the case may be, who had issued the direction).

Form III

(See Rule 4)

1. Name of the member (in block letters):

2. Father's/husband's name:

3. Permanent Address:

4. Delhi Address:

5. Date of election/nomination:

6. Party affiliation as on -

(i)

Date of election/nomination:

(ii)

The *28th February, 1985:

(iii)

Date of signing this form:

Declaration

..... hereby declare that the information given above is true and correct.

In the event of any change in the information given above, I undertake to intimate the Speaker immediately.

Date:

Signature/thumb

impression of member

*To be filled in only by member elected or nominated before the 1st March, 1985, being the date of commencement of the Constitution (52nd Amendment) Act, 1985.

Form IV

[See Rule 5 (1)]

Name of the member (in block letter)

Father's/husband's name

Permanent address

Delhi address

Name of the State from which elected

Date of election/nomination

Name of the political party to which the member belongs

Name of the legislature party to which the member belongs

Remarks

(1)

(2)

(3)

(4)

(5)

(6)

(7)

(8)

(9)

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